

HALF-HOURS WITH THE HIGHWAYMEN



CHARLES G. HARPER

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HALF-HOURS WITH THE HIGHWAYMEN

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MULLED SACK.

*I walke the Strand, and Westminster; and scorne
 to march i'th' Cittie, though I beare the Horne.
 My Feather, and my yellow Band accord
 to proue me Courtier: My Boote, Spurr, and sword
 My smoking Pipe, Scarfe, Garter, Rose on shoe;
 shoue my brave minde t'affect what Gallants doe.
 I singe, dance, drinke, and merrily passe the day,
 and like a Chimney sweepe all care away*

HALF-HOURS WITH THE HIGHWAYMEN

*PICTURESQUE BIOGRAPHIES AND TRADITIONS OF THE
"KNIGHTS OF THE ROAD"*

BY CHARLES G. HARPER

VOL. I



Illustrated by Paul Hardy and by the Author, and from Old Prints

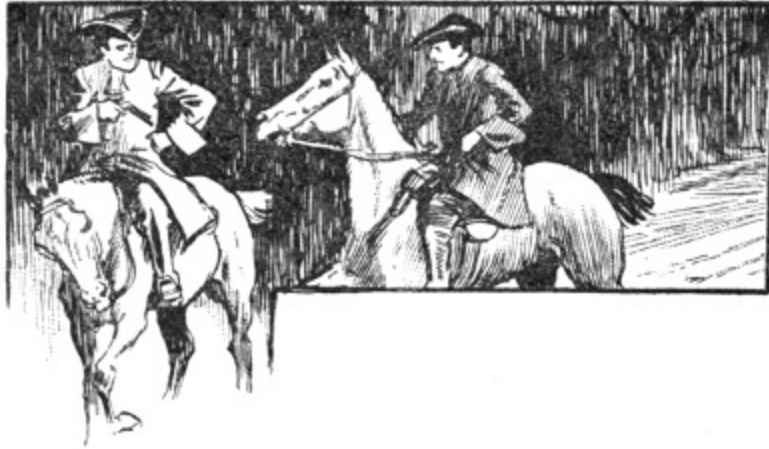
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Preface

IN a series of books designed to tell the story of the roads, and not only of the roads, but of all subjects connected with road-travel in all ages, a

book on the Highwaymen was sooner or later inevitable. We have had in this series the story of the rise and progress towards perfection of coaching, and of the decay of stage-coach and mail when the era of steam came in; and we have had two volumes on the Old Inns of Old England, to which the travellers of a bygone age came, wearied, when the day's tedious travel was done. The story of the highwaymen, who robbed those travellers, is now told, for the first time since Captain Alexander Smith in 1719-20, in three small octavo volumes, and Captain Charles Johnson in 1742, in one folio volume, collated the numerous chapbooks and "last dying speeches and confessions" of that and earlier ages. Captain Johnson, who stole extensively from Smith, who himself was prone to include the most extravagant myths in his pages, calls his folio A GENERAL AND TRUE HISTORY OF THE LIVES AND ACTIONS OF THE MOST FAMOUS HIGHWAYMEN. *Both of them include pirates and murderers. Of the "truth" of much in Smith and Johnson, the less said the better.*

No one has ever reprinted those authors in their original extravagance, or their grossness. It would be impossible; and, if possible, it would not be entertaining. Nor has any one ever edited them, or even written an independent history of the highwaymen. When we consider how astonishingly popular those romances have ever been which have had Claude Du Vall, and Turpin, and their like for heroes, this is not a little surprising.

Perhaps the task has been abandoned because of the difficulty—the almost insuperable difficulty—of sifting fact from fiction, and because of a chilling sense that it would be a thankless task to present the highwayman as he really was: a fellow rarely heroic, generally foul-mouthed and cruel, and often cowardly. No novelist would be likely to thank the frank historian for this disservice; and I do not think the historian who came to the subject in this cold scientific spirit of a demonstrator in surgery would be widely read. Most of us like to keep a few of the illusions we believed in when schoolboys. Scientific historians have degraded many of our ancient heroes and exalted the villains, for whom of old no mud was too thick and slab. Beliefs are being assailed on every side. To abolish the traditional courtesy of Claude Du Vall or the considerate conduct of Captain Hind would, therefore, be strokes of the unkindest, and I have here attempted no such iconoclasm. Even where I cannot believe, I have told the tale—whenever it

has been worth the telling—as it is found in criminal trials, or in Smith or Johnson, and other old sources, decorously stripped of much vile language. For really, where much that seems incredible may be fully proved, and where the believable turns out not rarely to be false, 'tis your only way.

To continue the story of the highwaymen from Smith and Johnson down to the approaching end of all such things in the beginning of the nineteenth century, is like taking up and concluding a half-told tale. But it was worth the doing. Only in respect of the great figure Turpin has always made, has it been found really necessary to seriously consider and re-state the career of that much-overrated scoundrel, and to put him in his proper place: a very much lower one than he usually occupies.

Hero-worshippers of the highwaymen we cannot be; as thorough disbelievers of their picturesque exploits we dare not pose: for the rest, the proper spirit in which to treat the subject is that of ironic tolerance.

CHARLES G. HARPER.

PETERSHAM,
SURREY,
OCTOBER 1908.

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HALF-HOURS
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CHAPTER I

INTRODUCTORY

THE GENERAL DECLENSION FROM OUTLAW TO HIGHWAYMAN,
AND THENCE TO FOOTPAD, THIEF, AND BURGLAR—
GAMALIEL RATSEY—THOMAS DUN, OF DUNSTABLE

*O, there was never a life like the robber's,
So careless, and gay, and free.
And its end? why, a cheer from the crowd below,
And a leap from the leafless tree.*

HALF-HOURS! In the days when the highwaymen flourished, and made travel perilous for law-abiding persons, a five-minutes' interview with one of these "Knights of the Road," who were but rarely knightly in their manners, would have been more than sufficient. Travellers, who had been violently abused, threatened, and robbed, did not observe that atmosphere of romance about the highwaymen, with which, not only modern times, but their own age, enwrapped them. The highwaymen have ever been accounted romantic, as we shall see in these ensuing pages; from the more or less mythical Robin Hood, down to the Carolean age of Captain Hind, Swifticks, and Du Vall, whose exploits were followed with interest and sympathy by their contemporaries. From a lengthy study of these things, one fact rises prominently above all others: it is the fact that the highwayman's only ceased to be a romantic figure when he stopped and robbed one's self, under the usual circumstances of coarse vituperation and personal indignity. On all other occasions, although he commonly practised after nightfall, he paradoxically moved in a rosy atmosphere, in company with the knightly figures of ancient chivalry (who themselves, if the truth of it were told, would probably be disclosed as a rather sordid crew).

The thrilling romance—or the side-splitting humorous circumstances, as the case might be—of one's acquaintance or next-door neighbour being plundered, threatened with death at the pistol-muzzle, and then, with his very coat stripped off his back, being bidden make haste away, is obvious enough, and the highwayman who did all the threatening and the plundering is easily seen to be at once a hero and a humorist; but when he met yourself in the darkling lane, and had your purse, your coat, and your gold watch, and d——d you because you did not carry more wealth, and so make it better worth the while of a gentleman like himself to be out upon the roads at such unconscionable hours—why, then he was a rogue of the most debased description, and the occasion was not so much humorous as tragical; while, as for Romance: what sickly cant is this? Where are the patrol? What are the peace-officers doing, to earn their pay? Is this a civilised country?

We shall see in these pages the fine flower and the gradual declension of the highwaymen: shall trace the mythical and the almost wholly imaginary figures to the time when, under Charles the First and the Commonwealth, it was difficult to tell where the Cavalier ended and the highwayman began; and shall thence come, by way of the disbanded troopers, who turned highway robbers in William the Third's reign, to that curious age when there was an even chance that the armed and mounted man who bade you "Stand and deliver!" was a baronet, or a footman out of place, turned gentleman of the road to support the vices he had learned of his masters.

From the middle of the eighteenth century, to its close—the era of Maclaine and Sixteen String Jack, the art of highway robbery becomes less idealised. There is more police-court about it, and less hazy glamour. Beau Brocade is a fine figure, well-dressed and splendidly mounted, on the heath, but in the dock at Bow Street, and later at the Old Bailey, he never showed to advantage, Sixteen String Jack excepted, with his pea-green coat and his bouquet, as big as a cabbage. And as the eighteenth century closed and gave place to the nineteenth, the mounted highwayman gradually disappeared, and the footpad, a miserable, muddy, cowardly figure, for whom no one ever had a good word, is seen in his dark lurk, in the wayside ditch, not often courageous enough to work alone, and generally found in couples, ready perhaps with the suffocating pitch-plasters that so terrified the wayfarers of that time.

The footpad never had the slightest inkling of romance, and was always brutal, whether he clapped that pitch-plaster over your mouth, or terrified you, or finished off his examination of your pockets by knocking you down and jumping on your body. A far cry, indeed, from the generous days of Captain Hind, or Claude Du Vall.

No one would ever contemplate a work on "Half-Hours with the Footpads." It would be to introduce the reader into the very worst of society, and the least entertaining; and so we come by degrees to the present era of the housebreakers and the newspaper records, where you may seek romance if you will.



THE FOOTPADS.

The history of the highwaymen is a lengthy emergence from ancient fables and marvellous rustic folklore, to more settled records. It is not peculiar in that gradual development. Such is the evolution of all history. But that of the highwaymen begins with the giants and the heroes, continued down through the legendary period of Robin Hood, to the times of the Civil War in England, between King Charles and his Parliament, when highway robbers cloaked their villainies with Royalist partisanship, to the less romantic eighteenth century, and finally ended, early in the

nineteenth century, with all the glamour and tinselled things of the past, in squalid, commonplace circumstances. The highwaymen begin in the dimness of antiquity, continue very largely as heroic myths throughout the middle ages, become philanthropic and chivalric figures in succeeding eras, and later are seen to be mere masquerading footmen, brave only in their masters' fine clothes, seeking money wherewith to gamble and to live dissolute lives. They end, sordid, mud-splashed figures, from which romance shrinks; in no detail distinguishable from such vermin as the footpads, who on dark nights robbed women and children, and defenceless old men, for coppers in solitary lanes, and fled in terror from the robust.

When the profession of highwayman became extinct, those of pickpocket, card-sharper, and burglar were greatly reinforced. Some severe censors of modern times declare that the Joint Stock and Limited Liability Acts were passed in the interest of the classes in whose veins the highwayman blood flowed, and whose instincts could not, in the altered conditions of life, find expression on the road. As company promoters of the Whitaker Wright and Jabez Balfour type, it has been said, these providential enactments enabled them to satisfy their natural leanings. And so the old world journeys down the ringing grooves of change, even as Tennyson desired it should do, though perhaps not on the exact lines of his thoughts.

There are no heroes in these days; or, at the most of it, the hero of to-day, beslavered with overmuch praise, is discovered to-morrow to be a greatly overrated person, not so heroic as ourselves, if the truth were known and every one had his due.

The very last hero in the records of these allied criminal enterprises was Charles Peace, the burglar, who was hanged February 25th, 1879, for the murder (not in the way of his business), of Mr. Dyson, at Banner Cross, near Sheffield, on November 29th, 1876.

There can be no doubt that "Charley," as the police themselves almost affectionately called him, would in a more favourable era have been a highwayman. He had the instincts for the career, and was undoubtedly courageous enough, resourceful enough, and sufficiently equipped with what passed for wit and humour to have shone with no dim light, even in

such days as those of Hind and Du Vall. He was not a hero, and the age insisted that he should ply a less respected craft than that of the highwayman, but he could have risen to such an occasion on the road, and perhaps because the public dimly saw as much, he figures in the imagination less as the armed midnight burglar he was, ready in cold blood to shoot down any one who stood in his way, than as a wonderfully daring and skilful adventurer, whose known exploits and whose legendary doings—for legends have accumulated around his well-known and ascertained career—can stir the pulse and heat the imagination. He was well-equipped even in the accident of his name. The heathen gods themselves might have laughed in their heavens—for humour was appreciated among the Olympians—at the sardonic jest of one named Peace prowling at dead of night, armed with a six-chambered revolver, ready and willing to slay those who should bar his path. And then how fine his gauge of the average intelligence, which even nowadays does not often range beyond that primitive conception of the typical burglar, in which he is pictured in the ankle-jacks, the breeches, the velveteen coat, and the moleskin cap of Bill Sikes. He saw *that* was the mental picture the British public cherished of gentlemen of his trade, and he took his cue therefrom, posing as an independent gentleman. It mattered little that his physiognomy actually reproduced the Bill Sikes head and face, with remarkable closeness; he dressed well, talked well, lived in nicely furnished houses in respectable neighbourhoods, and—last and clinching sign of respectability—he kept a horse and trap.

Until his arrest on the night of November 17th, 1878, in the act of committing a burglary at St. John's Park, Blackheath, he was a respected villa resident, who had a liking for art, a great fondness for music, and, in general, cultivated tastes. There was no reason, except such reason or such elements of chance, as may be found in the busy conduct of his trade, why he should ever have been caught. He burgled as cleverly as he lived; and had too much sense to work in company. Keeping his own counsel, and working alone, he was quite sure no pal would betray him.

His impudent assurance is well displayed in the authentic and well-known anecdote of his offering a choice cigar from among some he had looted, to a tradesman well acquainted with him. He entered the Peckham chemist's shop, made a purchase, passed the time o' day, and offered him his

cigar-case. The shopkeeper took one, and later smoked it with great satisfaction.

When next Peace entered the shop, the shopkeeper said: "That was a fine cigar, sir, you gave me the other day."

"Yes," replied Peace, "they *are* good. I can't afford to buy, so I steal them."

"Do you?" rejoined the man, with a laugh at the absurdity of such a statement from a customer so apparently respectable as Peace; "I wish, then, you would steal me some more."

"I will!" said Peace; and he did. He had the effrontery to again burgle the place whence his original supply had come.

"Here," he said in a day or two, giving the shopkeeper a box full, "are the cigars I promised to steal for you." The delighted recipient thought how exquisitely his customer's kindness and humour blended.

There is nothing neater in all the history of highwaymen than this anecdote, twinkling brightly amid the matter-of-fact records of a degenerate day.

There is plentiful evidence that when Captain Alexander Smith in 1719-20 wrote and published his work upon the highwaymen and other evil-doers, he based his book upon the many chapbooks and broadsides then in existence. Many of them may even now be found by those who do not mind searching for them, but whether they will repay the trouble is quite another matter. He includes in his gallery even Robin Hood and Sir John Falstaff; and, not concerned to point out their legendary or merely literary character, gives an exact (though necessarily not a truthful) biography of each.

Several editions of Smith exist; some in three, others in two volumes. The title-pages vary largely, but all are extremely lengthy, and so curious that it is well worth while to reproduce one as on the next page.

A Compleat
HISTORY
of the
LIVES AND ROBBERIES
of the most Notorious
Highway-Men, Foot-Pads, Shop-Lifts,
and Cheats of both Sexes, in and about
London and Westminster, and all Parts of
Great Britain, for above an Hundred Years
past, continu'd to the present Time.

Wherein their most Secret and Barbarous Murders,
Unparalell'd Robberies, Notorious Thefts,
and Unheard of Cheats, are set in a true Light,
and Expos'd to publick View, for the common
Benefit of Mankind.

To which is prefix'd,
The Thieves New Canting-Dictionary,
Explaining the most mysterious Words,
New Terms, Significant Phrases, and Proper
Idioms, used at this present Time by
our Modern Thieves.

By Capt. ALEX. SMITH.

The Fifth Edition (adorn'd with Cuts) with the Addition of near Two
Hundred Robberies lately committed.

In Two Volumes.

London. Printed for Sam. Briscoe, and sold by *A. Dodd* at the *Peacock*
without *Temple-Bar*, 1719.

Captain Alexander Smith took an immense delight in his villains. You cannot fail to perceive, if you read his book, that his only contempt was for a bungler in the art. Royalist to the heart's core of him, he expends his most loving labours upon the freebooters who displayed his own political bias, and there can be little doubt that, while they did the robbing, it is the eloquence of Smith himself that supplies the embittered harangues, which the victims of Captain Hind, of Stafford, and of many another in his pages are supposed to endure. Nay, Smith enriches the career of many a Royalist highwayman with incidents those gallant fellows were entire strangers to; and himself robs (in the mere narration of pen, ink, and the printed page) prominent Puritans, who in actual life were assuredly never "held up" on the road.

The convention of disapproval of his heroes' villainies sits very lightly upon Alexander Smith. He pays that merest homage to virtue, but then starts rollicking through the biographies of the highwaymen with an unmistakable gusto. His table of comparative sinfulness is an oddity in itself. He says, "... we have given them Precedency according as they excelled one another in Villainy. In their general Character the Reader will find the most unaccountable Relations of irregular Actions as ever were heard; penn'd all from their own Mouths, not borrow'd from the Account given of Malefactors by any of the Ordinaries of Newgate...."

He then continues, not very convincingly: "If we have here and there brought in some of these wicked Offenders venting a prophane Oath or curse, which is dash'd" (much is left to the imagination in a —) "it is to

paint them in their proper Colours; whose Words are always so odious, detestable, and foul, that some (as little acquainted with a God as they) would be apt to conclude that Nature spoil'd them in the Making, by setting their Mouths at the wrong end of their Bodies."

Sir John Falstaff strangely comes first in this Valhalla. Who ever, loving the Shakespearian Falstaff, would have expected him to be exalted on this particularly bad eminence, over the heads of the several atrocious murderers Smith does not scruple to include in his pages?

Johnson, Smith's copyist of twenty years later, like his precursor, boggles at no marvellous tale. They knew the temper of their times and worked in accord with it. Why be a critic in an uncritical age?

There were poets before Homer, but by all accounts they were a sorry lot; and there were biographers of highwaymen before Alexander Smith, but for the most part their works are deadly dull. They had excellent materials, but did not know how to handle them. Shakespeare alone, in the scenes on Gad's Hill with Falstaff and Prince Hal and the men in buckram, knew the way, and all London laughed with him at those merry adventures; but such tiresome productions as the *Life and Death of Gamaliel Ratsey*, published in 1605, continued to appear.

That little work is typical. Gamaliel Ratsey—whether a real or imaginary person I dare not say—appears by this publication to have been "a famous thiefe in England, executed at Bedford the 26 of March last past, 1605." Probably there was a Gamaliel Ratsey, highwayman, hanged then and there; but the adventures related of him are almost certainly inventions: well invented, but told without the slightest scintilla of literary merit. Yet this ragbag stuff has figured in reprints of "old English literature." So much the worse, then, for Old English literature, if this be representative; or, more likely so much the worse for the critical ability of those who considered it worth disinterring on those grounds. It is not "literature," and not representative of what old England could then produce in literature; but it is valuable as one of the origins of the highwaymen legends.

Gamaliel Ratsey, according to this publication, was born at Market Deeping, in Lincolnshire, the son of a respected local gentleman, one Richard Ratsey, who held a position in the service of a greater gentleman:

an esquire, probably, in the train of a nobleman. His only son, Gamaliel, received a good education, but was of a roving disposition and went over to Ireland and joined the army of occupation there, under the Earl of Essex. He so distinguished himself, early in those operations, that he was made sergeant. Soon after the death of Queen Elizabeth, he returned to England with the Earl of Devonshire, and went home to Market Deeping. At the not far distant town of Spalding he began his filching career, by making use of the good terms he enjoyed with the landlady of an inn to steal a bag containing £40 in gold, which had been entrusted to her keeping by a farmer attending the market. To convince Ratsey how trusted a person she was, she foolishly showed where she had placed the bag; and as soon as her back was turned he had taken it from the cupboard where it lay, and made off.

When the farmer returned and wanted his money, there was the very deuce to pay. He and the landlady went off to the nearest justice and swore an information against Gamaliel, who was arrested and thrown into prison, but not before he had found time to return home and bury the bag in the garden. In confidence he told his mother where it was hid, his mother told his sister, his sister told her husband, her husband told his friends, and so at last the confession reached the ears of the justices. Gamaliel would undoubtedly have been hanged on that occasion, only he broke prison and escaped, clad only in his shirt.

His further adventures with Snell and Shorthose, two companions of like inclination, are in themselves amusing when reduced to less stilted language than that of the *Life*. Curiously enough, one of these incidents is concerned with the robbing of an actor, whom Ratsey bids deliver his money first, and a scene from *Hamlet* afterwards. So it was not from any want of acquaintance with the best models that the unnamed author of Ratsey's life failed to put life into his narrative. The incident is treated in as dead and wooden a manner as the rest.

A Cambridge scholar, robbed in similar manner, was bidden deliver a learned thesis. We find almost exactly parallel stories in Smith and Johnson. In those pages it is Sir Josselin (? Joscelin) Denville and his numerous band of robbers, who, meeting a Benedictine monk in a wood, make him preach

a sermon in praise of thieving. Captain Dudley, a hundred years or so later, is represented demanding a sermon from a clergyman.

More shadowy even than Robin Hood, is "Thomas Dun." We may be in some reasonable doubt as to the validity of many incidents and biographies in the pages of Smith and Johnson, but there is no possible doubt whatever that the "Life of Thomas Dun" is what one of our own eighteenth-century highwaymen and cutpurses would have called a "flam." There was never a Thomas Dun, highwayman, bandit, and murderer, as depicted in those classic pages; but the fact that he was a myth does not prevent those painstaking authors from presenting us with a very exact narrative of his deeds.

The curious "moral reflection" prefaced to Thomas Dun's entirely apocryphal adventures is itself worth reproducing. It says: "A man who is not forced from necessity or a desire of pleasure to become dishonest, but follows his natural dispositions in robbing and maltreating others, will generally be found to be destitute of every humane and generous principle. So will it be found with this character—a person of mean extraction—who was born in Bedfordshire, and who, even in childhood, was noted for his pilfering propensity and the cruelty of his disposition."

He lived, it seems, in the time of Henry the First, "and so many were his atrocities," writes Johnson, "that we can only find limits for the recital of a few." The limits were perhaps more accurately determined by Johnson's own powers of invention.

Johnson did not, of course, invent Thomas Dun. He is the child of the ages. Equally with Robin Hood, every generation, until the decay of folklore, added some new touch to him, and Johnson did but reduce him to print, add a little more, and shape him out of the somewhat formless but threatening figure he presented.

There is this much basis for him: that, on the site of the town of Dunstable, and for some distance along the Holyhead Road in that direction, there extended, from Saxon times until the reign of Henry the First, a dense thicket of scrub woods, overgrowing the ancient ruins of the Roman station of *Durocibrivæ*. From the time of the Norman conquest the neighbourhood had been infested with robbers, and it was to drive them out

and establish some sort of order that the king had clearings made in the woods that afforded such safe harbourage for outlaws. Under Royal encouragement a new town was founded, and in 1131 given, with the rights of market, to a priory that had been founded in the meanwhile. The King himself had a residence at "Dunstaplia," as the town was named, *i.e.* the "hill-staple" or market, and his successors were often there. The wool market was the most important at Dunstable; the monks long maintaining great flocks of sheep on the adjacent downs.

The robbers became only a memory, but a memory that never faded. It merely took on another form, and in the course of time the name of the town itself was twisted into an allusion to them and to their leader. It needed the collusion of gross ignorance and wild legend to effect so much, but the thing was done; and for centuries Dunstable was, and perhaps even now is, locally said to owe its name to "Dun's Stable," a hollow in the chalk downs, pointed out as having been the place where "Dun," the entirely imaginary leader of the outlaws, stabled his horse. If you doubt this there is the town seal to convince the sceptical, showing as it does what is said to be a horseshoe (a shoe of Dun's horse!), but is really intended for a staple or hasp.

The legendary Dun was a kind of bogey to the children of the neighbourhood, and in Johnson's pages is a most blood-thirsty creature. There we read that his first exploit was on the highway to Bedford, where he met a waggon full of corn, going to market, drawn by a fine team of horses. He accosted the waggoner, and in the midst of conversation stabbed him to the heart with a dagger. He buried the body, and drove the waggon off to the town, where he sold the corn and the waggon as well, and then disappeared!

Dun had a great animosity to lawyers (or, rather, the authors of the legends worked into them their own dislike of the legal profession, and it is curious to note how this runs, like a thread, throughout all the fabric of highwaymen stories), and, hearing that some were to dine at a certain inn at Bedford, went hurriedly into the house about an hour before the appointed time, and desired the landlord to hasten with the dinner, and to provide for ten or twelve. The company soon arrived, and while the lawyers thought Dun a servant of the inn, the innkeeper thought him an attendant of the

lawyers. He bustled about, and on the bill being called for, collected the amount, and walked off with it. The company, tired of waiting for him to return with their change, rang the bell for it, and then discovered him to be an impostor. And the hats and cloaks and the silver spoons had gone too.

Dun became such a terror, that the sheriff of Bedford assembled a considerable force to attack him and his band. But Dun, finding his own men to equal, if not actually to outnumber, those sent against him, assumed the offensive, and, furiously attacking the sheriff's expedition, routed it and took eleven prisoners, whom he hanged upon trees in the woods, by way of a hint how rash a thing it was to interfere with him. Removing the prisoners' clothing, they dressed themselves in it, and forming a plan to rob the castle of a neighbouring nobleman, appeared before it in the uniform of the sheriff's men and demanded admission, "to search for Dun." Failing to find him, they requested all the keys of the place, to make a narrower search, and so looted many costly articles. Upon a complaint being lodged with the sheriff, the ruse was belatedly discovered.

It would be wearisome to follow all the fables that tell of Dun's twenty years' bloodstained progress to the scaffold. There is this much to be said in commendation of the popular legends of bandits: that when they are shown to be really bad, without redeeming traits, the legends duly see to it that justice is satisfied. And so with Dun, who is made to end disastrously at Bedford, even without the advantage of a formal trial. "When two executioners approached him he warned them of their danger if they should lay hands on him," and when they insisted upon doing so he struggled with them so successfully that he flung them nine times upon the scaffold, before his strength gave way. The crowds who gloated horribly over executions at Tyburn and elsewhere never had so great a treat as pictured in this fictitious scene: but this was merely the appetiser, the anchovies, so to speak, before the more solid course. Better was to follow.

The original executioners having been put out of action by Dun's violence, reinforcements were brought to bear, and did their business very effectually. "His hands were first chopped off at the wrist; then his arms at the elbows; next, about an inch from the shoulders; his feet below the ankles; his legs at the knees; and his thighs about five inches from the trunk. The horrible scene was then concluded by severing his head from the body,

and consuming it to ashes. The other portions were set up in the principal places of Bedfordshire."

This by no means pretty ending, when told to children, terrified them more than all the terrific deeds attributed to Dun himself, and often woke them at night, screaming.

CHAPTER II

ROBIN HOOD AND HIS MERRY MEN

*Bold Robin Hood
Was a forester good
As ever stepped in
The merry greenwood.*

THE mythical Thomas Dun's redeeming qualities, supposing him, indeed, to have possessed any, are not set forth in those legends of him. He is a blackguard shape; while the equally legendary Robin Hood is one of the brightest figures of romance.

Robin Hood is a poor man's hero, and has been, for over seven centuries, to the peasantry of England something of what King Arthur was to the nobles and the aristocracy. While Arthur was, and is some day again to be, the national hero in the larger issues of war and conquest, Robin remains the lion-hearted outlaw; warring from his boskage in the greenwood of Sherwood Forest, or Barnsdale, against the rich oppressors of the people, whether they be the nobles or the fat ecclesiastics of mediæval satire.

Many industrious writers have sought to reduce the Robin Hood myths to a connected whole, and to trace their origin, but the task has proved hopeless. He is as pervasive as the winds, and came whence no one knows, but may be traced back to the reign of Edward the Second, when he was already fully established as a ballad hero. Ritson, who collected and edited the ancient literature referring to him, is of opinion that he was a real person, Robert Fitzooth, and was born at Locksley, in Nottinghamshire, in 1160. But no evidence settles that point, and it is abundantly possible that he was really evolved from dim memories of Hereward the Wake, the Saxon hero, who long withstood William the Norman in the fens of Ely. In course of time his championship of a conquered nation was lost sight of, and merged into the endearing character of an English yeoman, outlawed

for debt, taking refuge with others of his kin in the forest, whence they levied toll upon the oppressor, and, as they themselves were outlawed, respected no law, save that of the greenwood, where the best man was he who could draw the stoutest bow and shoot the straightest; who could make the best play with that truly English weapon, the quarter-staff, or deal the mightiest blow with the fist.

The whole cycle of Robin Hood legend is delightfully and most characteristically English, instinct with the purest and most passionate love of the countryside, and nerved with the championship of manhood's rights and with the fiercest hatred of the law and of the ruling classes in days when laws were the repressive measures instituted by the wealthy for the purpose of denying simple justice to the poor. The hatred of authority and the armed resistance to it, that are the leading features of Robin Hood legend, are no mere criminal traits, but violent protests (the only kind of protest then possible) against the bloody forest laws of the Norman and Plantagenet times, and the system by which the peasantry were serfs, with no more social rights than the negroes enjoyed before their emancipation in 1833.

Robin Hood legend was for centuries the expression of what might now be styled Liberal, or even Radical, or Socialist opinion, but it has an innate poetry and chivalry which those modern schools of thought conspicuously lack; and indeed, as personal liberty broadened, so did the legends of this splendid figure of romance become blunted and vulgarised in the countryside, until he is made interchangeable with the highwaymen who had only their own pockets to fill and no cause to represent.

How popular and how astonishingly widespread was the story of Robin Hood, we may readily guess from the many places or natural objects named after him. "Robin Hood's Butts" on the racecourse near Onibury, a mile and a half from Ludlow, are still pointed out. They are in the nature of sepulchral barrows. From there, says legend, Robin Hood shot an arrow that sped the mile and a half to Ludlow church, and fixed itself on the apex of the gable of the north transept! An arrow is certainly there, but Robin never shot it. It is, in fact, an iron likeness of an arrow, and is the sign of the guild of Fletchers, or arrow-makers, who built the transept.

There are other "Robin Hood's Butts" in the country: his "Cairns" on the Blackdown Hills in Somerset; "Robin Hood's Bay," on the Yorkshire Coast; his "Barrows," near Whitby; "Robin Hood's Tor," near Matlock; boundary-stones in Lincolnshire, known as "Robin Hood's Crosses"; a large logan-stone in Yorkshire, styled his "Penny Stone"; a fountain near Nottingham that figures as his; "Robin Hood's Well," between Doncaster and Wetherby; "Robin Hood's Stable," a cave in Nottinghamshire; a natural rock in Hopedale, Derbyshire, known as his "Chair"; his "Leap," a chasm at Chatsworth. A number of ancient oaks are "Robin Hood's," and legends of his exploits still cling to Skelbrooke Park, Plumpton Park, Cumberland, Feckenham Forest, Worcestershire, and the forests of Sherwood, Barnsdale, Needwood, and Inglewood.

The forest of Inglewood, in Cumberland, is indeed associated with other outlaws as legendary as Robin himself or as that Irish figure of wild romance, "Rory o' the Hills." Andrew Bel, William of Cloudisdale, and Clym o' th' Clough are the great woodland triumvirate of the north.



ROBIN HOOD, UNDER THE GREENWOOD TREE.

It would be a thankless office to dwell greatly upon the probability that Robin Hood, as an individual person, never existed, and that he was perhaps not even typical of the woodland outlaws of old, whose ideas and practices doubtless fell far short of the ballad Robin's ideals. It is much more pleasant to consider the romantic spirit that evolved him and gave him his exquisite setting of mossy glades and giant oaks, where the sun comes in golden-green shafts through the embowering foliage, and you hear the winding of

the hunters' horns in chase of the deer. There is a springtime gladness in the old verses, of which this is typical:

Whan shaws bene sheene and shroddes full fayre,
And leaves both large and longe,
Itt's merry walking in the fayre forrist
To hear the small birdes songe.

To se the dere draw to the dale,
And leve the hillës hee,
And shadow hem in the levës grene,
Under the grene-wode tre.

It is the springtime of the year and of the English nation that you glimpse in these lines; a picture of that larger rural England of possible adventure, and uncontaminated skies that is now a thing of the past.

Nature is portrayed in these ballads with a vividness and certainty that more ambitious poets cannot match:

The woodweele sang and wold not cease,
Sitting upon the spraye,
Soe lowde, he wakened Robin Hood,
In the greenwood where he lay.

It is versification of the simplest and the most sincere kind.

Robin Hood, real or imaginary character, has himself no criminal taint, but he is one of the original founts whence the stream of highwayman legend is fed. It does not, or should not, sully his fame, that the stream becomes polluted with much vileness as it flows down the channel of time. A gradual vulgarising of the beautiful old story of the manly outlaws in Lincoln green, who went on foot and chased and shot the deer, and redressed wrongs in the leafy coverts, is sadly to be noted; and by the middle of the eighteenth century it became so obscured that it was possible for one of the booksellers of the time to foist upon an indiscriminating public an absurd production, in which Robin and the seventeenth-century Captain Hind figure as contemporaries. The poor threadbare rags of chivalry are thrown over the recreant shoulders of the highwaymen, but they suit them ill; and the fine clothes the highwaymen sometimes wore and

the excellent horses they rode, do not hide from us their essential coarseness.

When Langland's *Vision of Piers Plowman* was written, about 1362, Robin Hood long had been a popular figure; and in that wonderful descriptive poem we find, among those lifelike figures, Sloth, the priest, who confesses himself ignorant of hymns of the Saviour and the Virgin, and unable even to repeat his paternoster; "but," he says, "I can ryme of Robin Hode."

That confession would scarce have pleased the real Robin, who was an exceedingly religious man. In the oldest ballad surviving of him, he is found lamenting that he has not been to mass for a fortnight, and he thereupon, at great risk, goes to Nottingham town, to repair the omission. He especially venerated the Virgin, and is in one ballad found to be so extremely devoted to his religious duties as to have three masses daily, before dinner.

At the same time, although he is found declaring to his band that no damage is to be done to any husbandman "that tylleth with his plough," nor to any good yeoman, nor to any knight or squire "that wolde be a good felowe," he delights in persecuting ecclesiastical dignitaries. A fat abbot, or a steward of a monastery, unlucky enough to fall in with him, has a weary time of it. The higher these personages, the worse the treatment meted out to them. "Ye shall then beat and bind," we find Robin directing his merry men; and as these ballads were but the essence of the public feeling of the age, it is quite evident that when at last Henry the Eighth made away with the monasteries, he must have had a very considerable and long-established force of popular sentiment entirely in accord with him.

One of the chief exploits of Robin with the dignified clergy was the traditional meeting with the Bishop of Hereford, in Skelbrooke Park, where he was said to have made the Bishop dance round an oak, and then, after plundering him, to have left him bound securely to the tree. Variations of the story are met with in plenty in legends of other outlaws and highwaymen.

That the Robin Hood legends impelled other romantic souls to take to the woodlands and be also Robin Hoods, in admiring imitation, seems

sufficiently evident from old records, of which the Derbyshire petition to Parliament in 1439 is typical. The petitioners solicited help to procure the arrest of a certain Piers Venables and others who, it is stated, "wente into the wodes like as it hadde be Robyn-hode and his meyne."

Nottingham was ever a town inimical to our Robin; probably because it was nearest to his haunts in Sherwood Forest. In the earliest ballad extant of his exploits, we learn how, going piously into the town for the feast of Pentecost, he met an old monk whom he had once robbed of £100. The monk "betrays" him, and to prevent his escape the town gates are closed. Robin, seeking to leave, is captured, after a desperate resistance, and thrown into prison; and the false-hearted monk sets out for London, to convey the welcome news to the King, who will be delighted to learn that the bold outlaw is at last laid by the heels.

But Little John and Much waylay the monk, and kill him and his little page, and themselves, with the despatches, seek audience of the King, who sends a command by them to the Sheriff of Nottingham, ordering him to bring Robin Hood before him.

Arriving at Nottingham, these bearers of the King's commands are received with due honours and elaborately entertained. Finally, after much feasting and drinking, and when the sheriff and his men are sunk in a drunken sleep, Little John and Much steal their keys, kill the gaoler, and release Robin Hood. Then they return happily to the forest. The ballad ends by the pardon of Little John, in consideration of his fidelity to his chief.

Another ballad tells of the adventure of Robin and the potter. Meeting an itinerant seller of earthenware pots, Robin challenges him to the usual test of who is best man, a fight with quarter-staff. On this occasion he meets his match and is badly beaten. But there was never such a hungry man for a fight as our hero, and he then suggested a combat with swords, in which he was also vanquished. Then he changes clothes with the man of pots, buys his stock, and goes to Nottingham, where he sells them at less than cost price and so makes a speedy clearance of all but five. These he gives to the sheriff's wife, who then invites him to dinner. At the dinner-table he hears of a trial of skill at archery to be decided that afternoon, and attends and surpasses all competitors. The sheriff asks him of whom he learned such

marvellous archery. "Of Robin Hood," he answered; and then the sheriff expresses a wish to see the outlaw. The pretended potter then conducts him into the depths of the forest and there blows a single blast upon his horn.

Immediately they are surrounded by Robin's own merry men, who compel the sheriff to leave his horse and other gear; glad enough to get away on any terms. Robin, however, courteously sends the sheriff's wife a white palfrey that "ambles like the wind."

Indeed, Robin was very much of a lady's man, and no outlaw worthy the name of forester was ever else. They were all squires of dames, and in this at least were equal, in theory at any rate, to the best "perfit gentil knight" that ever wore a lady's kerchief.

Courtesy to beauty in distress was ever one of the chiefest salves with which bandits salved their self-respect. No sentence of outlawry could make them rue, if to that principle they held them true. Even an outlaw had his ideals: to play special providence, to succour the distressed, to punish the oppressor, and "never to lay hands on a woman, save in the way of kindness." There were, of course, many lapses from these altitudes of conduct, but the ideal long remained, and only seems to have greatly decayed in the eighteenth century.

We have the historical instance of that adventure of the fugitive Queen of Henry the Sixth, lost in 1459 in the wilds of Staffordshire, after the disastrous battle of Blore Heath. Plying from that stricken field, on horseback, with her son, the youthful Prince Edward and one only retainer, the little party were surprised in the mountainous district of Axe Edge by a band of robbers, who seized their money, jewels, and every article of value. These savage men knew nothing of their rank, save that they were obviously people of quality. Then the rogues fell to quarrelling among themselves, as to the division of the spoil. Menaces were growled out, and swords drawn. Margaret of Anjou, the high-spirited Queen, seeing the bandits so engaged with each other, took her son by the arm and hurried with him into an adjacent wood.



MARGARET OF ANJOU AND THE BANDIT.

We hear no more of the solitary retainer. He seems to have left early.

The Queen and her son had not gone far when they encountered another outlaw. With the simple frankness of a great despair, she threw herself and the young Prince upon his mercy. "Friend," said she, "I entrust to your loyalty the son of your King."

What a generous-hearted bandit could do, he did. Taking them under his protection, he conducted them by secret and intricate ways into the

comparative safety of the Lancastrian headquarters.

But to resume our Robin. The fate of Guy of Gisborne shows how rash it was to attack our friend in Lincoln green, who was by no means so green as he looked. Guy had sworn to apprehend the outlaw, and roamed the forest in search of him, in a "capull hyde," which is said to mean a horse's skin. Guy found him at last, with disastrous results to himself, for Robin slew him and mangled his body with what is particularly described as an "Irish knife." He then clothed himself in the "capull hyde" and took his deceased enemy's horn, and went off to Barnsdale, where his men, unknown to himself, had been in combat with the sheriff's force, with the result that several were killed and wounded on both sides. Robin's men had, however, the worst of the fight, and Little John had been taken prisoner and bound fast to a tree.

Robin, drawing near his men's haunts, blew a blast upon the horn he had taken, and the sheriff, recognising the note, and thinking it was Guy of Gisborne, come back victorious, went to meet him, with the result that he and his force were taken, and Robin's men released.

The many scattered ballads of Robin Hood that had long passed from mouth to mouth were collected, edited, and printed about 1500 by Wynkyn de Worde, under the title of *A Lytell Geste of Robyn Hode and his meyne, and of the proude Sheryfe of Notyngham*.

According to this, the home of Robin Hood was in Barnsdale, the woodland tract between Doncaster and Pontefract. There Little John and two companions waylay Sir Richard at the Lea, a knight passing through the forest: a melancholy man, as sad as he of the Rueful Countenance. He is not afraid to accompany the rovers to their master, for he has little to lose. But Robin, far from ill-using, entertains him to a sumptuous dinner, served (by what marvellous means we are not told) in the merry greenwood. Such mediæval delicacies as swans, with, of course, pheasants, smoke at the outlaw's spread. The feast being concluded, the knight prepares to depart; but "Pay you, ere you wend!" says Robin; "it was never the custom of a yeoman to pay for a knight."

The knight, deeply humiliated, confessed he had but ten shillings.

"Go search," commands Robin to Little John. "If, sir, you have no more," he says to the knight, "I will not have a penny."

The search confirmed the knight's words; and it then appeared that this was a sorely stricken knight indeed.

"For a hundred winters," he explains, his ancestors had been knights, and until within the last two or three years he had possessed an income of four hundred pounds a year, as his neighbours well knew.

But his son was unlucky enough to kill a Lancashire knight, and a squire as well, in a joust; and, to help pay the penalty of his son's mishap, the father's goods had been "sette and solde," and his lands pledged to the Abbot of St. Mary's, for four hundred pounds. The day for repayment of this loan was close at hand, and the knight, unprovided with money, already foresees his estate pass from him.

Robin Hood then asks him, who would be the knight's surety, if he advanced the sum.

Alas! replies the knight, he is as badly in want of friends as of money. He can offer no surety, save Our Lady, who had never failed him before.

In Robin Hood's way of thinking, no better surety could be found, even if England were sought through and through; and the knight is immediately provided, not only with money, but with clothes, a horse, and a trusty squire, in the person of Little John. The whole band enter deeply into their leader's feelings, and weep salt tears over the knight's misfortunes, and themselves contribute liberally to supply his needs.

The second "fytte," or act, is placed at St. Mary's Abbey, on the day of reckoning, and the abbot is introduced, chuckling at the absence of the knight, and the probability of his lands being forfeited. The prior entreats his superior to show a little pity, but his call for moderation is scornfully rejected by the abbot, and by the cellarer, a fatheaded monk of the type made familiar in modern German paintings of tonsured voluptuaries eyeing tables full of food and stroking their paunches.

In midst of these proceedings, the knight enters, and humbly begs for an extension of time; but the abbot insists on his bond, and will have, and at

once, either the money or the land. Then the high justice is introduced, as moderator:

"What will ye gyve more?" said the justice,
"And the knight shall make a release;
And elles dare I safly swere
Ye never hold your lande in pees."

"An hundred pounde" sayd the Abbot;
The justice said "Give him two."
"Nay, be God! sayd the knight,
"Ye gete ye it not soo:

"Though ye woulde gyve a thousande more,
Yet were ye never the nere;
Shall there never be myn eyre
Abbot, justyse, ne frere."

He sterte hym to a borde anone,
Tyll a table rounde,
And there he shoke out of a bagge,
Even four hundred pounde.

The debt thus paid, the knight takes leave of the disappointed abbot, and "went hym forthe full merye syngynge, as men have told the tale."

Living at home in retirement, he soon saves sufficient to get together the sum that Robin had advanced; and then equips himself with a splendid present of bows and arrows for the outlaw, and rides, with a merry song and a light heart, to Barnsdale.

The third fytte tells the adventures of Little John, who, straying into Nottingham, attracts the attention of the sheriff by his skill in archery, and enters into his service for one year, in the name of Reynold Greenleaf. But in a little while, in the sheriff's absence, Little John raises a quarrel in the house and runs away with the cook. Together they go off to the greenwood, with the family plate, and ready money, "three hundred pounds and three." Robin Hood receives them, but they have not long returned when Little John plans to capture the sheriff himself, on his way home. The seizure is easily made, and the sheriff is taken to the foresters' camp, where supper is served to him on his own plate. He is then stripped to his shirt and breeches,

and released the next morning, after being obliged to take an oath never to lie in wait for Robin Hood, "by water, ne by londe," and if any of the band fall into his custody, to help them to the best of his power.

The fourth fytte opens with the cellarer of St. Mary's, travelling with a large sum of money. He falls in with Robin and his men, but declares he has only twenty marks. Little John, however, on searching him, discovers eight hundred pounds; whereupon Robin Hood exclaims that the money must be sent by Our Lady, who, with her accustomed goodness, had doubled the sum he lent the knight.

The monk is then bidden go his way, after refusing a parting glass; vowing, with much truth, that he might have dined cheaper at Blyth or Doncaster. The knight, at this moment, arrives with the money to repay his loan. Robin accepts his presents, but will not take the money, as Our Lady has just now paid it back, together with another four hundred pounds, which he begs the knight to accept.

The fifth fytte opens with the Sheriff of Nottingham proclaiming a shooting match. Robin attends, and bears off the prize, but as he leaves the town, the cry of "Robin Hood" is raised. "Great horns 'gan they to blow"; the townsmen assemble, and a fight begins, in which Little John is wounded in the knee, so that he can neither walk nor ride. In this desperate pass, he entreats his captain to smite off his head with his sword, so that he may not fall alive into the hands of the enemy, but Robin indignantly refuses. Little Much takes him on his back, and carries him off, halting from time to time to speed arrows into the ranks of the pursuing sheriff's men. They then all escape to the castle of their knightly friend, who, in the sixth fytte, is waylaid, and carried off by the sheriff.

The knight's lady then appeals to Robin Hood, who calls his men, and, proceeding to Nottingham, slays the "proud Sheriff" and releases the knight.

In the seventh fytte we have the arrival of "our comely King," Edward the Third, at Nottingham, come to inquire into a complaint the sheriff had made against the knight for harbouring outlaws. The King, for a whole year, endeavours to capture Robin or the knight, but has no sort of success until a forester offers, if the King will assume the costume of an abbot, to conduct

him to the outlaws' retreat, "a mile under the lynde"; *i.e.* in the midst of the lime-trees, or lindens.

This offer is accepted, and Robin receives the pretended abbot with unusual courtesy, taking but one-half of the forty pounds he offers for ransom of himself. The "abbot" then produces a summons under the Royal seal, inviting Robin to Nottingham "both to meat and meal."

Robin goes down on bended knee before this august message, and entertains the "abbot" in the best style, with venison and

With good white bread and good red wine,
And therto fine ale brown.

After dinner he entertains his guest at a shooting-match; the chief condition being that whoever misses a rose-garland suspended between two poles shall forfeit bow, arrows, and quiver, and submit to receive a buffet on the head.

Robin misses by three fingers and more, and the King is entitled to inflict the penalty. He hesitates. "Smite boldly!" says Robin; "I give thee large leave."

Thus encouraged, the king, with one blow of his stalwart arm, makes the outlaw reel. Such an exhibition of vigour was more convincing than moral suasion, and Robin, perceiving that this is no abbot, but the King himself, submits at once, with his men. The sovereign graciously pardons them and invites them to London.

The eighth fytte concludes the story. Robin and his men follow the King to the Court; but within a year the love of the free and unconventional forest had lured away all but Robin and two companions, and Robin himself was sick to be gone. The finishing touch was the sight of a gathering of young archers.

"Alas! and well-a-way
If I dwell longer with the King,
Sorowe wyll me slay,"

says the sometime outlaw, longing to be a forester again.

So he forswears the Court, and retires again to the forest.

And there, the legends say, he lived as of old for twenty-two years; until falling sick, he resorted to the priory of Kirklees, where a kinswoman of his was prioress. After the medical fashion of the time, the remedy was to be slightly bled; but the treacherous prioress, and one Sir Roger of Doncaster, opened a vein by which he bled to death: dying "from the perfidy of a woman," as had been prophesied.

From the chamber in the gatehouse of the priory where he lay, he shot his final arrow, his faithful Little John whom he had summoned by three blasts of his horn, supporting him. The spot where the arrow fell was to be his grave, and there Little John was to lay him, with his bow bent by his side, a turf under his head, and another at his feet. The old ballad of his affecting end piously concludes:

Crist have mercy on his sowle
That dyed on the rood,
For he was a good outlawe
And dyde pore men much good.

The railed-in spot where he, by tradition, lies buried had once, we are told, a stone inscribed

**Heac undernead dis lair stean
laiȝ robert earl of Huntingtun
nea accir ber aȝ hie ȝa geud
an pipl kauld im robin heud
siȝh outlawȝ aȝ hi an iȝ men
bil england niȝr ȝi agen**

Chit 24. Kal. Decembris 1249.

[Click [here](#) for transliteration.]

But this appears to have been the invention of Martin Parker, author of the "True Tale" of the hero, c. 1632. It still, however, imposes upon the credulous and supports the somewhat sweeping saying current in Camden's time: "Tales of Robin Hood are good for fools."

Wykyn de Worde's collection of Robin Hood romances is itself a proof of the wide popularity the hero had always enjoyed, and did still enjoy; but it does not stand alone as proof. In 1444 we hear a grumbling voice speaking

of Robin, Little John, Friar Tuck, and the others of that immortal band, "of whom the foolish vulgar, in comedies and tragedies, make entertainments, and are delighted to hear the jesters and minstrels sing them, above all other ballads."

A century later, none other than Latimer, Bishop of Worcester, preaching before Edward the Sixth, bore unwilling testimony to Robin's popularity with the masses: "I came once myself," he said, "to a place, riding on a journey homeward from London, and I sent word overnight into the town that I would preach there in the morning, because it was a holyday.... I thought I should have found a great company in the church, but when I came there, the church door was fast locked. I tarried there half an hour and more, and at last the key was found; and one of the parish comes to me, and says, 'Sir, this is a busy day with us, we cannot hear you; it is Robin Hood's Day. The parishes are gone abroad to gather for Robin Hood.'

"I thought my rochet should have been regarded, though I were not," added Latimer, plaintively; "but it would not serve; it, too, was fain to give place to Robin Hood's men."

Apparently at this point the congregation laughed, for we find him, resuming, rather heatedly: "It is no laughing matter, my friends, but rather a weeping matter, a heavy matter, under the pretence of gathering for Robin Hood, a traitor, and a thief, to put out a preacher, to have his office less esteemed, to prefer Robin Hood before the preaching of God's Word."

In 1601, when England was living under a recently reformed religion, it became again necessary to reconstruct Robin Hood legend for popular acceptance, and in a play, written by Anthony Munday and Henry Chettle, he appears as the outlawed Earl of Huntingdon; a figure for which there is not the slightest historical warranty. Thus the fabricated "epitaph" at Kirklees must itself have been, as it were, a by-product of this play. Maid Marian and several other characters who appear in it originated only a century earlier, and have no part in the earliest ballads. The play then gradually merged into May Day festivities and the once familiar "Jack-in-the-Green," extinct only within the last forty years, but greatly vulgarised towards the end, when chimney-sweeps acted "Jacks-in-the-Green," and the

Maids Marian were too often fat and fiery-faced sluts. The entertainment was found all too often outside public-houses.

Robin Hood has, of course, equally with other heroes, suffered greatly from being continually edited and restated, from age to age. How should he escape the fate that King Arthur experienced, of being made into a distinctly Victorian gentleman? Tennyson has redressed old Robin, with new clothes and a new conscience, in *The Foresters; Robin Hood and Maid Marian*, and there you cannot but entertain the horrible suspicion that he has become a typically respectable mid-Victorian, and that if any one offered to exchange his greenwood tree for a "parlour" with perhaps a suite of walnut furniture upholstered in green repp, and a marble clock with a couple of glass lustres on the dining-room mantel-piece, he would gladly accept, forswear his woodland glades, and live cleanly thereafter.

But the two most striking evidences of the old-time popularity of Robin Hood, not so long dead, are found in the many inns named after him, and in that great friendly society, the "Ancient Order of Foresters," whose title is directly inspired by the legendary story of Robin and his fellow outlaws. No one who has ever seen the Foresters in their regalia at their annual day at the Crystal Palace can have any doubt of that inspiration.

CHAPTER III

THE "HAND OF GLORY"—LIABILITY OF COUNTRY DISTRICTS FOR ROBBERIES—EXEMPTION IN RESPECT OF SUNDAY TRAVELLING

THOSE far-distant, unpleasant days when "highway lawyers," and entirely unromantic bands of robbers, murderers, and footpads swarmed over the country, and robbed and slew with comparatively little fear of the law, were also extremely superstitious days. Good men and bad were alike steeped in a degrading belief in white and black magic, portents, and omens. Magical aids in the prosecution of both innocent and guilty enterprises were employed; and among them none more fearful than the charm known generally as the "Hand of Glory": the "open sesame" of thieves and assassins, among whom, it is to be feared, we must include not a few of our "romantic" highwaymen; although probably the larger number of them would actually have felt themselves insulted at being styled thieves, and certainly only a minority slew wilfully. Most desired nothing so little as to shed blood, in spite of the terrible alternative they threatened—"Your money, or your life!"

But among the thieves and the murderous the superstition of the "Hand of Glory" was widely prevalent. It appears to have originally derived from mediæval Germany, that storehouse of terrible imaginings. What the "Hand of Glory" was, and the effect it produced, may be seen better by the following quotation from the *Ingoldsby Legends*, which is one of the most genuinely thrilling passages in literature. It is full of the most dreadful description, but exquisitely done:

On the lone bleak moor, At the midnight hour,
Beneath the Gallows Tree,
Hand in hand The Murderers stand,
By one, by two, by three!
And the moon that night With a grey, cold light,
Each baleful object tips;
One half of her form Is seen through the storm,
The other half's hid in Eclipse!
And the cold wind howls, And the Thunder growls,
And the Lightning is broad and bright;
And altogether It's very bad weather,
And an unpleasant sort of a night!
"Now mount who list, And close by the wrist,
Sever me quickly the Dead Man's fist!
Now climb who dare Where he swings in air,
And pluck me five locks of the Dead Man's hair!"



THE "HAND OF GLORY": BENEATH THE GALLOWS TREE.

The dried hand, thus obtained, was fitted with wicks, one to each finger and the thumb, made from the five locks of hair dipped in grease from the murderer's own body and the fat of a black tom cat, and generally consecrated with the saying of the Lord's Prayer, backwards. When all these wicks were lighted, and the blazing Hand of Glory carried into a house, a spell was supposed to be cast on place and inmates, in which the malefactor could work his will:

"Now open lock To the Dead Man's knock!
Fly bolt, and bar, and band!
Nor move, nor swerve, Joint, muscle, or nerve,
At the spell of the Dead Man's hand!
Sleep, all who sleep!—Wake, all who wake!—
But be as the Dead, for the Dead Man's sake!"



"OPEN LOCK, TO THE DEAD MAN'S KNOCK."

Traditions not so long since surviving in the North Riding of Yorkshire tell a horrid story of the use of an enchanted hand of this kind. One wild and bitter night—the sort of night when homeless wayfarers were more than usually to be pitied—a man clad in ragged clothes knocked at the door of a

lone inn on a solitary moor, and asked for a lodging. There was no accommodation to spare, but as the night was so inclement and the way was long to the next house, he was told that if he liked, he might lie in the front of the kitchen fire. He accepted this offer with every appearance of thankfulness, and soon after, when the family had gone to bed, he was left there. But although the innkeeper and his family had retired and left the stranger alone, the servant was still engaged for a few minutes in another room which chanced to command a view of the kitchen. Happening to glance in that direction, she was at first astonished, and then horrified, to find that the stranger had risen up from the floor and had seated himself at the table where she saw him take a shrivelled, mummified hand from his pocket, set it up, and then, one by one, light the fingers. The girl rushed upstairs to warn her master of these extraordinary doings, but she found him and his family all already in a charmed sleep. It was impossible to arouse them; and here she found herself alone in the house with the evil-intentioned stranger and his uncanny movements. She quietly went downstairs again and saw the beggarman exploring the house and collecting articles that appeared to him worth taking. Still on the kitchen table burnt the four fingers of the Hand of Glory, in blue, sickly flames; but the thumb was not burning. To that fact was due the circumstance that one person in the house remained unaffected by the spell.

Stealing on noiseless feet into the kitchen, she blew upon the Hand, but could not blow it out. She poured beer over it, but the Hand only seemed to burn better. She tried water, but that appeared to have no effect, one way or the other. Then she emptied the milk-jug over it. Immediately the place was in darkness, except for the glow of the kitchen-fire. The spell was instantly removed, the sleepers awakened, and the robber seized and afterwards tried and hanged.

Harrison Ainsworth, revelling as always in the horrible, gives us his version of the Hand of Glory in *Rookwood*. In this variant you recognise the nastiness of it, rather than the horror:

From the corse that hangs on the roadside tree
(A murderer's corse it needs must be)
Sever the right hand carefully:—
Sever the hand that the deed hath done,
Ere the flesh that clings to the bones be gone;
In its dry veins must blood be none.
Those ghastly fingers, white and cold,
Within a winding-sheet enfold;
Count the mystic count of seven;
Name the Governors of Heaven,
Then in earthly vessel place them,
And with dragon-wort encase them;
Bleach them in the noon-day sun,
Till the marrow melt and run,
Till the flesh is pale and wan.
As a moon-ensilver'd cloud—
As an unpolluted shroud.
Next within their chill embrace
The dead man's awful candle place;
Of murderer's fat must that candle be,
(You may scoop it beneath the roadside tree)
Of wax and of Lapland sesame.
Its wick must be twisted of hair of the dead,
By the crow and her brood on the wild waste shed.
Wherever that terrible light shall burn,
Vainly the sleeper may toss and turn;
His leaden lids shall he ne'er uncloze
So long as that magical taper glows.
Life and treasure shall he command,
Who knoweth the charm of the Glorious Hand!
But of black cat's gall let him aye have a care,
And of screech-owl's venomous blood beware.

The ancient condition of Merry England was a despotic rule tempered by rebellion and highway robbery, in which the Barons revolted from time to time against kingly encroachments, and the peasantry were generally at odds with both those estates. The woodland tracts that then overspread the greater part of the country were filled with outlaws, of whom Robin Hood, as we have already seen, was a sublimated idealisation, and in those tangled thickets a man, or a body of men, might lurk and exist for years, subsisting upon the deer whom it was then, under the old forest laws, mutilation and death to slay. But with the law already arrayed against them, the outlaws who had been deprived of the very few rights a man of the peasant class might then own, cared little for the fearful penalties that awaited those who took a fat buck and converted it into venison, and valued not at all the punishments that awaited the highway robber. A man proscribed for some

offence, who had then taken to the woods of necessity, might even, for sheer love of the life, elect to remain in them for sport; for the sporting instinct has ever been deeply implanted in the character of the English race, without respect of class. It is largely the sporting instinct, and not so much the actual worth of the quarry, that makes the modern poacher brave the keepers of the squire's preserves.

It was but a step from specialising in unlawful chase of the deer to robbing travellers. The deer-stealers were already Ishmaels, before they had dared so greatly, and they were doubly outlawed after so boldly usurping the hunting prerogatives of kings and nobles. What mattered, then, the taking of a purse; nay, even of a life?

The Legislature early attempted to put pressure upon local authorities, to secure the arrest of robbers, and, as usual, the pressure was exercised through that most vulnerable part, the pocket, the "Achilles' heel" of civilisation. The country (often in later years we find it "the county") was supposed to be responsible for good governance, and if the country was unfortunate enough to be infested with robbers, it was expected to arrest them; or failing that, to be financially answerable for their robberies. We find this specifically provided for by Act of Parliament in 1285, and again in 1354.

But it was impossible in those times, in the sparsely populated country, to suppress robbers, and the rural districts suffered severely in pocket as a result of bold pillaging in the day-time.

In 1509 Margaret Paston, writing from Norfolk, is found nervous of sending gold to London, and telling her husband, then staying in town, that a sum of twenty marks had been paid for a ward, but that the person who paid it "dare not aventure her money to be brought up to London for feere of robbyng; for it is seide heere that there goothe many thefys be twyx this and London." He was therefore to have the money at his coming home.

The county division known as "the hundred" was the area responsible and liable to reimburse losses occasioned in this manner. Thus, *inter alia*, we find the Hundred of Benhurst, in Berkshire, continually assessed to make good the losses sustained by travellers, along what is now the Bath Road, through Maidenhead Thicket, a place whose ill repute was second

only to that of Hounslow Heath. By an Act of Parliament of 1585 (27 Elizabeth c. 13, s. 2) the sum recoverable from the hundreds was limited to half the travellers' loss. The reasons given for this limitation were the distress and impoverishment of the inhabitants by reason of these frequent and severe levies upon their purses. It is evidence of the extraordinary increase of highway robbery at that period. Five years after this enactment, the Hundred of Benhurst paid £255 compensation for robberies committed in the Thicket.

Even so, the liability of the country, the county, or the hundred, had always been limited to robberies committed in daylight. "Between sun and sun," *i.e.* between the setting of the sun and the next morning's sunrise, the highwaymen might work double tides and plunder as they would, and no action for damages would lie against the inhabitants.

Nor could travellers who were robbed on Sunday have any redress. It was particularly enacted by the statute of 1676, known as the Sunday Trading Act, that any one travelling on the Lord's Day did so entirely at his own risk, and was barred from bringing an action. "But nevertheless," the section continues, "the inhabitants of the counties and hundreds (after notice of such robbery to them, or some of them, given, or after hue-and-cry for the same to be brought) shall make or cause to be made fresh suit and pursuit after the offenders, with horsemen and footmen, according to the statute made in the twenty-seventh year of Queen Elizabeth, upon pain of forfeiting to the King's Majesty, his heirs and successors, as much money as might have been recovered against the hundred by the party robbed, if this had not been made."

CHAPTER IV

THE YOUNGER SONS—JUDGE POPHAM—SHAKESPEAREAN HIGHWAYMEN—THE "CAVALIER" BRIGANDS—A SEVENTEENTH-CENTURY RELIGIOUS TRACT

No doubt many of the "highwaymen's" escapades in the times of Henry the Eighth and Queen Elizabeth were the coltish pranks of high-spirited young men of family, or the freaks of university students. To assume a disguise, to buckle on a sword, and then take to the highway, singly or in bands, would be just the kind of adventure to tickle the fancy of such youths, and the danger that lay behind it all was really rather an appetising spice than a discouragement. The tradition of Henry the Fifth, when yet Prince of Wales, robbing on Gad's Hill for pastime, was still current, and Shakespeare had just revived it, and invested the doings of the Prince and Falstaff and their merry men with the glamour of the stage, which even then set the fashion.

Such a young man, according to Aubrey, was John Popham, afterwards Sir John, and Chief Justice of the King's Bench. "In his youthful days," says Aubrey, "he was a stout and skilful man at sword and buckler as any in that age, and wild enough in his recreations, consorting with profligate companions, and even at times wont to take a purse with them."

This wild fellow became, as a member of Parliament and a judge, an extremely severe personage in dealing with the class of people with whom we thus learn him to have associated. Partly his work was the Act of 1589, which prescribed banishment (or, as later times phrased it, "transportation") "into such parts beyond the seas as shall be at any time hereafter for that purpose assigned."

Shakespeare's highwaymen are, as a rule, gentlemen. Such were the outlaws who in the *Two Gentlemen of Verona* waylaid Valentine and Speed

in the forest. They had been banished from Verona and Mantua merely for such trivial and essentially gentlemanly peccadilloes as an attempt to abduct an heiress, and stabbing another gentleman to the heart. Too bad!

They found Valentine so presentable a young man that, finding he had no property to lose, they immediately proposed to make him their captain. They were prepared to do him homage, and be ruled by him. "But if thou scorn our courtesy, thou diest."

Making the best of circumstances—being rather prepared to captain a band of desperadoes than lose his life, Valentine consented, with one proviso:

"I take your offer, and will live with you;
Provided that you do no outrages
On silly women, or poor passengers."

To which the outlaws indignantly reply that they "detest such vile, base practices."

The doings of Falstaff and Prince Hal in their highway robbery exploits on Gad's Hill are classic farce, with elements of probability, although Sir John Fastolf, the original Falstaff, was introduced by Shakespeare without the slightest warranty: the real Sir John having been no dissolute, cowardly old man, but a brave and stern soldier, who had warred nobly for King and country for forty years.

The point of view from which the gentlemen highwaymen regarded themselves is admirably set forth in the play of *Sir John Oldcastle*, produced in 1600. The stage is generally regarded as the mirror of life, and thus, when "Sir John à Wrotham" is made to introduce himself to the audience, by frankly acknowledging he was, "in plain terms, a thief; yet, let me tell you, too, an honest thief," we doubtless have the real mental attitude of the "collectors"—as they were pleased to fancifully style themselves—set forth. He goes on to declare himself, in the good old Robin Hood vein, to be "one that will take it where it may be spared, and spend it freely in good fellowship." A modern company-promoter, of the Whitaker Wright type, might say as much, but even if true, it would not be held an excuse.

The same outlook upon life is observed in *The Cashiered Soldier*, a tract published in 1643. It represents that warrior out of work exclaiming:

"To beg is base, as base as pick a purse;
To cheat, more base of all theft—that is worse.
Nor beg nor cheat will I—I scorn the same;
But while I live, maintain a soldier's name.
I'll purse it, I,—the highway is my hope;
His heart's not great that fears a little rope."

Again, Bishop Earle, in his *Microcosmography*, shows us how the highwaymen were recruited. Speaking of the sorrows of younger sons, and narrating the shifts to which they were often reduced, he says: "Others take a more crooked path, through the King's highway, where at length the vizard is plucked off, and they strike fair for Tyburne."

The biographies of highwaymen given later in these pages, fully illustrate the position of affairs in the succeeding age, and show that the country swarmed with highway robbers after the conclusion of the Civil War between King and Parliament. Many of them were impoverished cavaliers, but the most prominent were only pretended gentlemen, who used any Royalist sympathies they may have had in giving a specious excuse for their misdeeds. Captain Hind is typical of these plundering fellows in the era of the Commonwealth. So many were they, and so formidable, travelling, as they often did, in bands, that it became the business of the troops, at the conclusion of the war, to hunt out all such associated brigands.

On September 17th, 1649, General Fairfax issued a proclamation addressed to the commanders of "every respective regiment of horse," urging them to activity in the apprehension of all robbers, and promising high rewards for everyone captured. To this a Royalist print, the *Man in the Moon*, sarcastically rejoined that the "House of Robbers"—by which the House of Commons was meant—had voted for the next six months a reward of £10 for the taking of every burglar or highway-robber, "the State's officers exempted."

The proclamation, however, had its due effect, for on December 24th, no fewer than twenty-eight malefactors, principally of the classes specified, were all gibbeted together at Tyburn. Among them was "one Captain Reynolds, who was of the King's party in Cornwall, at the disbanding of the

Lord Hopton's army at Truro.... His carriage was very bold, and, as he was going to be turned off, he cried: 'God bless King Charles: Vive le Roi.'"

But they were generally defiant at the last, whether Royalists or mere purse-takers; whether of the seventeenth or eighteenth centuries. Conscience, which makes cowards of all, did not awake and begin to unnerve these candidates for Jack Ketch until the very opening of the nineteenth century.

Thus, in the olden times we find the condemned highwaymen nearly always nursing the grievance of their doom, and speaking of Justice and her emissaries as their "enemies"; as witness Thomas Hill, executed July 19th, 1694. Was he penitent at Tyburn? Not at all. His last words were, "God bless all my friends, and let all my enemies be hanged as I am"; and, adds his biographer "other reflecting and abusive Expressions."

Although it might well seem, after an extensive course of reading in the thoughts and deeds of those times, that the country was entirely populated by two classes: the scoundrels who were always trying to evade Justice, and the officers of the law, continually occupied in tracing them, an unobtrusive residuum of well-intentioned and well-conducted people existed. We do not, it is true, hear much of them, which is only to be expected; but they existed, nevertheless, and were often as anxious to save sinners as any modern tract-distributor.

A curious seventeenth-century four-page leaflet in the British Museum, styled *A Terrible and Seasonable Warning*, shows something of the well-meaning forces, as well as a good deal of the superstition, of the time, in an account of how a young man named Abraham Joiner, aged between seventeen and eighteen, described as a ballast-man, of Shakesby's Walk, near Shadwell church, was saved at the last moment from becoming a footpad or a highwayman. It is nothing more nor less than a seventeenth-century ancestor—and a very badly printed one—of the modern religious tracts produced nowadays by the million, in a rather hopeless endeavour to save hurrying sinners, often too anxiously wondering how they are to live in this world, without troubling about the next.

The young man began to keep bad company, and in especial that of one Ann Turner, who said she must have money, and he must by some means

get it for her. Abraham went home in a desperate frame of mind. He thought of the several ways (none of them honest ones) in which money in a sufficiency might suddenly be obtained; and frightened his mother by saying he must and would get some, even though he asked the devil to help him to it.

"In this Humour," we learn, "he went out to the *Cock and Lyon* in King Street, where there came into A Room to him a Person in a Dark-colour'd Habit, and ask'd him what made him so Melancholly? If he wanted Money, he cou'd help him to it, and bid him meet him the next Night, which he at first told him he wou'd do; but afterwards suspecting it might be the Devil, he told him he cou'd not meet him at the time, then bid him meet him on *Sunday*, behind *Stepney* church, which he consented to do, and, going away, gave him a Pistole in gold (a coin, not a firearm) after which the Young Man grew uneasy in his Mind, and going home show'd his Brother, who advis'd him to throw the Money away, assuring him it could be none but the Devil, which very much terrified the young man, so that he threw the Money away, and was taken with a sudden trembling, and falling on his knees, besought God to forgive him.

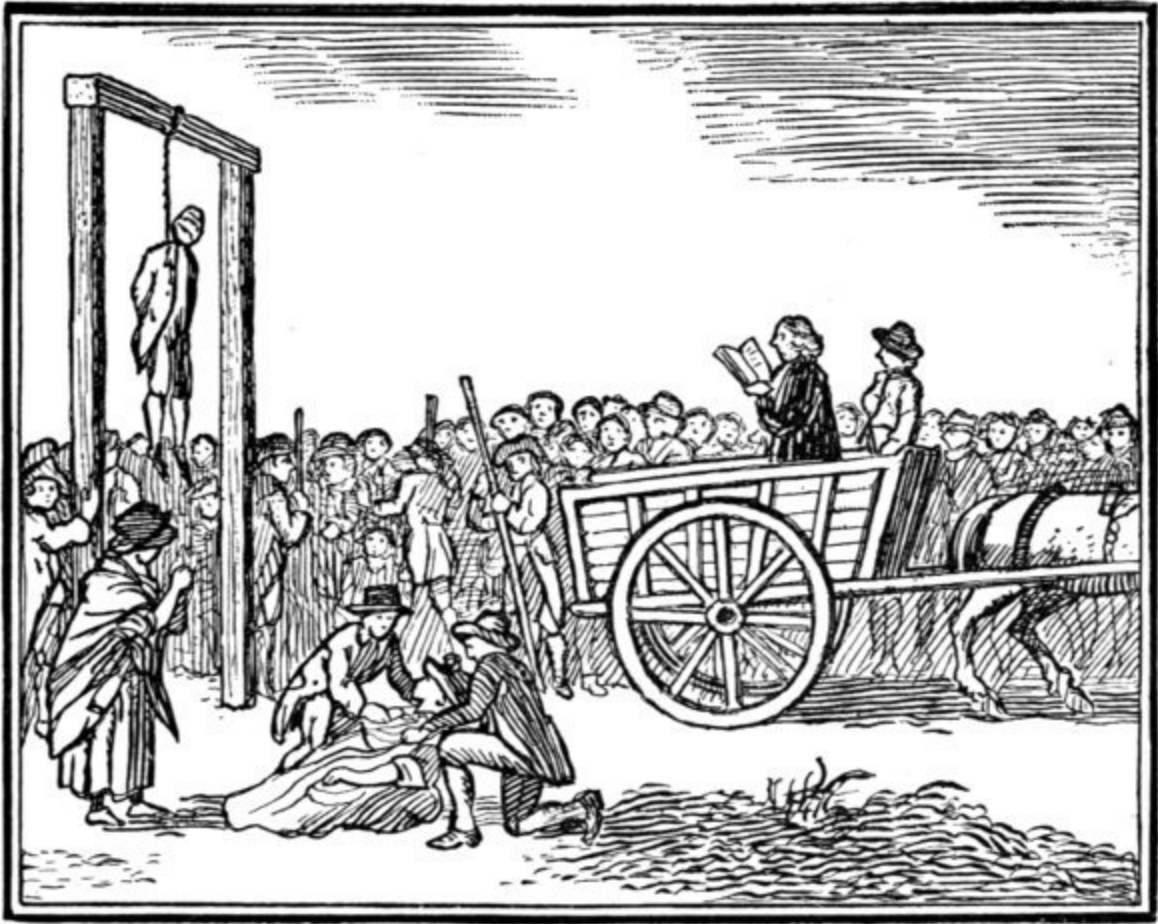
"In this condition, Mr. Constable, the Minister of the Parish, was sent for, and Mr. Symons, who Pray'd by him till the time was over when he had promis'd to meet the Person he had seen, and Mr. Constable and the other Divines us'd many Prayers and exhortations with him, and at length so comforted him that 'tis hoped the Devil will have no further Power over him, if he takes this timely Warning of the Mercies of God."



"A TERRIBLE AND SEASONABLE WARNING."

Then follow "Some of the Prayers." The first page shows a very respectable-looking devil and a very greatly terrified young man; also some black-cassocked clergymen on their knees, very earnestly praying.

A curious broadsheet tract of about a century and a half later, entitled *Wild Robert*, may be fitly noticed here. Like the earlier tract, it was a purely religious publication; but the time had gone by for supernatural terrors to be invoked. Poetry, of sorts, is brought to bear, instead:



THE END OF WILD ROBERT.

THE EXECUTION OF WILD ROBERT.

Being a Warning to all Parents.

WILD ROBERT was a graceless Youth,
And bold in every sin
In early life with petty thefts,
His course he did begin.

But those who deal in lesser sins,
In great will soon offend;
And petty thefts, not check'd betimes,
In murder soon may end.

And now, like any beast of prey,
Wild Robert shrunk from view,
Save when at eve on Bagshot Heath
He met his harden'd crew.

With this fierce crew Wild Robert there
On plunder set his mind;
And watch'd and prowl'd the live-long night
To rob and slay mankind.

But God, whose vengeance never sleeps,
Tho' He delays the blow,
Can in a single moment lay
The prosperous villain low.

One night, a fatal night indeed!
Within a neigh'bring wood,
A harmless passenger he robb'd,
And dy'd his hands in blood.

The direful deed perform'd, he went
To shew his golden spoils,
When vengeful Justice, unawares,
Surpris'd him in her toils.

Wild Robert seiz'd, at once was known,
(No crape had hid his face)
Imprison'd, tried, condemn'd to die!
Soon run was Robert's race.

Since short the time the laws allow
To murderers doom'd to die,
How earnest shou'd the suppliant wretch
To Heaven for mercy cry!

But he, alas! no mercy sought,
Tho' summon'd to his fate;
The Cart drew near the Gallows Tree,

Where throng'd spectators wait.

Slow as he past no pious tongue
Pour'd forth a pitying pray'r;
Abhorrence all who saw him felt,
He, horror and despair.

And now the dismal death-bell toll'd,
The fatal cord was hung,
While sudden, deep and dreadful shrieks,
Burst forth amidst the throng.

Hark! 'tis his mother's voice he hears!
Deep horror shakes his frame;
'Tis rage and fury fill his breast,
Not pity, love, or shame.

"One moment hold!" the mother cries,
"His life one moment spare,
One kiss, my miserable child,
My Robert, once so dear!"

"Hence, cruel mother, hence," he said,
"Oh! deaf to nature's cry;
Your's is the fault I liv'd abhorr'd
And unlamented die.

"You gave me life, but with it gave
What made that life a curse;
My sins uncurb'd, my mind untaught,
Soon grew from bad to worse.

"I thought that if I 'scap'd the stroke
Of man's avenging rod,
All would be well, and I might mock
The vengeful pow'r of God.

"My hands no honest trade were taught,
My tongue no pious pray'r;
Uncheck'd I learnt to break the laws,
To pilfer, lie, and swear.

"The Sabbath bell that toll'd to church,
To me unheeded rung;
God's holy name and word I curs'd
With my blaspheming tongue.

"No mercy now, your ruin'd child
Of heav'n can dare implore,

I mocked at grace, and now I fear
My day of grace is o'er.

"Blame not the law which dooms your son,
Compar'd with you 'tis mild;
'Tis you have sentenc'd me to death,
To hell have doom'd your child."

He spoke, and fixing fast the cord,
Resigned his guilty breath;
Down at his feet his mother fell,
By conscience struck with death.

Ye parents, taught by this sad tale,
Avoid the path she trod;
And teach your sons in early years
The fear and love of God.

So shall their days, tho' doom'd to toil,
With peace and hope be blest;
And heav'n, when life's short task is o'er,
Receive their souls to rest.

The price of this improving publication was one halfpenny, and no one, observing the dramatic picture with which it begins, or reading the verses, will be disposed to think value for money was not given. Let us hope the parents of that age duly profited by the advice given!

CHAPTER V

ENORMOUS CAPTURES MADE BY HIGHWAY GANGS—BRACY'S
GANG—ROBBERIES ON THE ROAD TO NEWMARKET—
ADVERTISEMENTS OF THE PERIOD—AUGUSTIN KING—
PLUNDER AND BATTLE ON THE ST. ALBANS ROAD—
SOLDIERS AS HIGHWAYMEN

MUCH has already been said in these pages of the imaginative character of a good deal to be found in Captain Alexander Smith's *Lives of the Highwaymen*, but at the same time it would not be proper to regard that work as a work of fiction. The amazing adventures of the highwaymen whose careers are treated of there can be readily paralleled in the actual trials of their kind, not only in the periods with which he deals, but at a much later time. The enormous booty they carry off in his pages may seem incredible, but time and again we find, in accounts that cannot be disputed, that the highwaymen did, in fact, secure extremely large sums. Instances might be multiplied indefinitely, if it were necessary to prove the truth of this statement. The trial at Derby in August 1679 of "Twelve Notorious Highway Men, Murderers, and Clippers of Money" is merely one case in point.

These were "Mr." Bracy, evidently superior to most of the gang, Richard Piggen, Roger Brookham, another superior person, one "Mr." Gerrat, John Barker, William Loe, John Roobottom, Thomas Ouldome, John Baker, Daniel Buck, Thomas Gillat, and one Smedley.

Bracy was captain of the gang: the head and brains of it. They broke one night into the house of "Captain John Munday, Esquire," at Morton, near Derby, took away £1200 in gold and silver, also plate, "binding the Esquire and all his Family in their beds, and using great insolences by threats, to make them confess their Treasures."

Two months after this exploit the gang "met" (not, we may suppose, casually) a waggon between Lenton and Newark, in which were several small barrels of money, and others of gold lace. Securing the waggoner, they hauled out the barrels, and, breaking open the barrel-heads with the hatchets they had been careful to bring with them, they secured a booty of eighteen hundred pounds, "which," we are told, "they divided, and so disperst."

Buck, together with a man named Ryley, was shortly afterwards taken at Ockbrook, near Derby. Both were hanged. The rest of the company continued their former practices. Breaking open the house of Lady Jane Scroop, at Everston, near Nottingham, they took £600, "missing two or three thousands by being one day too forward in their Actions." They then must needs quarrel over dividing the spoil. The affair is best told in the words of the original account:

"Upon the discussing of this booty, one of the company and Bracy falling at a difference, they had a small Combate with their Swords, the other cutting the Throate of a Mare that Bracy rode upon, which for swiftness and goodness was hardly to be compar'd in England."

The gang next proposed to raid the house of one Squire Gilbert, at Locko, near Derby, and that of Mr. Garland at Lenton; but in the meanwhile most of them were arrested. Bracy, who at that time had hurried off to his wife's death-bed, at an inn she kept, twelve miles north of Nottingham, was betrayed by one of the servants of the inn, who informed the Justices that the highwayman who was being sought was in the house. The inn was presently surrounded, and Bracy's son, looking out of a window, saw there was little chance of his father escaping. What chance there remained was tried. Taking a horse out of the stable at the back, he bid his father mount, leap the fence, and make a dash for it. It was a poor chance, and was made worse by the horse refusing the jump. A sheriff's man then shot the horse dead, and with a second bullet wounded Bracy himself. The highwayman, however, continued the combat until he sank, mortally wounded. He was then carried to a bed in the inn, where he died.

The remnant of this numerous band were indomitably active. Three of them beset two gentlemen in Needwood Forest, bidding them "Stand and

deliver!" Refusing, one of them was shot; but the other, with sword and pistol, made a brisk resistance, until one of the thieves, creeping up behind, ran him through the body.



THE FIGHT IN NEEDWOOD FOREST.

These three were not long afterwards arrested for clipping money. Tried and convicted of that offence, itself involving capital punishment, they had no hesitation in confessing their other crimes.

Among others at that time under arrest were Piggen and Baker. Piggen turned King's evidence, and was pardoned: Baker also being pardoned, but why, we do not learn. Among the facts deposed to by these convicted criminals was that the gang were accustomed to meet at an inn called the "Cock," near St. Michael's Church, Derby, kept by a widow named Massey and John Baker, her son-in-law. There they had clipped in one night so much as £100. A boy of fifteen years of age was employed in the house, and by some means accidentally learnt too much of the gang's business. They thought him too dangerous, and so murdered him and buried his body in the cellar.

Where wealth gathered, there were the highwaymen also. There was no road more frequented by wealthy men in the reign of James the First and that of Charles the Second than the road to Newmarket. The Court was frequently there for the race-meetings, and gamblers of all kinds were naturally attracted. Many a gamester who had lost his all on horses or by cards at Newmarket took as a matter of course to robbing other sportsmen: either those hasting down to try their luck, or those fortunate ones who were returning home with pockets bulging with their winnings. One William Fennor, who in 1617 published a pamphlet called the *Competers' Commonwealth*, has much that is interesting to disclose about these reckless blades. A "competer" was, of course, one of the gamesters aforesaid; and any of them who had the misfortune to lose his money went immediately, as he tells us, upon the Heath, to replenish his pockets. They were by no means proud, and did not disdain to rob rustics of their pence. "Poor Countrie people," he says, with bitter satire, "cannot passe quietly to the Cottages, but some Gentlemen will borrow all the money they have." Tyburn Tree and Wapping Gibbets, he added, had "many hangers-on," gathered in from among these gentry.

Fennor's disclosures did not end these practices. As the fame and vogue of Newmarket increased, so also did the highway robberies on the Newmarket Road. The culminating point of it all appears to have been a pitched battle which, according to the *Domestic Intelligence* of August 24th in that year, took place at the Devil's Ditch, through which the highway runs on to Newmarket Heath. Five highwaymen had here robbed a coach and taken £59, and a very considerable booty in the way of gold lace, silks, and linen. Before they could make off with the plunder, the exasperated

countryfolk were roused, and were stationed in a body in the opening of that tall and steep bank, impracticable for horsemen, the only way by which the Heath may be entered or left. The highwaymen were thus completely shut in, and could only escape by abandoning their horses: an unthinkable alternative. Had they retreated, they would have been captured in Newmarket town. The only thing to be done was to make a dash for liberty. "Knowing themselves Dead Men by the Law, if they were taken," says that early newspaper, "they charged through the Countrymen, and by Firing upon them Wounded four, one of which we understand is Dead of his Wounds." Thus they got clear away: the whole incident leaving upon the mind a very vivid impression of a lawless and ill-policed country.

Not only were these men determined in resistance. They were ready to revenge such of their comrades as had been unfortunate enough to be captured; as we see from the diary of Sir John Reresby, who, writing in February 1677, says: "I went to London (from York) well guarded, for fear of some of my back friends and highwaymen, having caused the chief of them to be taken not long before."

The newspapers of that time were full of advertisements offering rewards for the recovery of property, or the apprehension of thieves. Some of them afford amusing reading. Thus, in the *London Gazette* of December 1st, 1681, we find the following:

"Robb'd the 10th of Nov. last, from Mr. *Joseph Bullock* of *Bristol*, on the Road between *Hungerford* and *Newbury* in *Barkshire*, one Silver Watch and Case, there being on the backside of the Case an Almanack, a Hanger with a Plate Hilt, a Buff Belt, with Silver Buckles; by Three Men, the one a middle-siz'd Man, full Fac'd, a short White Wigg much Curl'd in an old Cloth-colour riding Coat, on a Flea-bitten Horse, about 14 hands high, his Brows Brown; the other a middle-sized Black Favour'd, on a Grey Horse, above 14 hands high, with Black Hair or Wigg, and thin Favour, the other a full set Man, thin Favour'd with curled dark Brown Hair. Whoever can discover the Persons aforesaid to Mr. *Bullock* of *Bristol* or at the *Three Cups* in *Breadstreet*, *London*; (the said Robbers having killed one *John Thomas*, the said Mr. *Bullock's* Servant,) shall have their Charges, and ten pounds reward."

Here, in the matter-of-fact language of an advertisement, we see one of those obscure tragedies that were always occurring on the roads: bloodshed that for the most part called in vain for vengeance.

Again—this time in 1684—the *London Gazette* is used as the medium, in an effort to obtain justice, but it is not to be supposed that there were any results. He must have been an extremely sanguine advertiser to have offered so speculative a reward for information so greatly desired:

"On Whitsunday in the Evening was committed a great Robbery by four Highwaymen within half a mile of Watford Gap in the County of Northampton, to the value of above Eight score Pounds taken from some Passengers. They were of indifferent stature, their Coats were all turned up with Shag, one had a blew Shag, and wore a Perriwig, the others wore their own Hair; They had two Bay Naggs, a Bay Mare somewhat battered before, and a Sprig Tail Sorrel Mare, which they took away from one they robb'd, and a black Nag; one of them had short Holsters to his Saddle without breast-plate, another a pair of Pistols in his Saddle Cover. Whoever gives notice of the said Robbers to Joshuah Snowden, Confectioner at the Belsavage Gate on Ludgate Hill, or to Henry Keys at Watford Gap Inn, shall be well rewarded."

Even University graduates were at this period known to occasionally present a pistol upon the road. Such behaviour was by no means uncommon among collegers in earlier centuries, but we read with astonishment how Augustine King, a graduate of King's College, Cambridge, was publicly advertised in the *London Gazette* of December 1st, 1687, among other highwaymen, as follows:

"There is likewise abroad one Augustine King, formerly convicted at Cambridge; a Notorious Highway Robber, who made his Escape from the *Gatehouse*. He is a lusty fat man, about 31 or 32 years of Age, fresh-coloured, full Ey'd, his own Hair, lank, inclinable to black: he hath several more in his Company, who, some, or most of them, are well-known to some Inn-keepers not far distant from *London*, who will do well to cause them, especially *King*, to be taken before next Sessions at the *Old Bayly*, for their own Indemnity."

King would seem to have actually been captured as a result of this public announcement, for we find that he was executed in the following year.

The road on to St. Albans witnessed astounding doings. On November 9th, 1690, seven highwaymen robbed the Manchester carrier of £15,000, tax-money, which was being conveyed under what is described as a "strong" escort, to London. The robbery was coolly planned and with equal coolness executed. At their leisure the highwaymen arrived on the scene, fully advised of the approach of the carrier, and proceeded to seize and rob all wayfarers and then securely tie them to trees. Having thus made sure of not being interrupted, they were ready for the chief booty of the day. Dashing among the strong escort, they overcame them in a fight, whose details are not reported, and after taking the money killed or hamstrung eighteen horses, to render pursuit impossible.

It appears that this was looked upon as a Jacobite and Roman Catholic plot, and that two Roman Catholics were arrested on suspicion and committed for trial; but the rest is obscure. Some suspicious persons might even regard the whole affair as a put-up job between the escort who thus betrayed their trust and shared an excellent haul.

Again, at London Colney, near by, on the night of August 23rd, 1692, the highwaymen performed a notable feat; robbing none other than the great Duke of Marlborough, the foremost military genius of the age, of five hundred guineas.

Three months later a party of highwaymen—no doubt the same dare-devil rogues—secured between £1,500 and £2,000 out of a waggon "near Barnet," and in November the Oxford coach was pillaged in mid-day, after a bloody fight. About the same time, we read in Narcissus Luttrell's diary, fifteen butchers, going to Thame market to buy cattle, were robbed by nine highwaymen, who carried them over a hedge, made them drink King James's health in a bottle of brandy, and bid them sue the county: a remedy open to travellers who were robbed on the roads in daylight "between sunrise and sunset."

Military force was found necessary for the suppression of these outrages. Detachments of Dragoons were sent out all round London and posted at a distance of about ten miles out, on the great roads. The captures effected by

these patrols were numerous; but at some spot not more clearly identified than as being "near Barnet" they had an armed encounter with the band led by "Captain" James Whitney, December 6th, 1692. One Dragoon was killed, but Whitney was captured and duly executed, and the roads, in the north, at any rate, for awhile had peace.

Not, however, for very long. Robberies may not have been again committed on so astonishing a scale; but highwaymen reappeared when the Dragoons were withdrawn, and found their occupation, not only lucrative, but pretty safe.

But as the years went on, things grew steadily worse. Unemployment was the principal cause of the enormous increase of highway robberies in 1698. Highwaymen, as we have already seen, were numerous before, but they now grew more than ever daring. The Peace of Ryswick, which had the year before ended an inglorious war, caused great numbers of soldiers to be disbanded, and, finding no livelihood to be obtained in honest work, they naturally chose to plunder the travellers whom they observed journeying to and from London, often with well-filled purses, ready to become the property of any bold fellow who could command a good horse, a pistol or sword, and courage to stop men on their lawful business. Near Waltham Cross, bandits to the number of thirty built themselves huts amid the leafy coverts of Epping Forest, and, without waiting for the kindly obscurity of night, came forth at all hours with deadly weapons and held up the traffic along the Cambridge and the Newmarket roads.

They did not hesitate to slay, and often the bodies of slaughtered wayfarers affrighted the next travellers, who, warned by such sights of the futility of resistance, rendered unto these highway Cæsars whatever they had about them: satisfied to escape, with empty pockets indeed, but with a whole skin. For a while this settlement of reckless men was abolished by a raid, under the direction of the Lord Chief Justice, but the expedition, raiding in the interests of law and order, had not long departed when the outlaws again occupied the spot. They even had the impudence to send a written and signed defiance to Whitehall. There they went too far, for that would have been no Government worthy of the name which consented to receive such a document and to idly pass it by. Another Dragoon expedition, somewhat similar to that of 1692, was equipped, and while

some of the soldiers patrolled the roads in that direction, others encamped for a time in the Forest itself. Thus it is probable that soldiers still in service were employed against those others not so fortunate, who had been disbanded and obliged to seek these ways of existence.

This fraternity was certainly broken up, and we do not hear again of such numerous, or such highly organised, bands; but when the Dragoons were again withdrawn, the roads once more became extremely dangerous.

The Dragoons themselves were, individually, not above suspicion. No doubt they learned some useful things when engaged on this kind of duty; and when such unskilled persons in the use of arms as ruined gamesters took to the road to replenish their pockets, it was perhaps not remarkable that soldiers should seek to add to their scanty pay by like means. The Guards regiments numbered many experts in the "Stand and deliver" way. Opportunity helped them. They were already armed, and, as they did not live in barracks until about 1790, and were merely quartered on the inhabitants of London and Westminster, they were free at all hours of the night to "labour in the calling of purse-taking."

Thus we read of a quite typical affair in January 1704, on Hounslow Heath, in which James Harris, a trooper in the Horse Guards, was principally concerned. It seems that on the 26th of that month a certain George Smith, Esquire, and a Major Wade, of Bristol, were travelling westward in a postchaise. They halted at the "Pack Horse" at Turnham Green, "for refreshment," and appear to have refreshed so well that by the time their equipage was crossing Hounslow Heath they had fallen fast asleep. From this slumber of repletion they were rudely awakened by stern voices saying, "D—n you, give me your money!" and "D—n you, give me your watch!"

"Who's that a-calling?" asks the songster. In this case it was James Harris and a companion, who robbed them effectually after a rough-and-tumble with the servant of Mr. Smith, who sprang at Harris and pulled him off his horse. There they struggled, and presently the highwayman's mask was torn off, disclosing his scarred face. Mr. Smith then declared he would give up all his valuables if the highwayman would spare his man's life, and the affair ended.

Mr. Smith afterwards, hearing that a man answering to this description had been arrested on suspicion of being concerned in other robberies, came forward, entirely in the public interest, and identified him at the military mews. "Sir, do you know me?" Harris impudently asked, advancing upon him with insolent braggadocio. Mr. Smith did.

Harris was indicted at the Sessions on February 28th, and found guilty, but was afterwards reprieved.

Such lenient treatment was not calculated to render the highways more safe, and so especially dangerous became the road between Shoreditch and Cheshunt that the turnpike men were in 1722 provided with speaking-trumpets, in a singular effort to warn travellers and one another "in case any Highwaymen or footpads are out." It does not appear exactly how this idea was worked, or if travellers were supposed to wait until such highwaymen or footpads retired: but, according to a newspaper report of that time, the scheme was successful, for we read: "We don't find that any robbery has been committed in that quarter since they have been furnished with them, which has been these two months."

Other roads and suburban districts to the east and north-east of London continued to be extremely dangerous. In the history of Hackney we read, for example, of numerous highway robberies, burglaries, and murders, in a long series of years. The neighbourhood of the then almost trackless Hackney Marshes no doubt was a predisposing cause for this exceptional ill-repute. Here again, we find that soldiers were often the criminals. On November 23rd, 1728, the house of a Mr. Wood, a farmer, near Hackney, was broken open by half-a-dozen fellows, who seized and bound all the family. The account then goes on to say that, "They had the good conduct to take off their coats that nobody might know what regiment they belonged to, and robbed in their red waistcoats only, but left a cockade behind them. It is supposed they belonged to the Dragoons; but those gentlemen (it is humbly presumed) ought not to leave their cockades behind them when they go upon such expeditions, such things being of no use but upon reviews."

CHAPTER VI

"WHO GOES HOME?" IN THE HOUSE OF COMMONS—FOOTMEN
TURN HIGHWAYMEN—SIR SIMON CLARKE—A MERRY
FREAK AND ITS TRAGICAL CONSEQUENCES—AMAZING
POLTROONERY OF TRAVELLERS—ADVERTISEMENTS OF THE
PERIOD—HIGHWAY ROBBERY IN PICCADILLY

AN old-world survival, heard every night in the lobbies of the House of Commons during session, is that of the cry, "Who goes Home?" When the House rises, and the legislators, who have left their brains outside and have voted "as their leaders tell 'em to" are dispersing, the stentorian shout of "Who goes Home?" passes from policeman to policeman, along corridors and down staircases, until at last it reaches the coachmen and the cabmen waiting in Palace Yard. The cry means nothing now, except that the sitting is over, but it originated in the ill-guarded condition of the streets and of the suburbs some hundreds of years ago, when even members of Parliament were not safe from highwaymen and footpads, and when at that call they assembled in little bands, often under the protection of the linkmen, to journey together for mutual protection to their several destinations.



"WHO GOES HOME?"

Those were the times when Londoners, travelling at night westward from Hyde Park Corner, where the last outpost of civilisation, in the shape of the ultimate watchman's box, was situated, assembled there in parties, armed with bludgeons and blunderbusses, and, so fortified, came thankfully to their destinations in one or other of those solitary country mansions, whose high-walled gardens and heavy doors arouse the astonishment of those modern observers who do not realise the old necessity that existed for residences so situated being planned very much after the style of block-houses in a hostile country.

Nor was it only by night that the fringes of London were made dangerous by highwaymen and footpads. Hyde Park was a fashionable resort, even under the Commonwealth, but even in the early years of the succeeding century it was a dangerous place, as we learn from the following item in Narcissus Luttrell's diary, only one among many such, under date of 1704:

1704. "A Gentleman going from St. James's to Kensington was met and attacked in Hide Park by two Foot Pads, who took from him his Sword, Watch, Perriwig, and Rings, in all to the value of £130, and left him in a deplorable condition."

The highwaymen who terrorised travellers from about 1720 and onwards were still recruited from the ranks of younger sons, from broken gamesters, and from the army; but about this time they were very largely reinforced by a class of men now extinct. The noblemen and the wealthy of the eighteenth century kept up establishments that have long since become things of the past. The "running footmen," for example, who were a feature in every peer's household, trotting in advance of my lord's carriage, are only to be found in books on bygone usages. The Duke of Queensberry, "Old Q," kept the last of them, and he died in 1810. From the footmen, "running" or other, the coachmen, and the other servants of nobility in that age, the roads were very largely peopled with highwaymen. These men had learned in service to imitate all the vices and none of the virtues (although they were few enough) of their masters. Their imitation chiefly led them into gambling, and when they lost their places through their failure to do their duty, and sometimes the robbery of plate and money, that commonly resulted from their devotion to cards and drink, there was nothing easier than to take to the road. They had learned, in their association with the great, something of deportment, they could generally ride a horse, and a cast-off suit of my lord's fully furnished them, in the bad light of a winter's day, with the appearance of gentlemen. Such at that period were many of the "Knights of the Road"; and thus, in spite of the glowing accounts commonly given of the mid-eighteenth century highwaymen, it is not surprising to find that they were, as a general rule, merely sordid fellows, whose idea of repartee was the cold muzzle of a pistol and a "Deliver instantly": embellished with a volley of oaths.

But now and again we happen upon some pleasing play of fancy; as, for instance, when Harry Simms, a really dashing highwayman who was well known as "Gentleman Harry," came upon a gentleman in a postchaise. Harry rode furiously always. "Don't ride your horse so hard, sir," said the gentleman, "or you'll soon ride away all your estate."

"Indeed I shall not," returned Gentleman Harry, "for it lies in several counties."

He then bade the traveller deliver what he had about him, which proved to be over a hundred guineas, and having realised so much of his widely distributed estate, he made off in search of fresh adventure. He found plenty, before he was finally captured at Dunstable and hanged in June 1747.

"Gentleman Harry" was but a gentleman by the popular recognition accorded his dashing ways; but a real, officially recognised gentleman was at the same time upon the road; no less a personage than Sir Simon Clarke, Bart., who, in company with a certain Lieutenant Arnott, scoured the roads of Hampshire for a brief space. The Baronet was brought to trial at Winchester and convicted, but so impressed were the High Sheriff and the grand jury by the threatened scandal of a Baronet, even though merely a bad one, being hanged, that they petitioned the King on the subject, and Sir Simon Clarke was reprieved *sine die*, "which," says the contemporary chronicler of these things, "implies for ever."

There was, however, a certain blind fury about the ways of Justice at that time, which in general boded ill for evil-doers. The abstract theory of Justice eliminates the idea of revenge, and capital punishment for all manner of trivial offences was inflicted, less from any real sense of the enormity of the crimes, than with the object of protecting Society. Society could not adequately be protected in those days by the primitive forerunners of our police, and so, when by chance any criminal was captured—and the capturing of them generally was a chance affair—Justice usually made a terrible example of them, by way of warning. It was only as times grew gradually more secure that it was imagined justice could really afford to dispense with these examples, which were fondly thought to be deterrents. Capital punishment was then the best conceivable warning to others *not* to

go and do likewise, and the subsequent exhibition of the criminals' bodies dangling from gibbets was the next best; but the very frequency of these loathsome exhibits rendered men callous and by familiarity blunted the edge of all these practical warnings Society thought itself bound to give, for its own protection.

Private influence and class interests might now and then be powerful enough to procure the reprieve of a highwayman in the mid-eighteenth century, but a due sense of what was owing to the middle classes generally forbade lenient treatment. A pretty face, however, and persistent pleading could produce wonderful results.

There was no sense of humour in justice at that period, as may be clearly seen in the case narrated by Silas Told, the earnest Wesleyan who in 1744 began to thrust himself into the fearful prison atmosphere of Newgate, and to wrestle there with condemned prisoners for their souls, in surroundings of the utmost brutal indifference.

It seems that during the riotous proceedings accompanying the election of a member of Parliament for Chelmsford, four young men of good family had grown so merry with drink that they went out upon the country road and played the dangerous game of highwaymen. In the course of this drunken freak they robbed a farmer, and were recognised and arrested, being afterwards sent to Newgate, tried, and capitally convicted. Their names were Brett, Whalley, Dupree, and Morgan. The last-named happened at the time to be engaged to Lady Elizabeth Hamilton, daughter of the Duke of Hamilton. The young lady was stricken with grief, and frequently visited her unlucky sweetheart in prison, and "Like the importunate widow set forth in the Gospel," says the good Told, "she went daily to His Majesty, as also did others at her request, and pleaded with His Majesty for the life of Mr. Morgan; but at first, His Majesty, considering it a point of injustice as well as partiality, would by no means attend to her plaintive petitions. Another consideration was that they were all persons of dignity and fortune, and could not plead necessity to palliate the enormity of the robbery, as many unhappy sufferers could; therefore His Majesty said his subjects were not to be put in bodily fear and suffer the loss of their property merely through a capricious, wanton whim. However, the morning before the execution, Lady Betty Hamilton appeared before His Majesty and fell upon

her knees (I suppose in tears too). 'My lady,' said His Majesty, 'there is no end of your importunity; I will spare his life, upon condition that he be not acquainted therewith till he arrives at the place of execution.'

In the result, the unfortunate Brett, Whalley, and Dupree, who had not high-born sweethearts to plead for their lives with Royalty, were hanged. Morgan followed in the cart, and the sheriff did not produce the order for respite until it was at the foot of the gallows.

Silas Told describes the actual scene. "'Tis hard," he says, "to express the sudden alarm this made among the multitude; and when I turned round, and saw one of the prisoners out of the cart, with his halter loose, falling to the ground, he having fainted away at the sudden news, I was instantly seized with a great terror, as I thought it was a rescue, rather than a reprieve; but when I beheld Mr. Morgan put into a coach, and perceiving that Lady Betty Hamilton was seated therein, in order to receive him, my fear was at an end, and, truly, I was very well pleased on the occasion."

But no one seems to have been very greatly scandalised at the exceedingly hard measure meted out to the others, who had no charming sweethearts to plead for them, but who, nevertheless, certainly ought to have been reprieved with Morgan, who by no means deserved his good fortune; for he entered upon a wild life, and was observed, six months later, gambling with a fraudulent bankrupt, who himself was presently hanged.

Some thirty years earlier, in 1722, to be precise, a man named John Hartley, who had been convicted and condemned to death for robbing upon the highway as a footpad, had his life begged by an extraordinary deputation of six young women, who went, dressed in white, to plead with the King at St. James's Palace, for a reprieve. Hartley's crime would in our own day be considered severely punished with the award of six months' hard-labour, for he had merely felled a poor journeyman tailor, gone over his pockets, and, in a furious rage, because he found no greater sum than twopence, stripped him of every stitch of his clothing, tied him to a tree, and made off with this singular booty. It was, no doubt, an assault, aggravated by exposing the unfortunate tailor to the bitter blast; but that a man should die for twopence, and a bundle of not very desirable clothes, seems a punishment altogether beyond the bounds of reason. Yet, at a

period when a man might be hanged for merely stealing a handkerchief, without any aggravated assault, this was not considered unreasonable. "Society must be protected," in effect, said the law; and if Society could not police the streets and the roads with living police, and so prevent crime, it took care that gallows and gibbet should display unmistakable evidence of its readiness to avenge it.

There must have been some extraordinary attraction about John Hartley, in spite of his mean and paltry occupation of a footpad, for the young women who went in white to beg for a reprieve were eager, if their prayer were granted, to cast lots among themselves for the honour of being his wife. But it was not to be. The reprieve was refused by the King in person, who told the hopeful young women that he thought hanging would be better for him than marriage.

Their hazardous calling begat in the gentlemen of the high-toby a ghastly kind of humour. Thus, when that unholy trio, Christopher Dickson, John Gibson, and Charles Weymouth, united in the not very desperate job of robbing a poor old man, who proved to have nothing on him but the suit of clothes he stood up in, and a pair of spectacles; and when Dickson would have taken even these from him, Gibson intervened. "Give the old fellow his spectacles back," he said; "for, if we follow this trade, we may assure ourselves we shall never reach his years, to make use of them." True enough: they were hanged soon afterwards, and never required any aids to eyesight.

The impudence of the highwaymen is sometimes so unconsciously extravagant, that it is on that account alone extremely amusing. They felt it an intolerable grievance when they happened upon purses not particularly well lined, and resented it hotly. An instance of this may be found, not in any irresponsible novel, or other work of imagination, but in the sober pages of the *Worcester Journal* of September 29th, 1738, where we learn that in the early morning of September 21st, between the hours of four and five, the "Flying Bath Coach" was stopped by two footpads, about a mile on the London side of Newbury. There were five passengers in the coach, all of whom these daring adventurers robbed, without being resisted in the least. While one of them held the horses' heads, the other interviewed the passengers.

From a Sardinian gentleman he took a purse of guineas and a rich scimitar that might have been profitably employed by the Sardinian gentleman, one would have thought, about the robber's head and body; from Captain Willoughby of Abchurch Lane, twenty-six shillings and—oh! degrading—his coat and periwig; from Mr. Grubb, a distiller, of Bishopsgate Street, twenty-five shillings; from Mr. Rawlinson, High Constable of Westminster, three half-crowns, together with his periwig and silver stock-buckle; and from Mr. Pratt, proprietor and coachman of the "Flying Coach," four guineas, and his silver watch. He threatened every minute to blow out their brains with a horse-pistol he flourished, and although he had succeeded, without any trouble, in securing a not inconsiderable booty, cursed them violently, saying, "gentlemen were not obliged to be at the expense of powder and ball, and likewise a long attendance on the road, to lose their time for so slender a profit."

To frighten travellers by these outrageous methods was a duly calculated part of the business. We have, in the pages of Borrow's *Romany Rye*, the theory of violent language and violent behaviour on the part of the highwaymen duly expounded by the ostler of the unnamed inn mentioned in chapter xxiv. This ostler, a Yorkshireman by birth, had seen a great deal of life in the vicinity of London, to which he had gone at a very early age. "Amongst other places where he had served as ostler was a small inn at Hounslow, much frequented by highwaymen, whose exploits he was fond of narrating, especially those of Jerry Abershaw, who, he said, was a capital rider." Abershaw, he would frequently add, however, was decidedly inferior to Galloping Dick, who was a pal of Abershaw's. I learned from him that both were capital customers at the Hounslow inn, and that he had frequently drunk with them in the corn-room. He said no man could desire more jolly or entertaining companions over a glass of "summat"; but that upon the road it was anything but desirable to meet them: there they were terrible, cursing and swearing, and thrusting the muzzles of their pistols into people's mouths; and at this part of his locution the old man winked and said, in a somewhat lower voice, that upon the whole they were right in doing so, and that when a person had once made up his mind to become a highwayman, his best policy was to go the whole hog, fearing nothing, but making everybody afraid of him; that people never thought of resisting a savage-faced, foul-mouthed highwayman, and if he were taken, they were afraid to

bear witness against him, lest he should get off and then cut their throats some time or other, upon the roads; whereas people would resist being robbed by a sneaking, pale-visaged rascal, and would swear boldly against him on the first opportunity: adding, that Ferguson and Abershaw, two most awful fellows, had enjoyed a long career; whereas, two disbanded officers of the army, who wished to rob a coach like gentlemen, had begged the passengers' pardon, and talked of hard necessity, had been set upon by the passengers themselves, amongst whom were three women, pulled from their horses, conducted to Maidstone, and hanged with as little pity as such contemptible fellows deserved. "There is nothing like going the whole hog," he repeated, "and if ever I had been a highwayman, I should have thought myself all the more safe; and, moreover, shouldn't have despised myself. To curry favour with those you are robbing, sometimes at the expense of your own comrades, as I have known fellows do, why, it is the greatest——"

"So it is," interposed the postilion.

The newspapers of those times afford deeply interesting reading. Very few of them but contain some startling item of highway robbery, or news of the capture or trial of the highwaymen who dared even to ply their trade within sight of the streets. It seems so very long ago, and it all has an extraordinary air of unreality. Even although you turn over the small quarto and foolscap pages of those daily and evening, or weekly or bi-weekly sheets, these things seem the stuff that dreams are made of; but if the items of news give that effect, certainly when you turn to the advertising columns, you feel once more that you are in touch with actualities. The same quacks, or rather their great-great-grandfathers, are puffing the same kinds of goods, and even the blackguard fellows who figure, with their own "brainy" or impudent faces, in the advertising pages of twentieth-century popular magazines, and successfully gull hundreds of thousands of simpletons, have their ancestors posturing in these yellowing sheets. They are not so boldly "displayed," for the mechanical possibilities of the age did not permit of it, and they of necessity appealed only to hundreds, instead of the hundred thousand; but they are at one, in all essentials, with the creatures who nowadays make "this unparalleled offer to YOU," and rudely point a finger at you out of the page. In the *Grub Street Journal* for 1737 and succeeding years, and in its numerous contemporaries are to be found advertised the "greatest Restorative in the world," cures for consumption, marvellous

literary works, without which life would be a blank, and a certain Dr. Newman's vile electuaries. Dr. Newman advertised largely and long, and he generally included a quaint little woodcut of himself, seated at a table, and with a box of his beastly pills (comparatively the size of a saucepan) on the table beside him, with a bottle of his medicine, apparently supplied in two-gallon carboys, keeping it company. He is the ancestor, you perceive, as you observe him staring out of the page, of all those modern pushful persons, who seem to think that by picturing themselves in their advertisements of how to add to your stature, to add to your purse, or turn your nose down, your ears in, to grow stouter or leaner, or what not, their statements are by some mysterious means fortified and endorsed.



DR. NEWMAN AND HIS PILLS.

The quaintest things are advertised in these old journals. A coachman in Long-Acre has devised a bullet-proof postchaise, or chariot, in which "any Gentleman may travel with Safety and not less Expedition than heretofore." It is claimed to be proof against any weapons carried by highwaymen.

Mr. Lott, of Maidstone, who, in several of his advertisements, "Begg leave to acquaint all Gentlemen and others (others!) that he has taken a large House in Beer-Cart Lane," advertises sporting and other guns, and has a very choice assortment of pistols "for Gentlemen travelling," perhaps also—who knows?—purchased by highwaymen on the look-out for those travelling gentlemen. His advertisement is embellished most remarkably with a somebody, whether gentleman or highwayman, it would be difficult to say—but it looks not altogether unlike a conventional representation of the devil. On due reconsideration, however, it would appear to be a sportsman, for he is accompanied by what may be taken for a dog. What kind of sport he expects to get with the gun he holds in his left hand, with the remarkable kink in the barrel, it would be impossible to say; but the pistol he flourishes in his right looks lethal enough to do the business of any highwayman that ever patrolled the roads and spoke with the coaches.



EIGHTEENTH-CENTURY ADVERTISEMENT.

Even in those times, there were people who strove to abolish capital punishment; and the advertisement columns of these old journals bear witness to the fact, in the announcement of a pamphlet, priced at only sixpence, displaying arguments in favour of discontinuing the death-penalty. On one occasion it is printed next to a paragraph which records

briefly how a highwayman, disappointed at not getting sufficient plunder, shot a poor traveller on the road near Staines. "We hear," says the journal, "that the man has since dy'd of his Wounds." This curious juxtaposition looks uncommonly like a sly example of editorial sarcasm at the expense of the excellent advertiser: a hint after the style of the sardonic French philosopher's comment upon the similar proposal to remit the death penalty upon murderers: "*que messieurs les assassins commencent.*"

The newspapers and the magazines alike contain the most startling commentaries upon life as lived in London during the eighteenth century. Thus we read, in an obscure paragraph, how the French mail was robbed in Piccadilly, by the valise containing the bags being cut off the postchaise. The occasion was not so exceptional that it would demand more than a few lines. But in those days newspapers had not discovered the way of exploiting news for all it was worth, and more, by the twin arts of the artful headline and the redundant adjective.

Again, it was late in September 1750, Horace Walpole tells us, and he was sitting in his dining-room in Arlington Street, close upon eleven o'clock one Sunday night, when he heard a loud cry of "Stop thief!" A highwayman had attacked a postchaise in Piccadilly, at the corner of Arlington Street, and, being pursued, rode over a watchman and almost killed him. He escaped, of course.

Across the way, on the west side of Berkeley Street, the curious sunk thoroughfare, known as Lansdowne Passage, (the name as painted up is spelled wrongly, without the concluding "e") dividing the gardens of Lansdowne House and the Duke of Devonshire's mansion, is connected with a highwayman story of some eighteen years later. The entrance to this passage-way for pedestrians is divided by an iron bar, which renders it impossible for anything more bulky than a man to squeeze through, and there are even some particularly stout persons who might find it difficult to pass. The passage conducts to Curzon Street, and is at such a low level that a flight of steps leads down to it, through the narrow opening.



LANSDOWNE PASSAGE.

The iron bar dates from about 1768, and was placed there immediately after the sensation caused by a mounted highwayman, who, having committed a robbery in Piccadilly, evaded his pursuers by riding up Berkeley Street and down the steps of Lansdowne Passage, and so through it and into Bolton Street, at a gallop.

When such things as those just narrated were possible, it is only a little more surprising to read how Sir John Fielding, the Bow Street magistrate, could raid a masquerade ball, on March 6th, 1753, in search of

highwaymen. He had received information that some of the profession would be present, and went with his men and entered the gaming-room, and obliged all the company to unmask and give an account of themselves. "It is supposed," says the *Gentleman's Magazine*, "those fellows had notice of his coming before he could get upstairs, and so made off in the crowd, for none of them were taken." There had been deep gaming that night, and a plentiful circulation of bad guineas.

It is amazing to modern readers who read of the notoriety in which the highwaymen often lived, that they should have been suffered to appear in public so frequently, and yet their profession to be so well known. At Ranelagh, at Vauxhall, at the fashionable coffee-houses they were found, enjoying the gaieties of the town, and reading, no doubt, in the newspapers of the day, accounts of their own enterprises of a day or two earlier. There was a certain or an uncertain period of grace allowed most of these fine fellows, whose careers, long or short, were very largely lengthened or shortened by the amount of the rewards that presently began to be offered for their apprehension. The convenience or safety of the long-suffering public was never consulted. It never is. Then and now, the public existed, and still exists, for the support of officials and functionaries. That is what we of the unofficial classes are here for. This system, carried to its logical conclusion, may be best studied in France and Germany, but we in England are fast advancing on the same lines.

In the days of the highwaymen, the system worked, in respect of them, in this way: they were not worth catching until a reward was offered, and it even then remained a nice point whether it were not better to wait until a still larger reward was advertised, before closing in upon the fellows and haling them before the magistrates. You had simply to watch the "public form," so to speak, of your man, just as people accustomed to bet upon horse-races watch the performances of the animal they favour. If your highwayman were a dashing and enterprising fellow, likely to make much of a stir in his line, it was obviously not worth the while to collar him for the sake of a mere £40 reward offered for the apprehension of a highwayman. You just waited until he became a notorious person, with some great deeds to his credit—a big haul of guineas or jewellery, or perhaps even a murder. Then he would be worth £100, or, in extreme cases, even more; and then only would he be taken, unless, indeed, some foolish

competitive busybody officiously intervened, and got him before he had quite ripened.



CHAPTER VII

THE HIGHWAYMEN OF WILTSHIRE AND SALISBURY PLAIN—MR. JOSEPH READER'S ADVENTURE—THE CHERHILL GANG—"CLIBBORN'S POST"—MURDER OF MR. MELLISH—CLOSE OF THE HIGHWAYMAN ERA

MANY of the stories in these pages are concerned with the doings of highwaymen in the districts near London, but the neighbourhood of almost every town was infested in degree, and there are few local histories, and fewer of the older newspaper files, that do not afford curious reading in the highway robbery sort, intermingled with advertisements offering rewards for the apprehension of horse- and sheep-stealers and fugitive husbands who have left their wives and families chargeable upon the parish. The neighbourhoods of Devizes and Salisbury seem to have been exceptionally favoured with these miscellaneous rascals, no doubt because those two places stood at either extreme of what long remained the wild and desolate region including Salisbury Plain, where, although the great roads to Bath and Exeter brought a considerable traffic, the houses were few and far between. It was an ideal district for evil-doers, and there are a very considerable literature and a very startling series of incidents in this sort, connected with it. [\[1\]](#)

A curious incident is that told on an old broadsheet printed in 1712, and sold at the usual broadsheet price of one penny, of the hanging of a highwayman by one of the travellers he attacked. On Saturday, February 2nd, in that year, a Mr. Nat. Seager, a maltster, took horse from Shaftesbury for Blandford, to buy corn in Blandford market. He had only gone two miles and had descended into the plain from the hill-top town, when "he was attack'd by a Highway-Man and a pistol clap'd to his Breast, with the Word of Command 'God D—n you, you old Dog, alight and deliver.'"

Mr. Seager, very much terrified, dismounted, or perhaps, rather, tumbled off his horse, and threw the man £3 in silver; but the highwayman was not content with this. "It was not all," he said; and, rapping out another oath, he drew a broadsword and gave Mr. Seager a cut on the shoulder. Whereupon Mr. Seager produced twenty-four guineas more, with which the highwayman rode off contented, leaving the unfortunate maltster bleeding on the ground.

In a little while there came along the road another traveller, Mr. Joseph Reader, miller, of Shaftesbury, whistling upon his way, according to his habit.

"What is the matter?" he asked, surprised to see his friend and neighbour lying there, all gory.

Seager told him.

"Master," said Reader, "lend me your horse, and I will endeavour to overtake the rogue, if you will describe him to me."

"He has a great blue coat, and a sorrel horse," replied Seager: and with that, Reader mounted and hastened the way he had gone.

It was not long before he overtook the highwayman, who was waiting for more prey, and thought he saw it in Reader. Twice he fired pistols at him, and twice he missed; and then Reader, who was by far the stronger of the two, smote him with a cudgel he carried, and dragged him from his horse. At this moment Seager came up and found them struggling on the ground, and Reader immediately despatched him for aid.

But when he was gone, and our brave miller had opportunity for reflection, it occurred to him that his adversary might by some means get the better of him, after all, before help arrived; and so he stood the risk of losing the £40 reward due to him for taking a highwayman. That was a risk not to be entertained, and "therefore," said he, "I'll e'en hang him myself." And so he did. Striking him insensible, he dragged the unlucky man to a wayside tree, and hanged him from it by his own belt.

The highwayman had not long given up the ghost before Seager returned, at the head of the Sheriff's posse; when the miller learned, much to his

dismay, that, by acting as hangman upon one who had not been brought to trial, he had put himself in very grave peril.

In fact, the law, resenting this interference with its prerogative, had a good deal to say to Mr. Joseph Reader, who was brought to trial at Dorchester before Mr. Justice Coker, at the next assizes, and charged with murder. Fortunately, he was acquitted, and his resourcefulness properly acknowledged by a subscription of over £30, made up for him in Court.

Not only solitary highwaymen, but bands of marauders, scoured the treeless and hedgeless wastes of Salisbury Plain and its neighbourhood. One of these was known as the "Cherhill Gang," and chiefly favoured the locality between Marlborough, Calne, and Devizes. Individual members of this brotherhood were taken from time to time, hanged at Devizes, and afterwards gibbeted at a spot high on the downs, between Beckhampton and Cherhill. The remaining members of the band and the friends and relations of the departed of course bitterly resented this kind of post-mortem publicity, and very often they would either come by night and saw through the post of the gibbet and so bring the whole thing to the ground, or would climb up the post and bring down the tattered relics of their friend, swinging there in his chains or his iron cage, and give it decent burial. There is much to be said in favour of them. But after this had continued for some time, the authorities hit upon a plan of binding the lower portion of the gibbet round with iron, of tarring it, and of driving some hundreds of nails half-way into the post, just by way of deterrents to climbers and others.

A very pretty story—pretty in its peculiar way—is told of Serjeant Merewether successfully defending one of the Cherhill Gang at the assizes, and of his being robbed of his fee that night, by his interesting client, when on his return home.

Another member of the same gang had the peculiar fancy of stripping himself perfectly naked, by night, and then springing out of a wayside bush upon the startled traveller. The unexpected spectacle, he said, was so alarming that robbery became very easy. But this was probably only a midsummer freak. Imagination refuses to contemplate even the most desperate highwaymen in midwinter, when snow-squalls swept

Marlborough Downs, emulating those picturesque figures, the naked aborigines of the poet's vision:

When, wild in woods, the noble savage ran.

I will quote here but one of the many old newspaper reports of doings on this spot, but that a picturesque one. The date is January 1743: "A captain in the army, who was going to Bath in a postchaise, was stopped near Sandy Lane by two highwaymen, by one of whom he was told that he wanted but a guinea, which he hoped to be soon able to pay him again. The captain gave him the guinea, and the fellow gave the driver a shilling, and told the gentleman if he was stopped by any one else, to say 'Virgin Mary,' that being the watchword for the day. They had not gone far before they were stopped by four persons; but on being given the watchword, they raised their hats, and rode off."



"CLIBBORN'S POST."

The visible relics of the highwaymen are few, but among them that of "Clibborn's Post" is peculiarly interesting. This relic is found in Hertfordshire, in the neighbourhood of that fine old Elizabethan manor-house, now a farm, but famed in romance, Queen Hoo Hall. On the way from Tewin and Queen Hoo Hall to Bramfield, the wooded lane rises in a curve to the summit of what is known locally as "Open Valley Hill." Here, on the grassy bank, firmly planted in the soil, stands a stout, oaken post, carefully bound with strips of iron. This is "Clibborn's Post," the modern successor of the original stake driven through the body of a brutal

highwayman of that name, shot dead at this spot in the act of attacking a farmer who was on his way home from Hertford Market to Datchworth. This occurrence happened on December 28th, 1782. There had, about that time, been many highway robberies committed on the country roads in this neighbourhood; but no one had been able to identify the desperado, who had plunged the countryside, and especially the week-end market folk, into such terror. On this particular night this farmer was driving home in a cart, accompanied by a servant named Shock. Just as they reached this spot—then, as now, a lonely place surrounded by tangled undergrowth and dense plantations—a man rushed out from the thickets and seized the horse's reins. The farmer jumped down to struggle with him, but his assailant was getting the upper hand, and was in the act of unclasping a knife to cut his throat, when the farmer called out to his servant, who carried a blunderbuss: "Shoot, Shock, or I am a dead man!" Shock had been afraid to fire, thinking he might hit the wrong man, but, on this command, he let fly, and shot the highwayman dead. When they examined the body they found it to be that of a pieman named Clibborn, a well-known and ostensibly honest person who frequented the Hertford inns on market day, selling pies to the farmers and others. He had opportunities of noting those who would be carrying large sums of money home with them; and, leaving early, waylaid them in some lonely spot such as this.

It was still, at the close of the eighteenth century, abundantly possible for peaceful travellers along the roads to be killed by highwaymen: Mr. Mellish, a city merchant, returning from a day with the King's hounds, in company with two friends, named Bosanquet and Pole, having been shot dead by a gang, who attacked and robbed the carriage in which they were travelling, when near Sipson Green, on the Bath Road. It was a wanton act, too; the travellers having disbursed their money on demand, and the carriage already starting off again for Hounslow when one of the gang fired a shot after it. Mr. Mellish, sitting with his back to the horses, was struck in the forehead. It is probable that the highwayman intended no more than to warn the occupants of the carriage that he and his fellows really were fully armed, and that they had therefore better hasten away as quickly as they could; but the intention is immaterial: the unfortunate man was killed, and the highwaymen were never captured.

The nineteenth century opened badly for the highwaymen, for not only had the business of banking and the payment of money by cheque grown largely, but Pitt's Act for Restricting Cash Payments, passed in 1797, had led to fewer large amounts in coin being carried about their persons by unprotected travellers. Nothing was more remarkable than the great sums of money that seem to have been carried by all classes in the periods already discussed; and in those circumstances lay the highwaymen's opportunity. But now they had fewer and smaller takings in coin, practically a choice only between watches and jewellery and bank-notes: very dangerous classes of property to handle unlawfully.

But if their takings were less, their numbers were scarcely fewer; and the gibbets were still not infrequently replenished. Thus, a highwayman named Haines was, in May 1799, gibbeted on Hounslow Heath, just where the Bath and the Exeter roads part company, at the western extremity of Hounslow town. A curious item in the *Annual Register* for that year proves—if proof were wanted—that the spectacle of his hanging had been a popular sight; for there we read an account of how a party of eight gentlemen, who had been out for the day to witness the spectacle, ferried over the Thames to the "Flower Pot" inn at Sunbury that night, at ten o'clock, presumably with the intention of "making a night of it." It may not be uncharitable to suppose that they had already taken more than sufficient, for in crossing the river, the boat was upset and three of them were drowned.

The stumps of the gibbets that formerly stood at the fork of the Exeter and the Bath roads, at the western end of Hounslow were discovered in 1899, when the road was excavated for the electric tramways that now pass the spot.

At the close of the eighteenth century, the approaches to London again became so dangerous that it was necessary to institute some kind of protection. This was established in 1805, under the name of the Bow Street Patrol, and was organised, as its name implies, from the principal London police-office. This was a forerunner of the existing horse-patrols of the Metropolitan Police, to be now and again encountered at night on lonely suburban roads in these far more secure times of ours. Even Hounslow Heath and Finchley Common grew comparatively safe when this armed and

efficient force got to work. They were probably not in full existence when the poet Campbell and his wife, walking on Sydenham Common in that year, were confronted by a mounted highwayman who demanded their money, with menaces. An alarm was promptly raised, and he was pursued and captured; when he was found to be a resident of the neighbourhood.

In the provinces the era of the highwaymen was longer lived. The roads between Arundel and Chichester were in 1807, for example, haunted by one Allen, a highwayman who preyed chiefly upon the farmers coming home with well-filled purses from market. The militia were called out to capture him, and thus, in these peculiarly glorious circumstances of war, he was shot dead near Midhurst, while endeavouring to escape arrest.

CHAPTER VIII

THE LITERATURE OF THE LATER HIGHWAYMEN

SINCE Smith and Johnson's days, the literature of the highwaymen has declined in quality and increased in output. The history of the highwaymen has never been reconsidered or restated since they flourished, and no one has ever attempted to extend it from 1742. Not even Turpin appears in Johnson's folio, published three years earlier than that "hero's" execution at York: an omission which seems amply to prove that Turpin's contemporaries did not consider him a particularly interesting or notable person.

Yet, although nothing has been done to tell the story of the highwaymen who flourished numerous long after Smith and Johnson had completed their works, there is an abundance of materials for the purpose. They are not nice materials. Distinctly unappetising trials for the most part, "last dying speeches and confessions," usually impudent fabrications, and, when not entirely un-authentic, generally the utterly unreadable productions of the Ordinaries of Newgate and other prisons, who turned an honest, if somewhat discreditable, penny in hearing the generally boastful and lying accounts by prisoners of their crimes and adventures; seldom writing them down from dictation, and commonly but imperfectly memorising them, and only setting down their general sense. That is why the very numerous "authentic" lives, last dying speeches, and confessions of the highwaymen and others, written out by the Ordinaries and usually attested at the end by the criminals themselves, are so bald and unconvincing. An outside rival production was, as a general rule, a good deal more spicy, and although unauthorised, not necessarily less truthful. The "official" productions, as we may term them, were of a stereotyped fashion, ballasted with an intolerable deal of moral reflections, and written in a heavy-handed way that by no means reflected the convict's own generally keen relish of his own villainies. We should not mind all this, if we knew the Ordinaries to have

been good and earnest men; but they were nothing of the kind. By education gentlemen, and by virtue of their holy orders bound to maintain the law and the Gospel, they were nevertheless a pack of intolerable scoundrels, drunken and dissolute, and not infrequently as fitted for the cells as the unhappy prisoners in the Stone Jug, to whom on Sundays in the prison chapel they preached Hell and Damnation, the Burning Lake and Everlasting Torment. The publication of the last dying speeches and confessions of their interesting charges was the perquisite of these unworthy men, and it was one of the most indefensible of privileges in that age of perquisites.

Thus the pamphlets they issued and grew fat upon soon palled upon us. There are, however, other sources: the "Newgate Sessions Papers," the somewhat too famous "Newgate Calendar," which shared with the Bible the favour of George Borrow; the "New Newgate Calendar"; the "Malefactors' Bloody Register," and other atrocious "literature"—to give it the conventional title bestowed without discrimination upon all printed matter.

I am sorry for myself, after having perused those dreadful pages, and many other like authorities, in search of the romantic highwayman as seen in fiction. I have not found him, but I have found plentiful evidence of the existence of innumerable ineffable blackguards and irreclaimable villains of the most sordid, unrelieved type: bestially immoral, tigerishly cruel, and cringing cowards until they were safely jugged, when their cowardice was exchanged for a certain callousness. There were exceptions, but the general effect of reading these originals is an effect of moral and material muddiness, of a personal uncleanness not a little distressing. It would even have a lasting effect of depression, were it not abundantly evident that these things are of a day that is done. They are part of those "good old times" that, happily, are not our times.

Fortunately, even among this extensive literature, it is possible to find some human touches; here and there to trace some humorous rogue and find him entertaining.

Rather late in the day comes James Catnach, with his penny chapbooks and broadsides. He is not elevating, and is often vulgar. The more vulgar his productions, the better they sold. I don't think he quite realised that point,

but some modern popular publishing firms have, and profit hugely by it, for vulgarity is popular and pays enormously. If Jemmy Catnach, of Nos. 2 and 3, Monmouth Court, Little Earl Street, hard by the Seven Dials, had fully grasped this point, he would have died worth very much more than the £3,000, £5,000, or even £10,000 he was represented to have left when he quitted this life, about 1841.

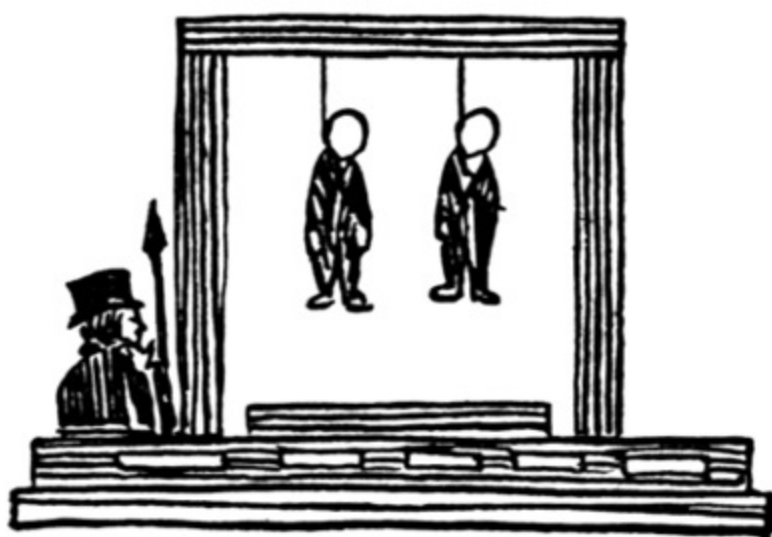
James Catnach commenced business about 1813. His publications were all issued at the popular price of one penny, and covered every subject likely to attract the sympathies of the lower classes. Not quite the lowest classes, for they could not at that time read at all. We must not suppose that he dealt only in the horrible. Not by any means. You might buy of him for the nimble penny the history of Goody Two Shoes, the story of Jack the Giant Killer, the affecting tale of Cock Robin, or the even more affecting story of the Babes in the Wood. The "Soldier's Farewell to Home and Parents," in which the illustration is intrinsically so rough, and the paper and print are so abominable, that it is difficult to see which is the soldier and which are the parents, showed that maudlin sentiment was very profitable. He published also a large selection of patriotic, amorous, and tearful ballads; but it is sadly to be confessed that his penny murders were by far the most popular. He had no penny Sunday papers and no halfpenny evenings to compete with him, and the daily and weekly journals ranged from threepence to eightpence. His only competitors were the garret, cellar, and kitchen printers of his own kidney: Birt, of the neighbouring Great St. Andrew Street, and others. But he was the chief of them, the most industrious, and the most successful. He and his small staff in 1824 printed in eight days, off four formes, no fewer than 500,000 copies of an account of the murder of Mr. Weare by Thurtell, and bagged £500 profit on the business. His customers were a low and dirty mob of pedlars, hawkers, and street-sellers, who paid chiefly in coppers, and dirty ones at that. Those were the days when pennies and halfpennies were really coppers, and not, as now, bronze; and they were large. A penny weighed one ounce, and was an appreciable weight in the pocket: sixpence in coppers was a burden. The coppers Catnach received in the way of his business were a nuisance to him, and he was afraid, from their filthy condition, that they would also be infectious, and so he generally boiled them in a solution of potash and vinegar. In the almost vain endeavour to dispose of them he was

accustomed to pay the wages of his boys and men in coppers, from ten shillingsworth to forty shillingsworth, and even then had to arduously load up vehicles with the rest, for the bank. His back kitchen was paved with bad pennies set in concrete.

The lives and adventures of the highwaymen were always a safe sale. Like most of his rudely illustrated productions, they were embellished by his own ingenious hand. The backs of old engraved plates of music served him instead of wood-blocks, and these he engraved upon, apparently with a chopper and a hammer, if we may judge by the startling results. He could have taught Thomas Bewick a thing or two in breadth of treatment, and in his noble scorn of detail (or in his inability to execute it, whichever it was) he was undoubtedly the first of the Impressionists. He was rather good at devils, and supreme in picturing a ferocious villain; but not successful in representing a village beauty.

He issued a very good edition of the *Life and Adventures of Dick Turpin* at the usual price of one penny: good beyond his common run, because he seems to have employed some one to engrave the pictorial cover for him, and you can really distinguish quite easily between Black Bess and the turnpike-gate, over which that gallant mare is shown to be jumping. Dick Turpin, in this production, affects a jockey-cap.

Birt, of Great St. Andrew Street, was another of the many small printers, who issued popular and ill-printed penny lives of Turpin in the days before the boys' penny papers issued in frowsy courts off Fleet Street, began to print long, long romances of him and Tom King, always to be "continued in our next." Birt shows us what purports to be a portrait of Turpin, no doubt from some strictly un-authentic source, and the short narrative ends with the picture of an execution, in which alone the purchaser had his money's worth, for we see two criminals hanging: Turpin and another, who would seem, so far as appearances go, to be his twin brother. It is a new light upon the life and death of the hero.



CHAPTER IX

THE NEWGATE CHAPLAINS: SAMUEL SMITH, PAUL LORRAIN, THOMAS PURENEY—THE PRISON LIFE

THE Chaplains, or Ordinaries, of Newgate were amply provided for. The presentation to the office was in the gift of the Lord Mayor and aldermen, and included a residence in Newgate street, in addition to the salary, a legacy of £10 a year paid by the Governors of St. Bartholomew's Hospital, an annual £6 from Lady Barnardiston's legacy, and what are described as "two freedoms yearly," which generally sold for £25 each. In addition to these, the city usually presented the Ordinary with one other, annually. By 1779 it appears that he no longer enjoyed the freedoms, but his salary was augmented to £180, and, in addition, he received £3 12s. 0d. a year from the sheriffs.

Surely this was a stipend ample enough for the class of men who held the office, especially as the divines who generally obtained it did very well out of the "authentic" lives of the criminals to whom they extended ghostly counsel. The "Bishop of Newgate" was the slang term for the Ordinary, and so well—though not so admirably—did the men, who, in a long succession, filled the office, fit into the place, that we but rarely find one translated to other fields of activity. They lived and died Ordinaries of Newgate. Even a good man might have become degraded by the place and its fearful management, but the men appointed were of the worst type, and a disgrace to the Church.

The Reverend Paul Lorrain and the Reverend Thomas Pureney were typical Ordinaries, blustering, bloated, and snuffy; ready with a threadbare tag from an easy classic; profaning the Scriptures with vinous hiccoughs; more keen to nose a revelation for their delectable broadsides and

hypocritical pamphlets than to lead a sinner to repentance, even if they knew the way; and always with an alert eye on the main chance.

Lorrain succeeded one Samuel Smith in 1698, and held the post until his death, in 1719. He was most diligent in the production of those "official" accounts of the lives, confessions, and last dying speeches of the criminals, which were printed and sold largely, and thus formed a considerable augmentation to the salary of himself and his kind. A collection of forty-eight of these curious pamphlets, written by him, is found in the British Museum. We turn to them with expectancy, but from them with disgust. With every advantage at their command in this peculiar form of authorship, the Reverend Paul Lorrain and his successors failed to produce anything but the most insufficient of lives, the most commonplace confessions, and the most threadbare last dying speeches, garnished with haphazard texts.

Generally published at eight in the morning of the day after the respective executions, they had their public; but the very cream of the sale was skimmed off on the actual day of the execution by unlicensed publications, and it was usually quite easy for the doomed men going to Tyburn to purchase a penny biography of themselves, and to read what they had said at the last moment, before the last moment itself was reached. In Hogarth's print of the end of the Idle Apprentice at Tyburn, the "Last Dying Speech and Confession of Thomas Idle" is being bawled out at the moment of his hearing the final ministrations in the cart. Obviously, these productions could not be "authentic," in so far, at least, as the concluding scenes were concerned; but there is that journalistic *flair* about many of those that have survived the bad paper and the worse ink with which they were produced, which shows a full comprehension of what the public wanted. And whatsoever the public wants, it is the journalist's business to see it duly gets. There is more resource, more touch with life, in these than in the works of the Ordinaries.

A certain low and undistinguished feeling of pedantry runs through all those clerical issues. The Reverend Mr. Paul Lorrain, or the equally Reverend Mr. Thomas Pureney, tells us of such and such an one, that, "departing from the early paths of Virtue and Integrity, where the Flowers of Innocency may be pluckt," (much *they* knew of such things, to be sure!)

"he stray'd among the Profligate and the Abandon'd, and became a Highway Man."

Such stuff! All very well for copy-book maxims or good books for well-behaved children; but the streets wanted stronger meat than this; and they got it. In the unauthorised lives of the various malefactors, written for the appreciation of the crowd, it may be read how such a youthful innocent as the one described above in so sesquipedalian a style, "was a practis'd prig at eleven years of age. He stole his Father's Cash-Box, and, coming with it to London, spent the Contents in the gayeties of the Town." Precocious youth! But precocity is not, as many suppose, a Twentieth-Century portent.

"He soon became a Flash Cull and set up half a dozen Doxies of his own, who empty'd his Pockets as soon as he filled 'em." Nothing at all about the early paths of Virtue and Integrity in this, it will be observed.

"He then, observing that more was to be made in one Night's good-fortune under the Stars than in a week of snatching the Bung or cly-filing in the streets, and with less danger, in it, became a Collector of Tolls upon the High-Way."

That was your true penny style for the streets. It was sympathetic and understood, which the "Flowers of Innocency" business was not.

Paul Lorrain and his brethren never failed with the moral lesson, however little they themselves believed in it; and always, you will find, who read their nauseating pages, that those who had the misfortune to sit to them for their biographies were "truly penitent," "moved to contrition," or "heartily renounced their Wicked and profligate course of life," and the like.

And yet nothing is more certain than that the larger number of them went to death impenitent and hardened. The better sort were merely sulky; the worse cursed and flung indecent quips to the crowd, all the way to the gallows. Nor need there be much wonder at it. To die for taking a purse from a traveller must have seemed even to an eighteenth-century highwayman, born into this state of things and bound to suffer by it, an extravagant penalty. Temperament, sanguine or otherwise, did the rest, and conditioned his attitude on the Tyburn journey.

The Reverend Thomas Pureney had a way of his own with sinners. He could not make them truly penitent, but he could, and did, frighten them almost into convulsions by a way he had in preaching. He was a nasty person, among a succession of forbidding persons. He stumbled as he walked: his nose and cheeks flamed with intemperance in drink: he took the flavour of the pot-house with him whithersoever he went. Nay, he even, as a youth, before ever he was educated for the Church, had thoughts of himself going upon the highway, and indeed actually began the business of taking things without leave of the owners of them. His first and only essay in this sort was the handling of a silver flagon and two volumes of sermons, which he was conveying from the rectory of his native place in Cambridgeshire, when the excellent clergyman discovered him with this singular booty and lectured him, not unamiably. He would certainly end his days in Newgate, prosed the good man, if he did not instantly see the error of his youthful ways, and reform. Why, that very reform, so far as it went, served, strange to say, to land him, years later, at Newgate; and there he ended, after all; but very differently from the fashion the old clergyman had foreseen.

His respectable parent soon after this youthful escapade entered him at Corpus Christi College, Cambridge, and there he assimilated as much learning as sufficed to place him in holy orders. But he had not been, in any sense of the word, a moral man while at the University, and although he found a curacy at Newmarket, it was with a reputation which rather fitted him for the society of the racecourse than for the pulpit that he went there.

The eighteenth century demanded little of a clergyman, but even that little our Pureney could not render, and he was flung out with ignominy, even from Newmarket. Drink and flagrant immorality were the undoing of him there, and the rumours of his evil ways long followed him about, and prevented him securing another post, until at last that of Ordinary at Newgate was tossed contemptuously to him. The suggestion of that office—insult though it would have been to a decent man—found in him a ready and grateful acceptance. No standard of conduct was required, and, joy of joys! he became pastor among the very kind of heroes who had fired the imagination of his perusing youth.

He lorded it over those caged gaol-birds with imperious ways for thirty years, and in that time had the fortune to hob and nob with many a famous

rogue. Jack Sheppard and many a lesser light sat under him in the prison chapel and listened to his outrageous sermons, promising damnation and everlasting torment; and he had the singular fortune to call the infamous Jonathan Wild a crony for some years, and in the end, when that appalling scoundrel had been found out and cast for the shameful death to which he had brought so many others, to preach the worm that dieth not to him also. It is true that, owing to his intimate acquaintance with Pureney, Wild did not greatly value his discourse, and sought and obtained the counsel and guidance of an outsider, the Reverend Mr. Nicholson, to wit, who, he says, "very Christian-like gave me his assistance"; but the Ordinary came into his own again on the Sunday, when the condemned, Wild among them, were herded into their gruesome pew in that most awful of chapels, and had to listen to his ravings.

Pureney's account of the life, crimes, conviction and confession of Jonathan Wild and of other malefactors condemned at the same time is a folio broadsheet, distinguished among a badly produced class of literature as surely the very worst-printed, on paper of the commonest. A rude woodcut at the beginning discloses the Ordinary in a black Geneva gown, preaching to his charges (an extraordinarily large Ordinary, and remarkably small convicts), with conventional representations of Heaven and Hell, to left and right. A Hand, bearing a celestial crown a good many sizes too large for any of the convicts here pictured, is seen amid clouds; the Ordinary, not at all astonished by the phenomenon, pointing to it and continuing his discourse.



DECORATIVE HEADPIECE FROM PURENEY'S "LIFE AND CONFESSION OF JONATHAN WILD AND FOUR OTHER MALEFACTORS."

Hell's mouth, smoking like the exhaust of an over-lubricated motor-car, is occupied by a very convincing Devil, armed with an undeniably business-like trident, who has most certainly got his eye rather upon the unsuspecting Ordinary than on the weak-kneed group of five malefactors, one of whom appears by his attitude to prefer Hell to any more of the Ordinary's exhortation. And, if all accounts of Pureney's life and death be true, the Devil did get him, after all.

Such was the type of publication out of which Pureney earned an addition to his income; but the tale does not quite end here. The last page is largely occupied with an advertisement of the most flagrantly indecorous and reprehensible character, of which even an eighteenth-century clergyman of the Church of England might have been ashamed. But the clergy fell generally far short of the ideal ministers and vicars of God. Whether in town or in the country, where "Parson Trullibers" abounded, they were a disgrace to their office; and even when they were earnest, which was seldom, provoked criticism by their extravagance.

In 1724, when Jack Sheppard, pickpocket and housebreaker, was again lying in Newgate, after being re-captured, his doings appealed greatly to the imagination of all. He was the most famous person of that year, and great crowds thronged to see him. Sir James Thornhill, the Royal Academician, painted his portrait; chapbooks innumerable, badly written, and ill-printed,

on vile paper, were issued before his execution and sold in thousands to eager purchasers; and clergymen took his career for their texts. One ingenious preacher, given to sensational discourse, outdid all his brethren in thus improving the occasion:

"Now, my beloved, what a melancholy consideration it is, that men should show so much regard for the preservation of a poor, perishing body, that can remain at most but a few years, and can at the same time be so unaccountably negligent of eternity. Oh! what care, what pains, what diligence, and what contrivances are made use of for, and laid out upon, these frail and tottering tabernacles of clay, when, alas! the nobler part of us is allowed so very small a share of our concern that we will scarce give ourselves the trouble of bestowing a thought upon it.

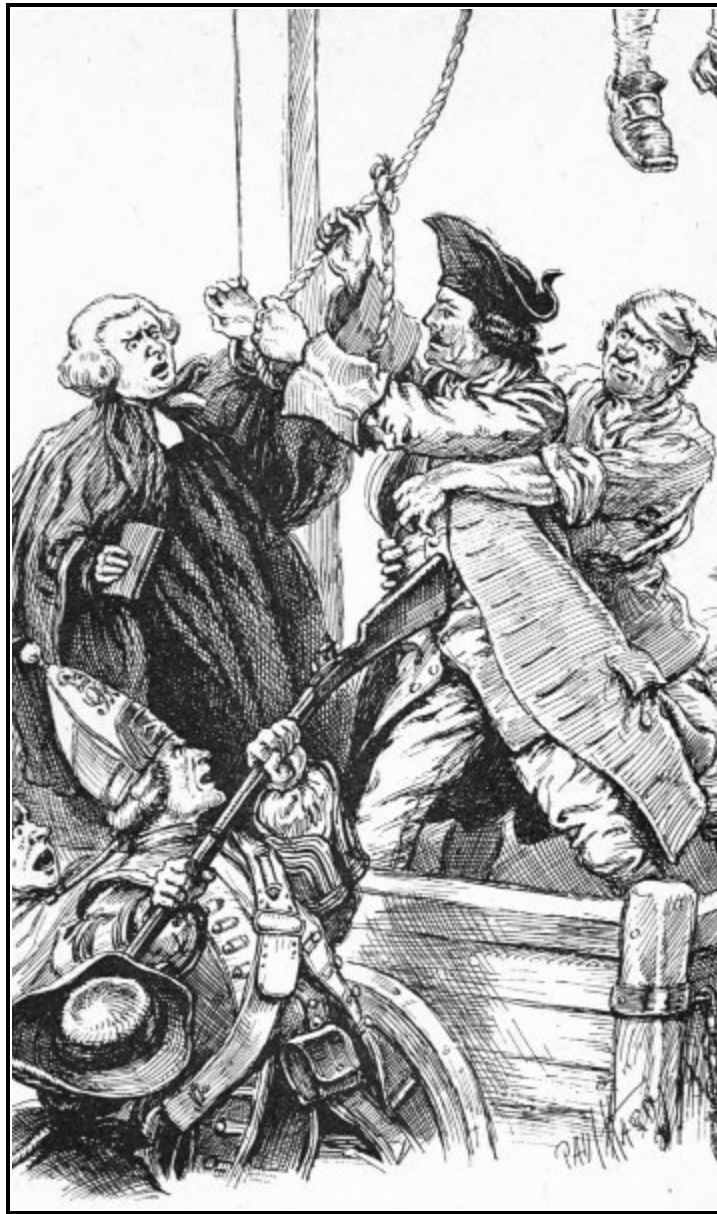
"We have, dear brethren, a remarkable instance of this, in a notorious malefactor, well known by name as Jack Sheppard. What amazing difficulties has he overcome! What astonishing things has he performed, for the sake of a stinking, miserable carcase, hardly worth hanging! How dexterously did he pick the padlock of his chain with a crooked nail! How manfully burst his fetters asunder, climb up the chimney, wrench out an iron bar, break his way through a stone wall, and make the strong door of a dark entry fly before him, till he got upon the leads of the prison! And then, fixing a blanket to the wall with a spike, how intrepidly did he descend to the roof of the turner's house, and how cautiously pass down the stairs and make his escape at the street door!

"Oh! that ye were all like Jack Sheppard! Mistake me not, my brothers, I mean not in a carnal, but in a spiritual sense; for I purpose to spiritualise these things. What a shame it would be, if we did not think it worth our while to take as much pains, and employ as many deep thoughts, to save our souls, as he has done to preserve his body! Let me exhort you, therefore, to open the locks of your hearts with the nail of repentance; burst asunder the fetters of your beloved lusts; mount the chimney of hope, take from thence the bar of good resolution, break through the stone wall of despair, and all the strongholds in the dark valley of the shadow of death. Raise yourselves to the leads of divine meditation; fix the blanket of faith with the spike of the Church; let yourselves down to the turner's house of resignation, and descend the stairs of humility. So shall you come to the

door of deliverance from the prison of iniquity, and escape the clutches of that old executioner, the devil, who 'goeth about like a roaring lion, seeking whom he may devour.'"

No doubt the preacher meant well, but his figurative style was too pronounced.

It is easy and proper to be severe on the subject of the Newgate chaplains, but perhaps some allowance should be made for them, on the score of the associations of prison life, always bad, but incredibly degrading in that age. If we except Pureney, who was himself an instinctive criminal, the Ordinaries could not, all at once, have become callous and depraved. They were not, of course, men distinguished for learning or piety, for it was the practice to give the chaplaincy to the dregs of the profession; but were doubtless, at the time of their appointment merely average men, eager to obtain a livelihood. They ran very grave risks, too, in those days when gaol-fever ravaged the prison, and even infected the sessions-house. It was highly dangerous to attend the prisoners, often indiscriminate in their revengeful violence, both in their cells and at the place of execution. A peculiar incident recorded of an execution at Hertford, on March 25th, 1723, shows that all manner of indignities were possible. On that day, when William Summers and another man named Tipping were turned off, the hangman was so intoxicated, that, supposing three had been ordered for execution, he insisted on putting a rope round the parson's neck as he stood in the cart, and was with difficulty prevented from stringing him up as well.



SCANDALOUS SCENE AT A HERTFORD EXECUTION.

It is only charitable to suppose that the Ordinaries must needs have been shocked when first introduced to their morally and physically pestiferous charges, and gradually became used to their surroundings. Let us take a prisoner typical of those whom these divines attended:

Valentine Carrick is not so well-known a name as Maclaine, but he also formed a popular sight during the short interval between his conviction and execution. "James" Carrick, as he is also styled, was son of a retired jeweller, who was wealthy enough to set up for a gentleman, and to

purchase his son an ensign's commission in the army. Like hundreds of others of his class, the young ensign gambled freely; like most, he lost, and like a large proportion of broken gamblers, he sought to replenish his pockets by emptying those of travellers on the King's highway by threats, and at the point of sword or muzzle of pistol. He was one of the most reckless blades that ever the Stone Jug had received. He applied the saying of the heedless folk mentioned in the Bible to his own situation: "Let us eat, drink, and be merry; for to-morrow we die." Others might laugh and tittle as they passed their few days in the condemned hold; he did more, for he shouted and sang, and was generally roaring drunk.

Hundreds came to see this edifying spectacle, and the Newgate turnkeys reaped a rich harvest in fees paid by eager sightseers. Such an extraordinary rush impressed even the prisoner, who appears to have thought it very stupid. "Good folks," he exclaimed, "you pay for seeing me now, but if you had suspended your curiosity till I went to Tyburn, you might have seen me for nothing." The company he kept—and was by the lax regulations of the prison readily allowed to keep—in gaol was of the most depraved type. At any rate, these dissolute companions served to keep up his spirits to the very last, and followed him to Tyburn itself, where he ended in the same vein: "When he came to the place of Execution, he smiled upon, and made his Bows to all he knew. Instead of praying with the rest of the Criminals, he employ'd that time in Giggling, taking Snuff, and making Apish Motions to divert himself and the Mob. When Prayers were over, he told them the Sheriffs had made an order that no Surgeons should touch his Body. The Ordinary advised him to consider whither he was going, to which he answered that, being a Roman Catholic, he had receiv'd no Sacrament, and prepar'd for Death in his own Way; and then, giving himself some pretty and genteel Airs (as he seem'd to think 'em) in adjusting the Halter about his Neck, the Cart was drawn away."

So far from contrition and repentance being found in Newgate, the prison was generally, as we have seen, the riotous finish of an ill-spent life. The interest with which they were regarded effectually prevented the prisoners from realising themselves the miserable sinners they were officially declared to be from the chapel pulpit on Sundays. The times were practically pagan.

William Hawke, or Hawkes, one of several men at different times styled the "Flying Highwayman," was greatly honoured. He had been condemned in July 1774, on the paltry charge of stealing a small quantity of linen: quite beneath a person of his skill, and, like many another fine fellow, received very distinguished company as he lay in his dungeon cell. Rank and fashion, wit and beauty, enlivened his days and made them pass cheerfully enough. Among others who called upon him was the eccentric Colonel George Hanger, afterwards fourth Lord Coleraine, who offered him a handsome price for his horse, to which the high-minded Hawke warmly responded: "Sir, I am as much obliged to you for your proposal as for your visit. But," he added in a low tone, and in a wary manner that implied his increasing confidence, "the mare won't suit you, perhaps, if you want her for the Road. It is not every man that can get her up to a carriage."

Hanger was so exceedingly pleased with this little trait of professional sympathy that he advanced Hawke £50, to enable him to offer bribes for his escape; but all efforts in that direction failing, the highwayman later returned the money, with his grateful thanks. He was buried in Stepney churchyard, with the following epitaph: "Farewell, vain world, I've had enough of thee," over him, by his own desire; an ineffective post-mortem repartee upon the world, which had already so emphatically proved it had had enough of him.

CHAPTER X

THE WATCHMAN, AND THE EXECUTION BELL OF ST. SEPULCHRE

ROBERT DOWE, citizen of London and merchant taylor, who died in 1612, bequeathed the annual sum of twenty-six shillings and eightpence to the vicar and churchwardens of St. Sepulchre, for the time being, for the delivery of a solemn exhortation to the condemned criminals in Newgate, on the night before their execution. The parish clerk, or other person that might be appointed for the purpose, it was laid down by the terms of this bequest, "should come in the night-time, and likewise early in the morning, to the window of the prison where they lie, and there ringing certain tolls with a hand-bell appointed for the purpose, should put them in mind of their present condition and ensuing execution, desiring them to be prepared therefor, as they ought to be. When they are in the cart, and brought before the wall of the church, at the beginning of their journey to Tyburn, there he shall stand ready with the same bell, and, after certain tolls, he shall rehearse a certain prayer, desiring all the people there present to pray for them."

"Admonition to the Prisoners in Newgate, on the Night before Execution.

You prisoners that are within,
Who for wickedness and sin,

after many mercies shown, are now appointed to die to-morrow in the forenoon: give ear, and understand, that to-morrow morning the greatest bell of St. Sepulchre shall toll for you, in form and manner of a passing-bell, as used to be tolled for those that are at the point of death: to the end that all godly people, hearing that bell, and knowing it is for your going to your deaths, may be stirred up heartily to pray to God to bestow His grace and mercy upon you, whilst you live. I beseech you, for Jesus Christ's sake, to keep this night in watching and prayer, to the salvation of your own

souls, while there is yet time and place for mercy; as knowing to-morrow you must appear before the judgment-seat of your Creator, there to give an account of all things done in this life, and to suffer eternal torments for your sins committed against Him, unless upon your hearty and unfeigned repentance, you find mercy through the merits of the death and passion of your only Mediator and Advocate, Jesus Christ, who now sits at the right hand of God, to make intercession for as many of you as penitently return to Him."

Then followed the:

"Admonition to the Condemned Criminals as they are passing by St. Sepulchre's Church-wall to Execution.

"All good people, pray heartily unto God for these poor sinners, who are now going to their death, for whom this great bell doth toll.

"You that are condemned to die, repent with lamentable tears; ask mercy of the Lord, for the salvation of your own Souls, through the merits of Jesus Christ.

Lord have mercy upon you.
Christ have mercy upon you."

To see that these injunctions were duly carried out, the Beadle of Merchant Taylors' Hall was given a "modest stipend," but whether any other person drew a further sum for seeing to it that the Beadle saw the parish clerk perform the duty does not appear.

It would seem that, as time went on, the watchman who patrolled the neighbourhood at night took over the duty of performing the midnight exhortation. By that time it had been crystallised into poetic form, and was no doubt, when delivered with due solemnity under the frowning walls of Newgate at that midnight hour, a very impressive thing. Twelve o'clock sounded slowly from the belfry of St. Sepulchre, and then, heard through barred windows in those massive walls of rusticated masonry, came that deliberate recitation:

All you that in the condemned hold do lie,
Prepare you, for to-morrow you shall die.
Watch all, and pray, the hour is drawing near,
When you before the Almighty must appear.
Examine well yourselves, in time repent,
That you may not to eternal flames be sent;

Forswear your sins, trust in Christ's merit,
That Heavenly grace you may inherit;
And when St. Sepulchre's bell to-morrow tolls,
The Lord have mercy on your souls!
Past twelve o'clock!



THE BELLMAN.

All you that in the condemned hold do lie,
Prepare you, for to-morrow you shall die.

We may imagine, if we pause a moment, with the fearful story of that historic prison in our minds, the condemned men, merrymaking up to the last and receiving curious and dissolute visitors in their imprisonment, having their reckless carousing broken in upon by that awful message, and halting a moment, with an icy terror striking in upon their nerves, to realise that this, then, was the last chapter in their lives. We are not to suppose, however, that these solemn words, ordained by the excellent Robert Dowe,

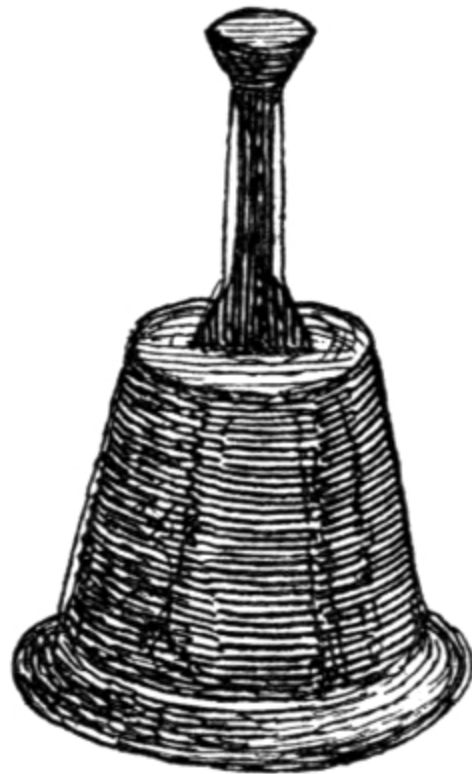
made a lasting impression on those for whom they were intended. The passing citizen, or the honest tradesman lying wakeful in his bed, probably was more deeply impressed. The criminals themselves, as the long story of them through the dreadful centuries shows, were mostly callous. They had, the larger number of them, long over-passed the dread of death; and even with those who were afraid, it was by tradition a point of honour to take that last journey to Tyburn as gaily as though they were the central figures in some merrymaking, instead of going to their own shameful extinction. Indeed, the populace expected no less, and while they were ready to applaud the highwayman, who made his exit in gala costume, and with something that might pass for wit on his lips, and were eager for the honour of shaking him by the hand, they were not backward with curses, stones, and mud when some poor devil, unnerved, or perhaps even penitent, broke down and was drawn, a miserable object, to the gallows.

But there were those critics who did not believe in the picturesque nocturnal method of admonishing malefactors of their approaching end. They did not consider it was possible they could be oblivious of it, or "as if Men in their Condition you'd have any stomach to Unseasonable Poetry"; as that "late famous, notorious robber," John Hall, executed 1708, very pertinently remarks in his "Memoirs."

Did those criminals who were sincerely penitent properly value Mr. Dowe and his bequest? It is to be feared they did not altogether relish being woke up from the sleep (if they had any) of their last night on earth. Of another sort than the generality of them, however, was Sarah Malcolm, who died in 1733 for the murder of her mistress, Mrs. Duncombe. "D'ye hear, Mr. Bellman," she shouted out from her window; "call for a Pint of Wine, and I'll throw you a Shilling to pay for it."

The great bell of St. Sepulchre continued to toll on the morning of executions until 1890. It was to have been sounded at the execution of Mrs. Pearcey, but a guest at the Viaduct Hotel was lying ill at the time, and a message being conveyed to the vicar, asking that it might on this occasion be dispensed with, the old custom was then discontinued, and was not again renewed. It had, in fact, been merely a sentimental survival since 1888, when the Charity Commissioners had laid hands upon, and appropriated the £50 left two hundred and eighty-three years before. The midnight bellman

had ceased his warning cry in 1783, when Tyburn executions ended and Newgate's prisoners began to be executed in the Old Bailey, on the very threshold of the prison.



THE "EXECUTION BELL," ST. SEPULCHRE.

The original hand-bell reposes in a glass case on the north wall of the chancel of St. Sepulchre's church, with a suitable inscription.



CHAPTER XI

HANGMAN'S HIGHWAY: THE ROAD TO TYBURN

TYBURN:

*That most celebrated place,
Where angry justice shows her awful face;
Where little villains must submit to fate,
That great ones may enjoy the world in state.*

LET us now see something of that road—that *Via Dolorosa*, as we may in all fitness call it—along which the condemned, highwaymen and others, went to Tyburn Tree. I shall style it "Hangman's Highway." It is not a pretty name, and it was never its official designation; but it is an apt one. Since 1783, when it lost that unenviable notoriety, its social status has continually risen, and there is now not a more respectable three-miles stretch of thoroughfare in London.

It had in remote ages been "Hangman's Highway," for from the west gateway in the wall of Roman *Londinium*, from the spot in after-years known as "Newgate," the malefactors of the Roman period were marched out and done to death. But in mediæval times, the citizens of London, not then so easily moved at the sight of executions, were content to allow criminals to be put to death in their midst, and we read of executions on Cornhill. A little later, and we find Smithfield chosen; a spot called "The Elms," apparently situated opposite where St. Bartholomew's Hospital stands, being the place where, not only criminals of low degree, but many of high rank suffered. Here the Scottish patriot, Wallace, was hanged in 1305, and here Mortimer was executed in 1330.

Holinshed, indeed, deriving his information from Adam Murimuth, tells a different tale. He says, of Mortimer: "He was at London drawne and hanged at the comen place of execution called in those daies The Elmes, and now Tiborne, as in some bookes we find."

But there is some confusion of ideas here: Tyburn did not become a place of execution until long after, and St. Giles's was the next site of the gallows.

It was a little less than a hundred years later, that the newer choice was made, for about 1413 we read that the gallows was set up at the northern boundary of the Leper Hospital of St. Giles, half-way to Tyburn. It is referred to in ancient documents as the "Novelles furches," *i.e.* the "new forks": in allusion to the arms of the gallows-tree. There, in 1417, Sir John Oldcastle was hanged and his body afterwards burnt.

But Smithfield was still occasionally the scene of executions, and there, also, the fires that consumed the Protestant martyrs in the Marian persecution were lighted. Even so late as 1693, the celebrated highwayman, Captain James Whitney, was executed at Smithfield, on a spot known as "Porter's Block," near Cowcross Street. The equally celebrated, or notorious, John Cottington, called "Mulled Sack," was hanged at "Smithfield Rounds," some years earlier.

"The Elms" was also the name of the earlier Tyburn, and much confusion has naturally arisen over this duplicating of names. The original Tyburn appears to have been established on the banks of a stream, which long ago ran across what is now Oxford Street, near Stratford Place. Here, then, were those other elms, distinct from the fatal elms of Smithfield. ^[2] To this place the executions were remitted, no doubt following upon the remonstrance of some aggrieved person, who found the gallows of St. Giles injuring his property. ^[3] The continued westward progression of Tyburn Tree is, indeed, a sign of the growth of London in that direction, and a proof of the very natural objection entertained by residents and owners of property to executions conducted in front of their windows.

The Tye Bourne obtained its name from the two branches, in which it flowed down from the Hampstead heights towards the Thames. The two streams were something over half a mile apart: the easterly branch crossing Oxford Street just below Stratford Place, and the westerly—the "West Bourne," that has itself also disappeared, but has given its name to Westbourne Grove and Westbourne Terrace—flowing across the Bayswater Road into Kensington Gardens. Its course lay along what is now

Kensington Gardens Terrace, and does so still: underground, and enclosed in a pipe.

A Roman road went due west out of the West Gate of *Londinium* to join the Watling Street (which ran from Stangate, Lambeth, across the Thames at Westminster, in a north-westerly direction to Edgware) at the present junction of Oxford Street, Bayswater Road, and the Edgware Road, occupying the line of the existing Oxford Street. It crossed the eastward branch of the Tye Bourne by a paved ford: the "strat-ford" *i.e.* "street ford," that long, long ago suggested a name for Stratford Place. Even the great modern borough of St. Marylebone owes its name to this bourne, and to the original church of St. Mary, built not far from its bank. The present Marylebone Lane owes its curious windings to the fact that it was once a country lane that followed the twists and turns of the little river.

St. Marylebone gets its name in a manner worth describing. The original church of St. John, Tyburn, that had stood from time immemorial beside the banks of the Tye Bourne, between the Oxford Street end of what are now Marylebone Lane and Stratford Place, was situated in a very lonely, yet exposed situation, on the great road from the City of London to the west. The village centred about where High Street, Marylebone, is now to be found, and the church and the village pound stood apart. So often was this original place of worship broken into and desecrated by thieves and vagabonds that it became at last necessary to remove it altogether. Accordingly, a licence was obtained in 1440 from the Bishop of London, Robert Braybrooke, to demolish the building and to erect a new church in the village itself, to be dedicated to St. Mary. Hence the disuse of "Tyburn" and the rise of "St. Mary-le-bourne."

The old Court House and vestry offices of Marylebone, in Marylebone Lane, built in 1829, occupy the site of the ancient vestry and that of the old pound for strayed cattle; and skeletons, found there in plenty at the building of it, were ascribed to the criminals anciently hanged and gibbeted on the spot, rather than thought to be the bones of the respectable inhabitants.

But, however dangerous the neighbourhood for three hundred and sixty-four days of the year, it was on one summer's day, annually, the scene of a gay civic festival. Ever since 1239 there had been conduits established here

for the supply of water to London—that one square mile of London known as the City—and to this spot on that annual occasion repaired my Lord Mayor and aldermen, to feast in a building called the "Banqueting House," that then stood in the pleasant country meadows. It may be found, distinctly marked, on old maps, on the site of Stratford Place, which itself is of considerable age, having been begun in 1744.

A record is still preserved of that civic junketing in 1562, when, after lunch, the Lord Mayor and the other guests hunted the hare through the woods of St. Marylebone. Then they dined, and, the huntsman having unearthed a fox, the hunt tailed away to St. Giles-in-the-Fields, where at last he was killed, "with great hollowing and blowing of horns at his death."

There should never have been the slightest doubt as to the real meaning of the word "Tyburn." It clearly means "the two streams." Somewhat similar derivations of place-names are found in the numerous "Twyfords" throughout the country, and in the name of Tiverton: the meanings being, of course, respectively, "Two Fords," and "Two Ford Town." But we find such derivations as "t'Ay Bourne," and the quaint passage written in 1617, "Teyborne, so-called of bornes and springs and of tying men up there." Fuller, at any rate, if not prepared to suggest an origin, was not, on the other hand, content to accept the popular view. He adopted a mildly critical attitude when he wrote his *Worthies*, and said: "Some will have it from Tie and Burne, because the poor Lollards for whom this instrument (of cruelty to them, though of justice to malefactors) was first set up, had their necks tied to the beame, and their lower parts burnt in the fire. Others will have it that it is called from Twa and Burne; that is, two rivulets, which it seems meet near to the place."

But the earliest mention of the stream, or streams, in A.D. 951, when it was called "Teoburne," seems to settle the point, beyond reasonable doubt.

The valley of this vanished stream can still most clearly be perceived, in the very marked dip in the road at this point, and its course onward towards the Thames may be traced by Brook Street and Half Moon Street, to Piccadilly (where a similar dip in the road will be found) and so into the Green Park.

The westward march of London in course of time moved on the Tyburn "Elms," to a site midway between the two branches of the Tye Burn, and fixed the scene of execution for some two centuries at what was later known as "Tyburn Gate," until at last "Tyburn," as a Golgotha, ceased to be, in 1783.

There was probably an excellent reason for this selection. The spot was certainly not near either of the bournes, but it was, as already pointed out, at a junction of roads, and it was then a place where the greatest publicity could be given to the ways of justice—or what passed for such—with the breakers of laws. It was not, according to ancient accounts, a nice place, even before the gallows was erected there; being nothing but a barren heath, standing rather high above the surrounding country, and with no houses near.

The road to this last Golgotha of London, before executions took place outside Newgate prison, is known by many names to-day: Holborn, High Holborn, New Oxford Street, and Oxford Street, along whose course it would now be difficult to point out many historical survivals. The church of St. Sepulchre still stands, as of yore, immediately without the site of the ancient City wall, and seems to many well versed in the gloomy memories of the spot, to bear an ominous name, until it is, with a little thought, recognised to be really dedicated in memory of the Holy Sepulchre at Jerusalem. An ironic fate, indeed, it was that for so many centuries associated its name with the last moments of the capitally convicted.

Its tower is prominent even now, but it was even more striking—though more closely hemmed in with houses—before the Holborn Viaduct, in 1867, superseded the road that in the old days plunged down into the deep valley of the Fleet River, that Old Bourne, or Hole Bourne, so greatly in dispute among antiquaries, and crossed here by Holborn Bridge, until the improvements of the viaduct-building age overbuilt the valley, and swept away the bridge and the surrounding streets into the limbo of forgotten things.

"All, all are gone, the old familiar faces," sighed the poet; and the thing remains just as true and as sad when we substitute "places" to suit our own present needs. Newgate prison is gone and Skinner Street is abolished, that

once stood immediately adjoining St. Sepulchre church, and the only vestige remaining of it is a very plain tablet dated 1802, that may be found by the diligent and the quick-sighted in the dungeon-like crypt of the Guildhall Museum. The dirty alleys are gone too, and that is no loss—and gone also is what was known to Cockneys as "'Obun 'ill." Holborn Hill, which, it need perhaps hardly be explained, was the true name of this eminence, was not an Alp, nor even a Plinlimmon, but it remained to the very last a terror to London drivers, especially of heavy vehicles. It was a great thing when Holborn Viaduct was built, to have abolished those exceeding-steep gradients which faced all eastward—and westward—going traffic, and were terribly exacting to horses, especially in damp, greasy weather.



"'It 'im on the raw, mister!" suggested a countryman in the old days to the omnibus driver, as the vehicle toiled up the steep, towards the City.

Alas! poor horse.

"Not yet," returned the driver, who knew his business; "we saves that for 'Obun 'ill!" That was the supreme effort!

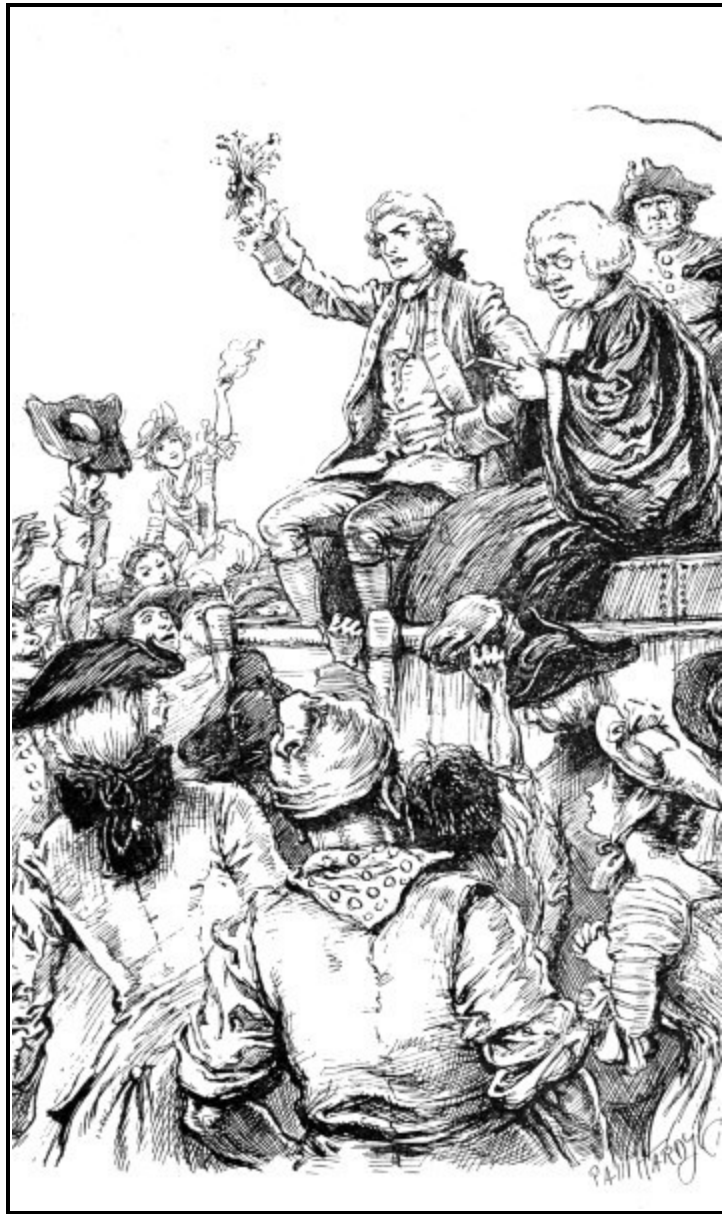
The descent of Holborn Hill was the first thing that lay before those old-time melancholy processions to the Elms in very ancient days, and to Tyburn, about half a mile further westward, in later ages; and something of what it was in the way of a descent we may still judge by looking down over the parapet of the Viaduct, on to Farringdon Street, far below. Before the procession fairly started on its way down this declivity, it halted by the

porch of St. Sepulchre, and the criminal, so soon to die, received a large nosegay from the clergyman, for all the world as though he were a *débutante* upon the concert platform, instead of his being about to make a painful and humiliating entry into the next world. The nosegay was generally tied in the best fashion, with white silken ribbons; and indeed, the thing was done in style by all present, not excepting the central figure, the condemned man, who was almost always, when he could afford it, dressed gaily and fashionably, as though he were going to a wedding. He went to his death like a gentleman, no matter how he had lived his life. The only derogatory circumstance about it was that, while the sheriff rode in his carriage, the real hero of the day was obliged to go the journey in a cart. For the rest, if he were a good-plucked one, the highwayman, forger, murderer, or pickpocket—whatever was his crime—went his way in receipt of a continual ovation. He held the centre of the stage all the way. No one wanted to deprive him of this pre-eminence; be sure of that.

Of these scenes Swift wrote in 1727:

As clever Tom Clinch, while the rabble was bawling,
Rode stately through Holborn to die at his calling,
He stopt at the "Bowl" for a bottle of sack,
And promised to pay for it when he came back.
His waistcoat and stockings and breeches were white,
His cap had a new cherry ribbon to tie't.
The maids to the doors and the balconies ran,
And said, "Lack-a-day, he's a proper young man!"
And as at the windows the ladies he spied,
Like a beau in a box, he bowed low on each side,
And when his last speech the loud hawkers did cry,
He swore from the cart, "It was all a damn'd lie!"
The hangman for pardon fell down on his knee:
Tom gave him a kick in the guts for his fee:
Then said, "I must speak to the people a little;
But I'll see you all damn'd before I will whittle!
My honest friend Wild (may he long hold his place),
He lengthen'd my life with a whole year of grace.
Take courage, dear comrades, and be not afraid,
Nor slip this occasion to follow your trade;
My conscience is clear, and my spirits are calm,
And thus I go off, without prayer-book or psalm;
Then follow the practice of clever Tom Clinch,
Who hung like a hero, and never would flinch."

The original of this savage satire was, no doubt, Tom Cox, the younger son of a gentleman of Blandford, who, resenting his meagre fortune under that old fetish of the English landowner, the law of primogeniture, came to London for the purpose of adding to it in what was then the conventional manner. His career was ended, too, by the authorities with an equally slavish regard to precedent, for when convicted at the Old Bailey of highway robbery, he was sentenced to be hanged; and if, as a matter of fact, his actual ending at Tyburn on June 3rd, 1691, was marked by an incident of striking originality, it was his own pluck and resource that provided the piquant sensation created, and nothing officially contributed.



CLEVER TOM CLINCH GOING TO EXECUTION.

He had been heedless in the extreme while in prison of the ministrations of the Ordinary, and, being well provided with money, lived his last days riotously. Even when beneath the gallows at Tyburn he remained unmoved, and when the Ordinary asked if he would not join with his fellow-sufferers in prayer, he swore and kicked both him and the hangman out of the cart. He was but twenty-six years of age when he died.

But good humour generally prevailed on the way: "The heroes of the day were often on excellent terms with the mob, and jokes were exchanged

between the men who were going to be hanged, and the men who deserved to be."

Not only the "mob" enjoyed these occasions: people who, by position and education ought to have known better, made a point of either witnessing the start, or, better still, of being present at the actual execution. Those were not constituent items of the "mob" who, for example, paid their half-crowns for seats in the grand stand that was a permanent structure at Tyburn, to witness the final scene; but they had all the ferocity of mobs, and showed it one day in 1758, when, having paid their money to see Dr. Henesey hanged, he was not hanged, but reprieved instead. Enraged at this shameful breach of faith—and not at all glad that one fellow-mortal had at the eleventh hour escaped a shameful end—they wrecked the seats and departed in a by no means appeased ill-humour.

Some enthusiastic sightseers walked all the way: they could not have too much of a good thing. Happy were those who could not only do that, but could by favour secure a place next the criminal himself! T. J. Smith, who wrote the well-known volume called *A Book for a Rainy Day*, tells how, as a little boy, he was nearly given such a treat. He did, at any rate, witness the start, under the care of Nollekens, and saw the clergyman give the condemned malefactor the nosegay: but the greater treat was, by a mere accident, not to be his.

"Tom, my little man," whispered Nollekens, "if my father-in-law, Mr. Justice Welch, had been high constable, we could have walked beside the cart all the way to Tyburn."

Where Holborn Viaduct ends westward in the Circus, graced in these latter days of ours with that polite equestrian statue of the Prince Consort, lifting his cocked hat so high to omnibus passengers, the Tyburn procession arrived at the summit of Holborn Hill; passing to it beneath the tall tower of St. Andrew's church. The respectable inhabitants of Thavies' Inn—that demure row of red-brick houses on the left hand, built late in the seventeenth century, or early in the eighteenth—were, we may be sure, as eager to view the passing show as were the "lower orders." The windows of the "Old Bell" inn, last but one of the ancient galleried inns of London, demolished so recently as 1897, were, no doubt, in great demand; and

indeed, at all the many hostelries on the line of march the sightseers gathered, and at one and the same time satisfied their curiosity and quenched the thirst it provoked. But gone are all the relics of the coaching days, and most others. Holborn is not what it was. Nothing is.

The weirdest jokes were current of the doomed criminals' behaviour on this melancholy way. Thus Thomas Witherington, executed in 1635, when going up Holborn Hill, requested that the cart might be stopped, for he desired to speak to the sheriff's deputy, who was conducting the affair. "Sir," he is reported to have said, when the deputy asked what it was he wanted, "I owe a small matter at the 'Three Cups' inn, a little further on, and I am afraid I shall be arrested for debt as I go by the door. So I shall be much obliged to you if you will be pleased to carry me down Shoe Lane and bring me up Drury Lane again, so that we don't pass it, and perhaps lose my appointment at Tyburn."

The deputy, entering into the humour of it, said he could not alter the route, but, if they were stopped, he would certainly go bail for him; and so Witherington, "not thinking he had such a good Friend to stand by him in time of need, rid very contentedly to Tyburn."

As these cavalcades progressed, they came gradually into the country. They passed the ultimate boundaries of the City at Holborn Bars, where the ancient timbered and gabled buildings of Staple Inn still look across the road to what is now Gray's Inn Road, but was then merely a lane. Near by is Furnival Street, formerly Castle Street, as a tablet dated 1785 proclaims.



"Holborn Bars" is a name that but mildly stimulates the curiosity of modern Londoners, who, seeing no bars here, wonder idly about the name, resolve to inquire about it, and then in the busy life they lead, forget their passing interest. There were toll-bars here in the highwaymen's days, and

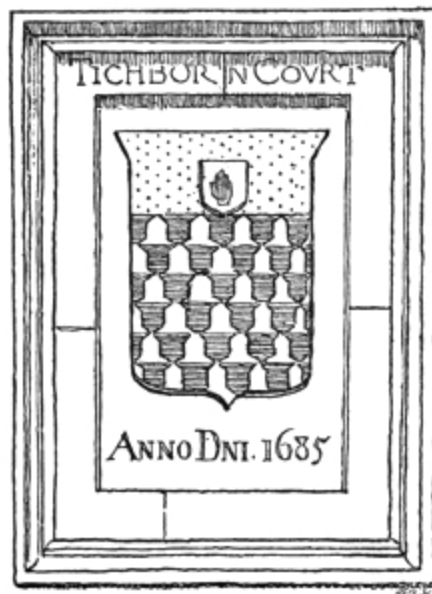
those who care to seek for themselves may still determine the exact boundary of the City of London, for a granite obelisk on either side of the road, bearing the City arms, still marks the spot. London had reached thus far early in the seventeenth century, but it went little further westward for another hundred years.

The names of Great Turnstile, Little Turnstile, and New Turnstile, now narrow side streets, giving upon Lincoln's Inn Fields, are reminiscences of the time when the land westward of Lincoln's Inn really was meadow-land, instead of a London square garden surrounded by houses. These various "Turnstile" streets still keep the ancient narrowness of the country lanes they once were, when the "kissing-gates," or turnstiles, led into green fields spangled with butter-cups and daisies; but such things are things of long ago: the old wall-tablet at the Holborn end of New Turnstile, dated 1688, showing when the rustic pathways were first exchanged for streets, and the wayside hedges for bricks and mortar. Until quite recent years Tichborne Court remained near by, with its fine tablet bearing the Tichborne arms and the date 1685.



Kingsway, London's new street, immediately westward, has been driven along the line of Little Queen Street since 1903; its name in some fashion intended to perpetuate the route taken by Charles the Second between Whitehall and Newmarket. When His Majesty shed the light of his

countenance upon the races, or when he merely wished to visit his palace at Theobalds, near Cheshunt, his way would lie along what is now Kingsway, across Holborn, along the now vanished Kingsgate Street (demolished in 1903, in the Holborn to Strand street-improvements), and into the Theobald's Road. Kingsgate Street derived the second part of its name from it having been a private road for the King's own use: barred and locked against the passage of meaner folk, except in the case of a privileged few, fortunate enough to obtain passes. Less influential people, passing on foot, on horseback, or by carriage towards Cheshunt and Newmarket, in the wake of the Court, had to struggle as best they might through a network of peculiarly evil and muddy lanes, infested with highwaymen, who, nothing daunted by witnessing the dismal processions of their brethren going westward, robbed with celerity and an exquisite assurance those who, repairing to the races, would in all likelihood have lost their guineas on Newmarket Heath.



Thus we read in one of the "News Letters" of Charles the Second's time, under date of 1666: "Last Monday week in Holborn Fields, while several gentlemen were travelling to Newmarkett, to the Races there, a Highway Man very politely begg'd their Purses, for he said he was advis'd that he should win a great Sum if he adventur'd some guineas with the Competers at New-Market on a certain horse call'd 'Boopeepe,' which my Lord Excetter was to run a match. He was so pressing that they resign'd their

Money to his keeping (not without sight of his pistols); he telling them that, if they would give him their names and the names of the places where they might be found, he would return to them that had Lent, at usury. It is thought that his Venture was not favourable, for the Gentlemen have not receiv'd neither Principle nor Interest. It is thought that it was Monsieur Claud Du Vall, or one of his knot, that Ventur'd the Gentlemen's money for them."

Not only have all those lanes disappeared in the long ago, but even such comparatively late landmarks as Kingsgate Street are no more: Kingsgate Street, the home of Sairey—"which her name is well beknownst is S. Gamp."

A little distance further westward, the Londoner not deeply versed in the ancient lore of the metropolis is greatly surprised at finding High Holborn curving boldly to the left and departing in the most marked manner from that straight line to the west traced nowadays by New Oxford Street. He does not know, or does not stop to consider, that New Oxford Street really is new, as newness in streets goes. It is, in fact, not older than 1847. Before it was made, there was no good through-route between the City and Tyburn, and the line of road went by a circuitous course, still easily traced—by High Holborn, Broad Street, and High Street, Bloomsbury. Passing under the very shadow of the Church of St. Giles—anciently "St. Giles-in-the-Fields"—the road again fell into the straight line opposite Tottenham Court Road.

The reason for this curious departure from the direct course is thought to have been the existence in ancient times of a lake, or marsh—a certain "Rugmere" mentioned in old records—covering the site of what is now New Oxford Street. However that may have been, this marsh must in course of centuries have dried up, for the site was built upon in later ages.

It was not an idyllic village that by degrees came into existence here. It formed an annexe to St. Giles's, a village itself associated from remote times with undesirables. A leper hospital was one of the early features of the place, and poverty and crime in later years came to roost by natural selection there; until, in fact, the proverbial conjunction of St. James's and St. Giles's, indicating the opposite extremes of aristocratic elegance and

unredeemed vulgar squalor, was coined out of its flagrant raggedness and dirt. The particular spot through which New Oxford Street runs, was the deepest deep of that foul slum. Drink and depravity met there and flourished. It was generally known, this very microcosm of criminal life, as "The Rookery," but satirists called it, in obvious contrast with its real character, the "Holy Land." None dared venture into that select purlieu, except under police protection; and London breathed more freely when, in 1844, it was at last decided to remove this long-threatened plague-spot. Three years later, the new thoroughfare was opened; the improvement had cost no less a sum than £290,227 4s. 10d., of which £113,963 went to the Duke of Bedford, as compensation, although the work had the effect of increasing the value of his adjoining property. The transaction is an eloquent instance of the marvellous and continued success of the Russell family in feeding fat upon the body politic, like lice upon the corporeal body. It does not appear that, although His Grace was advantaged thus enormously, both by betterment and by compensation, the unfortunate owners and occupiers of houses and business premises in those highways suddenly converted into byways received any of the much-needed compensation for the "worsenment" they suffered. For when New Oxford Street was made, the fortunes of High Street, Bloomsbury, of Broad Street, and of the circuitous part of High Holborn were at once shattered, and they at one stroke became the byways they have ever since remained.

Swift, in his ballad of "Clever Tom Clinch," mentions the "Bowl" inn, at which the convict called "for a bottle of sack." This was a house that stood at the corner of what is now Endell Street and Broad Street. For "sack," which Swift probably used for the sake of the rhyme with "come back," read ale, and the verse is true to facts; for the processions halted at the "Bowl" ale house, and the criminals were offered a drink of ale; and it does not seem ever to be recorded of them that they refused it. Perhaps they took with them memories of the old saying, that "the saddler of Bawtry was hanged for leaving his ale": an unfortunate occurrence directly attributable to his ill-humour. No one knows what the saddler had done, but he was to die for it, and being led out to York's execution place, on Knavesmire, turned from the drink offered him on the way. He had been effectually hanged only a minute or two, when an unexpected reprieve came by a hurried messenger; too late.

All the good-plucked ones on their way to Tyburn, were not only expected to take their ale, but to make that joke about "coming back" to pay for it. It was as essential and as conventional as the clown's, "Here we are again!" Some surly ruffian might be moved, once in a way, to drain the bowl, fling it empty at the landlord, and bid him "wait for payment till he met him in H—ll"; but that was ungentlemanly, and the assignation not certain of fulfilment. Sometimes it would happen that one of these travellers going on to dance upon nothing at Tyburn would make variations upon the old theme; but nothing seems to have been quite so neat as the last remark of an atrocious villain, Tom Austin, who, when he stood with the rope round his neck, replied to the Ordinary's query if he had anything to say before he died: "Nothing: only there's a woman yonder with some curds and whey, and I wish I could have a pennyworth of them before I am hanged, because I don't know when I shall see any again."



AT THE "BOWL."

Leaving the "Bowl" and threading the narrow passage of High Street, Bloomsbury, the processions, passing St. Giles's Pound, came into the "Tyburn Road," called sometimes "the Oxford Road," and now, and since about 1718, styled Oxford Street. Lysons, in his *Environs of London*, says the row of the first few houses on the north side of Tyburn Road westward of the Tottenham Court Road, was completed in 1729, and then it was first called Oxford Street; but he is clearly in error, for until about 1888 there remained built into the wall of No. 1, Oxford Street, on the south side, at the

first-floor level, an oval tablet inscribed, "This is Oxford Streete, 1725." When the houses were rebuilt, this simple relic disappeared. But a still earlier tablet remains to disprove Lysons. This is one built into the wall of a house at the corner of Rathbone Place, which announces "Rathbones Place in Oxford Street 1718." The omission of the possessive case apostrophe has a somewhat gruesome effect, when we consider the old story of Oxford Street; but the side street was then the property of a certain Captain Rathbone. Oxford Street then had a very unenviable reputation. Pennant's description of it in his own youthful days forms interesting reading.



"I remember Oxford Street," he says, "a deep hollow road, and full of sloughs; with here and there a ragged house, the lurking-place of cut-throats: insomuch that I was never taken that way by night in my hackney-coach, to a worthy uncle's, who gave me lodgings in his house in George Street, but I went in dread the whole way."

Rathbone Place did not long remain the most westerly street. By 1725 a good deal of the parish of St. George, Hanover Square, on the opposite side of the road, was in existence, and was at once fashionable; and Thomas Street, with its tablet dated 1725, shows that, originally as "Bird Street," it had carried the bricks and mortar tide still further.



It can easily be understood that the stigma of the Tyburn route was at this period of development beginning to be resented by these new settlers, who glanced with loathing at the crowds who came to give the condemned a good send-off.



It was said that 200,000 persons visited Tyburn to witness the execution of Ferdinand, Marquis Paleotti, in 1718, for the murder of his servant, named, by a curious coincidence, Jack Sheppard, and thus by no means to

be confounded with the famous Jack Sheppard, pickpocket and burglar, who was executed here in 1724.

Henri Misson, one of the most entertaining and instructive of foreign travellers in England, who travelled among us in 1718, and wrote his experiences and impressions, says: "Hanging is the most common Punishment in England. Usually this Execution is done in a great Road about a quarter of a League from the Suburbs of London. The Sessions for trying Criminals being held but Eight Times a Year, there are sometimes twenty Malefactors to be hang'd at a time.

"They put five or six in a Cart (some gentlemen obtain leave to perform this journey in a coach) and carry them riding backwards, with the Rope about their Necks, to the fatal Tree. The Executioner stops the Cart under one of the Cross Beams of the Gibbet, and fastens to that ill-favoured Beam one End of the Rope, while the other is round the Wretches Neck. This done, he gives the Horse a Lash with his Whip, away goes the Cart, and there swings my Gentleman Kicking in the Air.

"The Hangman does not give himself the Trouble to put them out of their Pain; but some of their Friends or Relations do it for them. They pull the dying Person by the Legs, and beat his Breast, to dispatch him as soon as possible. The English are People that laugh at the Delicacy of other Nations, who make it such a mighty Matter to be hanged. Their extraordinary Courage looks upon it as a Trifle, and they also make a Jest of the pretended Dishonour that, in the opinion of others, fall upon their Kindred.

"He that is to be hanged, or otherwise executed, first takes Care to get himself shaved and handsomely dressed; either in Mourning, or in the Dress of a Bridegroom. This done, he sets his Friends at Work to get him Leave to be buried, and to carry his Coffin with him, which is easily obtained. When his Suit of Clothes, his Night Gown, his Gloves, Hat, Periwig, Nosegay, Coffin, Flannel Dress for his Corps, and all those things are bought and prepared, the main Point is taken Care of. His Mind is at Peace, and then he thinks of his Conscience. Generally he studies a Speech, which he pronounces under the Gallows, and gives in Writing to the Sheriff or the Minister that attends him in his last Moments; desiring that it may be printed. Sometimes the Girls dress in White, with great Silk Scarves, and

carry Baskets full of Flowers and Oranges, scattering these Flowers all the Way they go. But, to represent Things as they really are, I must needs own that if a pretty many of these People dress thus gaily, and go to it with such an Air of Indifference, there are many others that go slovenly enough, and with very dismal Phizzes."



AN EXECUTION AT TYBURN.

Jonathan Wild, hanged May 24th, 1725, was a whimsical fellow at the last of his career, for he picked the pocket of the Ordinary on the way. It is perhaps most exquisitely characteristic of the race of Newgate Ordinaries

that the article stolen was a corkscrew. "Jonathan Wild the Great," as Fielding calls him, "died with the eloquent trophy in his hand."

Half a century later, those Newgate chaplains enjoyed an equally bad—if, indeed, not a worse—reputation, and a slighting remark is made in Storer's letter to George Selwyn, in describing the execution of Dr. Dodd for forgery, on June 27th, 1777. He rode to Tyburn in exceptional state, in a carriage, and as a heavy rain-shower was falling at the moment of his entering the cart, an umbrella was held over him, so that he might not be wetted. It was unfeelingly remarked at the time that the precaution was entirely unnecessary, for he was going to a place where he would soon be dried. John Wesley, who also witnessed the execution, was of a different, and a more charitable, opinion. "I make no doubt," he said, "but at that moment the angels were ready to carry him into Abraham's bosom."

"He was a considerable time in praying," says Storer, "which some people about seemed rather tired with; they rather wished for a more interesting part of the tragedy. There were two clergymen attending upon him, one of whom seemed very much affected. The other, I suppose, was the Ordinary of Newgate, as he was perfectly indifferent and unfeeling in every thing he said and did."

In Hogarth's print of the final scene in the life of the *Idle Apprentice*, arrived at Tyburn to be hanged, we have a very painstaking representation by that matter-of-fact artist of one of these fearfully frequent executions. Hogarth was the most uncompromising realist; he set down what he saw, and extenuated nothing. Thus, in this view, we may be quite sure we see a typical execution in the middle of the eighteenth century; the criminal seated in the cart, with his coffin dolorously ready to receive his body, while with one eye upon the prayer-book, and the other on the ribald crowd, he strives to pay attention to the last exhortations of the Ordinary, who is seen with uplifted hand and finger pointing to the sky, apparently comforting him with the assurance that he shall find that mercy in the other world, which man has denied him in this.



EXECUTION OF THE IDLE APPRENTICE AT TYBURN.

The sheriff's mounted guard, with their halberds, look unconcernedly on, for this is an almost everyday business with them. One is seen joking with a comrade. Drunken women are drinking gin, pickpockets are at work, and a slatternly woman is crying the "Last Dying Speech and Confession of Thomas Idle."

On the right hand is the permanent stand for those spectators who were above mixing with the mob, and were prepared to pay well for the comfortable circumstances in which they could witness a fellow-creature publicly put to a shameful death. Close by, you perceive the "three-legged mare" itself, at that time a fixed, and a very roomy and most substantial structure, designed to accommodate as many as a dozen or so criminals at one time; so plentiful then were the hangings. The hangman himself is seen to be idly reclining on top, smoking a contemplative pipe, until it shall please the clergyman to finish, and hand over the doomed man to him. And there is the Sheriff's carriage, and on the left hand the brick wall, which then enclosed Hyde Park. In the far distance are seen the pleasant heights of

Notting Hill, then in the open country, and no doubt a spot where the innocent delights of gathering hazel-nuts could still be enjoyed, as in the times when it was first called the "nutting" hill.



QUEEN HENRIETTA MARIA PRAYING AT TYBURN.

So changed are the modern circumstances of the spot where Tyburn Gate in later times, and Tyburn gallows in earlier years, stood, that vexed controversies are continually arising as to the exact spot on which the gallows was erected. It is not, really, a difficult point to settle. The structure shown in Hogarth's engraving, and displayed in a still earlier German print, in which Queen Henrietta Maria, the consort of Charles the First, is seen to be making pilgrimage and praying for the souls of her Roman Catholic servants hanged here, was erected exactly in the middle of the road, where, as you go westward, the straight line of Oxford Street and the Bayswater Road is met by the Edgware Road. Old maps indisputably prove it, and the point is more particularly settled by a large and very detailed plan of the parish of St. George, Hanover Square, made in 1725, and until recently in the vestry. It is now in the Buckingham Palace Road branch of the

Westminster Public Libraries, where an old engraving of it also hangs on the staircase. This plan shows the parish boundary running up Park Lane to Oxford Street, and there meeting the boundaries of Marylebone and Paddington, at the junction of Oxford Street, the Bayswater Road, and the Edgware Road. The three boundaries all meet in the middle of this confluence of thoroughfares, and there the gallows is shown, one of its three legs in each parish.

In its later years, Tyburn as a hanging place became more varied, and the permanent gallows gave way to a temporary one, erected at different points somewhat further west. Two circumstances suggested this: firstly, the building of houses overlooking the scene, and the natural wish of the tenants that such dreadful exhibitions should not be displayed absolutely beneath their windows; and secondly, the even more practical necessity of ridding the public highway of the obstruction caused by the permanent scaffold. The key to this question of removal is found in the *Gazetteer*, May 4th, 1771, which remarked that the Dowager Lady Waldegrave was having a "grand house built near Tyburn," and added that, "Through the particular interest of her ladyship, the place of execution will be removed to another spot."

The highwaymen who suffered so largely here had in their lives, been a danger and a hindrance upon the highway, and they were now found, oddly enough, in the circumstances of their taking off, to be an equal nuisance. The road at this point had begun to be enclosed on all sides, and traffic, no longer able to avoid that ominous timber framework, would have actually been blocked by it. So, as with the passing of the years it had been found that executions tended somewhat to decrease, the permanent gallows was at last disestablished, and a new and movable one was constructed. This was used practically all over the area bounded by Tyburn Gate, at the junction of roads already described; by Bryanston Street, Seymour Street, Connaught Square, Stanhope Place, and so round by the Bayswater Road to Tyburn Gate again. The site of No. 6, Connaught Place, has been particularly mentioned, and, more particularly still, that of No. 49, Connaught Square, which the original lease from the freeholder, the Bishop of London, declares to have been the place where the gallows stood.

It was in 1783 that Dr. Johnson, that revered philosopher, declaimed against the changes then being witnessed. Perhaps the novelty that most angered him was the proposed abolition of the degrading processions of condemned malefactors from Newgate to Tyburn. "The age is running mad after innovation," he exclaimed to Sir William Scott, "and all the business of the world is to be done in a new way; men are to be hanged in a new way; Tyburn itself is not safe from the fury of innovation."

It was timorously remarked that this change would, at any rate, be an improvement upon the old order of things; but Johnson, like most elderly men, thoroughly believed in what has been styled, "the gospel of things as they are," and he vehemently retorted, "No, sir, it is *not* an improvement; they object that the old method drew together a number of spectators. Sir, executions are intended to draw spectators. If they do not draw spectators, they don't answer their purpose. The old method was most satisfactory to all parties: the public was gratified by a procession; the criminal was supported by it. Why is all this to be swept away?"

But the age was more progressive than Dr. Johnson, and 1783 did actually witness the last execution at Tyburn. Unhappily, public executions did not come to an end at the same time; such dismal exhibitions continuing in London to draw huge and riotous crowds at the Old Bailey until they were finally abolished in 1868. The old excuse for public executions—that they were valuable as deterrents from crime—had long been proved singularly ill-founded; and it was notorious that these gruesome occasions, in some morbid fashion, attracted not only a ruffianly and callous assemblage, but brought all the graduates in crime to the spot to witness a scene in which themselves would, in all probability, some day figure as chief actors. The last dying speeches of the criminals were heard by few in the crowd, and were aptly described as "exhortations to shun a vicious life, addressed to thieves actually engaged in picking pockets." The hardened wretches who looked on at these last scenes, and who had, many of them, already qualified for a place in the cart, had a kind of perverted professional pride. They applauded when a malefactor, with a curse and a jest, "died game," and they howled disapproval when some poor nervous creature broke down pitifully on the verge of eternity.

We observe in the rough but effective old woodcut which graces, or at any rate, occupies, if it does not grace, the end of this chapter, a criminal, not only dying game (in spite of the curious black-faced, cheerful, parrot-like hangman above, who seems to be thoroughly enjoying himself), but apparently distributing handbills; very much to the astonishment of the sheriff's bodyguard, whose faces exhibit a singular variety of emotions. Perhaps the criminal is so unconcerned because he knows it impossible to hang him on so short a gallows as that shown here. The illustration is one of the curious seventeenth-century representations of current events that formed the pictorial news of the age.

The last person actually to be executed at Tyburn was John Austin, hanged there November 7th, 1783.



CHAPTER XII

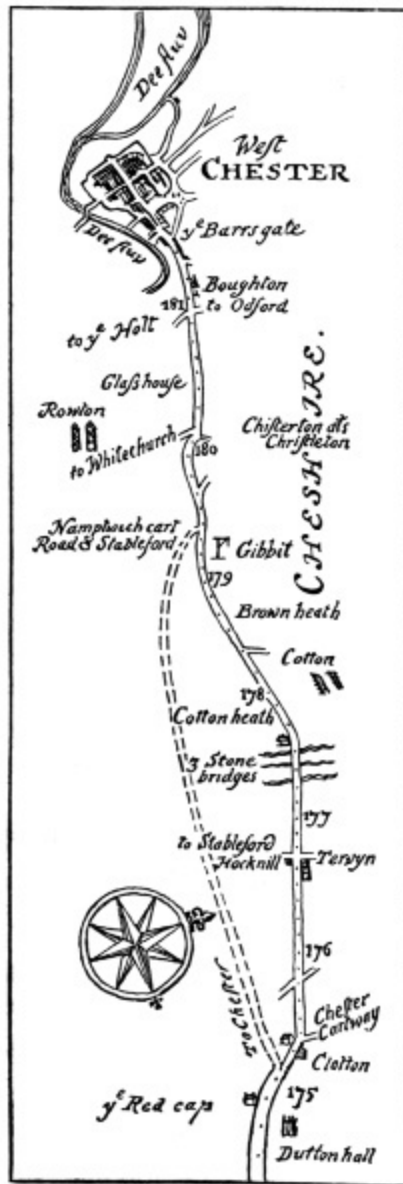
THE WAYSIDE GIBBETS

The dead bodies of thy servants have they given to be meat unto the fowls of the heaven, the flesh of thy saints unto the beasts of the earth.—PSALM lxxix. 2.

THE highwaymen were not specifically servants of the Lord, and certainly never numbered a saint in their ranks; but the point to be made here is that, after all, they were human beings, who lived in a supposedly civilised country, and were entitled to be turned off in a gentlemanly way; and, their crimes being thus expiated, to be buried decently and allowed to rest. For a murderer, it may readily be conceded, nothing could be too severe in the way of punishment. Let the bodies of those who profane God's temple be themselves profaned with every offensive circumstance. But for mere robbery upon the highway the methods of the law were too drastic.

When it was considered more than usually desirable to convey a warning to evil-doers in general, and highwaymen in particular, that Justice was still vigilant and ready to punish crime, the bodies of executed malefactors were occasionally set up along the roads on tall gallows and hanged, or "gibbeted," there in chains or in an especially constructed iron framework, so that they might remain for a length of time, to preach an eloquent sermon to some classes of the passers-by, and to disgust others.

Among the features of the country to which the old map-makers especially devoted their attention, the gibbets and the beacons along the roads are most prominent. Ogilby, in his *Britannia* of 1675, shows a startlingly large "gallows," like a football goal, a mile and a half on the London side of Croydon, and on the Tarporley-Chester Road shows a "Gibbit," two miles and a half from Chester.



THE ROAD NEAR CHESTER, 1675.

There was never any lack of subjects for gibbeting purposes, but it was generally desired to preserve the criminal's body as long as possible, to avoid the trouble and expense of replacing him with a fresh subject; and to that end the practice was either to place the body in a copperful of boiling pitch, or to pour pitch over it. So treated, it would last an almost incredibly long time: always supposing the relatives of that public exhibit did not come by stealth and make away with it.

There are still a few gibbets to be found in England: but rarely, or never, the original posts. A sentiment which we are not quite prepared to declare a perverted one, but which is certainly a sufficiently gruesome manifestation of antiquarian enthusiasm, has led to the old gibbet-posts being renewed from time to time in several places; and there they stand, on hill-tops or by roadsides, reminders of those fearful old times when such things as these could be.

In these pages we are concerned only with those that bear upon the subject of the highwaymen. Among these Caxton Gibbet is prominent, standing as it does on the North Road, between Royston and Alconbury Hill. The particular spot where the gibbet stands is an exceedingly lonely, and, to some minds dismal, stretch of road that winds in the flat, featureless lands, with never a house in sight but the neighbouring wayside alehouse, the "Gibbet" Inn. Only one mile distant is the village of Caxton, but to all appearances the spot might be many miles remote from even a hamlet.

Caxton, according to Cobbett, resembles a Picardy village; "certainly nothing English," he savagely continued, "except some of the rascally rotten boroughs in Cornwall and Devonshire, on which a just Providence seems to have entailed its curse. The land just about here does seem to be really bad. The face of the country is naked. The few scrubbed trees that now and then meet the eye, and even the quick-sets, are covered with a yellow moss. All is bleak and comfortless; and just on the most dreary part of this most dreary scene, stands almost opportunely, 'Caxton Gibbet,' tendering its friendly one arm to the passers-by. It has recently been fresh painted, and written on in conspicuous characters."



CAXTON GIBBET.

And so it remains to-day.

Among the criminals gibbeted on the original Caxton Gibbet was George Atkins, who in 1671 had murdered Richard Foster and his wife and child in the adjoining parish of Bourne. He remained at large for seven years, and was then captured and hanged; his body being afterwards exhibited here. But the most pitiful story connected with it is that of the younger of the two sons of Mrs. Gatward, a widow, who for many years kept the "Red Lion" Inn at Royston. She was assisted by her two sons in the coaching and posting business attached to the inn; but the younger took a sudden fancy to become a highwayman; probably from a mere love of excitement, or dared to do it by companions of his own age. Whatever the compelling cause, he went out and waylaid the postboy carrying the mails between Royston and Huntingdon, and robbed the bags. He was arrested, condemned to death, and hanged, and his body was gibbeted here.

The story of this amateur highwayman is to be met with in the manuscript history of Cambridgeshire, written by Cole, a diligent eighteenth-century antiquary: "About 1753-54, the son of Mrs. Gatward, who kept the 'Red Lion' at Royston, being convicted of robbing the mail,

was hanged in chains on the Great Road. I saw him hanging in a scarlet coat, and after he had hung about two or three months it is supposed that the screw was filed which supported him and that he fell in the first high wind after. Mr. Lord, of Trinity, passed by as he lay on the ground, and, trying to open his breast to see what state his body was in, not being offensive but quite dry, a button of brass came off, which he preserves to this day.... It was a great grief to his mother, who bore a good character, and kept the inn for many years after."

The story goes that the mother had the body secretly conveyed to the inn, and gave it decent, if unconsecrated, burial in the cellar.

It is easy to find the excuse that society had to be protected at all costs, to condone the savagery of those who permitted gibbeting for what we in our own age would consider a minor crime; but if we pause a moment, and strive to realise the feelings of the surviving relatives by imagining one of our own belongings so shamefully exposed like carrion, for the ravens and the crows to feed upon, we shall not so readily find excuse for that fearful procedure.

The story of Mrs. Gatward's son very nearly fits that which suggested to Tennyson his gloomy and pitiful poem, "Rizpah"; but the original motive for that poem is usually said to have been a gibbet on the downs between Brighton and Worthing. In that case also, the victim was a lad who had robbed the mail for a mere freak. There was no mercy for him.

They killed him, they
Kill'd him for robbing the mail,
They hanged him in chains for a show.

There was no consideration for amateurs in that dreadful eighteenth century in which many writers have found a specious glamour of romance, because men and women wore powder and patches and sported silken clothes of amazing colours and styles. Who shall admire the embroidered waistcoat if no feeling heart beats beneath it, and what are manners or deportment if they but mask the tiger.

Rizpah, whose name forms the title of Tennyson's poem, was the concubine of King Saul and mother of Armoni and Mephibosheth, who were hanged and gibbeted, together with the five sons of Michal, on the

sacred hill of Gibeah. There they remained from the early days of barley harvest until October. "And Rizpah ... took sackcloth and spread it upon the rock, from the beginning of harvest until water dropped upon them out of heaven, and suffered neither the birds of the air to rest on them by day, nor the beasts of the field by night."—2 SAMUEL xxii. 10.

The poor old woman of the poem is a sadder figure than Rizpah, for she is nearer, in time and place, to ourselves, and is represented as gathering up the bones of her only son, as they drop from the gibbet. Hers is a figure of terror and for pity:

Wailing, wailing, wailing, the wind over land and sea—
And Willy's voice in the wind, "O mother, come out to me."
Why should he call me to-night, when he knows that I cannot go?
For the downs are as bright as day, and the full moon stares at the snow.
We should be seen, my dear; they would spy us out of the town.
The loud black nights for us, and the storm rushing over the down,
When I cannot see my own hand, but am led by the creak of the chain,
And grovel and grope for my son, till I find myself drenched with the rain.
Anything fallen again? Nay—what was there left to fall?
I have taken them home, I have number'd the bones, I have hidden them all.
They would scratch him up—they would hang him again on the cursed tree.
Sin? O yes—we are sinners, I know—let all that be,
And read me a Bible verse of the Lord's good-will towards men—
"Full of compassion and mercy, the Lord"—let me hear it again;
"Full of compassion and mercy—long-suffering." Yes, O yes!
For the lawyer is born but to murder—the Saviour lives but to bless.

Robbers of His Majesty's mails had always been hanged on conviction, but this severity had proved no deterrent, and it was not until the Earl of Leicester, Postmaster-General in 1753, prevailed upon the Government to have their bodies afterwards hung in chains, that any diminution of mail-robberies took place. Highwaymen, it is curious to reflect, did not so much mind being hanged, but had the greatest horror of their bodies being afterwards exposed. It is a weakness not readily to be understood, this horror, not of death, but of the desecration of the senseless body after death; but it was a very useful feeling to play upon, by way of deterrent.

That the highwaymen and the murderers were not always dissuaded from their crimes by the prospect of this post-mortem indignity is of course to be readily supposed. There was always the chance of their not being discovered. Thus, although mail-robberies were probably much fewer than they would have been, except for the gibbeting order, they still were a

feature of the highwaymen's enterprises: and the midnight roads continued to be awful with pendant bodies, creaking in the wind in their rusted irons.

It is not difficult to mentally reconstruct those times and those wayside incidents, and I can imagine the solitary highwayman proceeding to his shy business. There comes a horseman along the road; he can be heard half a mile away, in the hush of the night when, with the setting of the sun, the cattle have ceased lowing and a distant church clock alone helps to break the stillness. He is in no hurry, this belated cavalier, for the click-clock of his horse's hoofs is measured and he is long in passing.

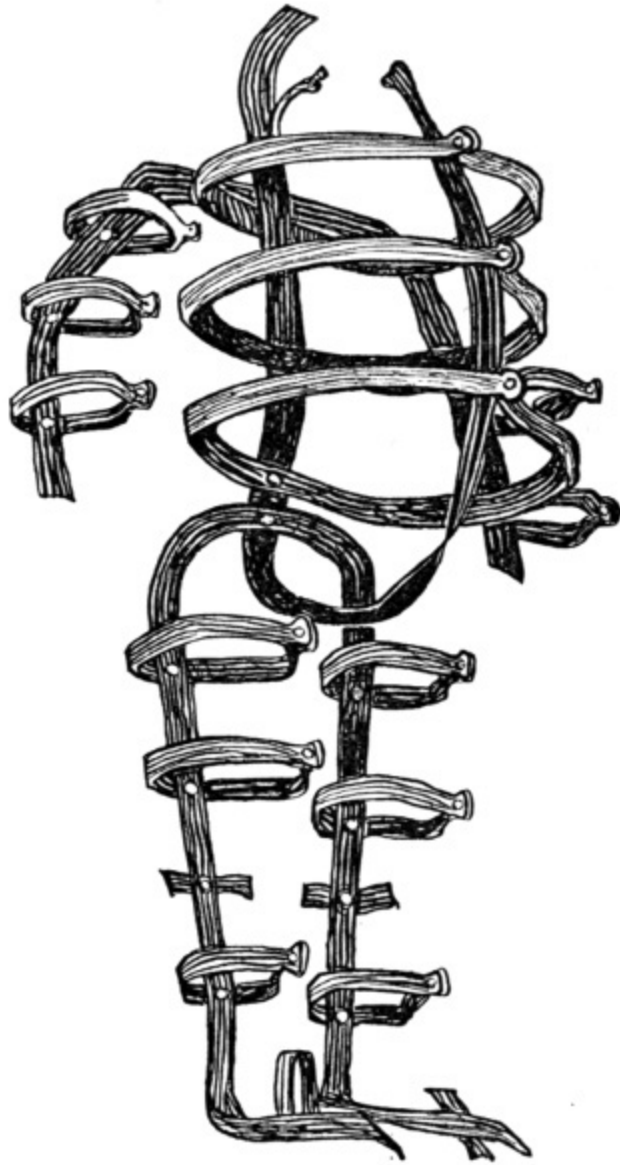
He is gone, pacing slowly up the hill to where the great road goes by the end of the lane, and as he goes we hear him, under his breath, cursing the rising moon for a false jade. By favour of her light we have seen him as he goes, with a crape mask over his face and pistols in his holsters; and recognise him as Hotposset Dick, the highwayman, whose nickname comes from his fondness for mulled port. They say he always has a tankard for his mare as well as for himself when starting out to speak with the mail at Five-ways Cross.

Five-ways Cross is not a cheerful place for Dick just now, and his mulled port is useful for other purposes than keeping out the cold. It is a spot which most people would find lonely, but Dick has company up there; company of a silent kind, which is apt rather to get on the nerves, unless a man is well primed. It is a friend of Dick's, who used to go shares with him in the risks of robbing on the highway and in the profits of their trade. He was caught ignominiously, when carrying too much liquor; hanged, and gibbeted at the Cross afterwards. There he swings by the roadside in his cage, in a contemplative attitude, as though pondering on the mysteries of life and death. Six months' hanging there has not improved either his manly beauty or his clothes, and although the spot is generally shunned by the villagers, some one, for purposes of evil sorcery, has made away with one of the dead man's hands and most of his hair, to make a Hand of Glory.



"THERE HE SWINGS BY THE ROADSIDE, IN HIS CAGE, IN A CONTEMPLATIVE ATTITUDE, AS THOUGH PONDERING ON THE MYSTERIES OF LIFE AND DEATH."

A complete set of gibbet irons is nowadays a somewhat rare and curious object. Their pattern varied according to local taste and fancy. There exists a set in the museum at Warrington, Lancashire, which enclosed the body of Edward Miles, who was executed in 1788 for robbing the mail and for murdering the postboy. He was gibbeted near the Twystes, on the road to Manchester, and the iron frame in which he swung for years was buried at the foot of the gibbet-post. When it was found, in 1845, it had become an antiquity bearing upon the obsolete customs of our forefathers, and was carefully preserved. The shape of it quite clearly indicates the outline of a man's body, and there is even a kind of ghastly smartness about the framework that suggests a military bearing, which must have made the awful object a terribly dramatic sight.



MILES'S IRONS.

In the same neighbourhood in 1796 James Price and Thomas Brown were gibbeted together on Trafford Green, three miles from Chester, for robbing the postboy of the mails; and a pamphlet recounting their trial and execution goes so far as to include a map of the road, and a neat little view of the double gibbet, with Messrs. Price and Brown dangling from it.

The execution of the two brothers, Robert and William Drewett, in 1799, for robbing the Portsmouth mail near Midhurst, was a late example of Post-Office ferocity, and is saddened by the tradition that the younger prisoner

was innocent, and that he refused to clear himself because by so doing he would incriminate his father. The bodies were gibbeted on North Heath Common.

The last person to be gibbeted in England was Cook, who had committed a peculiarly atrocious murder at Leicester [\[4\]](#) in 1832. Two years later, the practice was abolished by statute.

CHAPTER XIII

THE ROADS OUT OF LONDON

I.—THE DOVER ROAD

IT would be difficult, if not impossible, to say which road out of London was the most infested with highwaymen, in all these centuries. Where all were extremely dangerous for honest men, the bad eminence of any particular one is disputable. All the great highways were bordered by lonely wastes and commons until well on into the nineteenth century, and it is not saying too much to declare that the era of the highwaymen did not really end until that of railways had begun. Edmund Burke, who died in 1797, might see fit to declare that the age of the highwaymen was done, and that the age of cheats had succeeded, but he was a little too sanguine, or too despondent, whichever way you feel inclined to look at it. To take Wiltshire alone: one man was hanged at Fisherton gaol, Salisbury, in 1806, for highway robbery, one in 1816, two in 1817, and two in 1824; while in 1839, when the law had become less ferocious, three others were each sentenced to fifteen years' transportation for a most determined highway robbery at Gore Cross, on Salisbury Plain, on the evening of October 21st, in that year.

Gad's Hill, on the Dover Road, had from the earliest times a peculiar prominence in these matters, and even obtained its name from the rogues who lurked there. But, indeed, it is not going beyond the strictest bounds of truth to say that *all* the hills on the Dover Road were of evil repute. There were the cut-throats and footpads who lurked in the wayside trees and rushed out from the leafy coverts of Shooter's Hill, with terrifying cries. They were not politeful, those footpads, and the title of "gentlemen of the road," which was accorded those exquisite thieves, Claude Du Vall and Captain Hind, must needs be withheld from them. We read in the entertaining and instructive diary of Samuel Pepys how on April 11th, 1661, with a lady, he rode along the Dover Road, "under the man that hangs upon

Shooter's Hill, and a filthy sight it is to see how his flesh is shrunk to his bones."

Six men were hanged here, and their bodies exposed on gibbets, in times not so very remote, for robbery with murder upon the highway. The remains of four of them decorated the summit of the hill, while the other two swung gracefully from tall posts beside the Eltham Road. The Bull Inn, which stands on the crest of Shooter's Hill, was in coaching times the first post-house at which travellers stopped and changed horses on their way from London to Dover. The Bull has been rebuilt of recent years, but tradition says (and tradition is not always such a liar as some folk would have us believe) that Dick Turpin frequented the road, and that it was at the old Bull he held the landlady over the fire, in order to make her confess where she had hoarded her money. The incident borrows a certain picturesqueness from lapse of time, but, on the whole, it is not to be regretted that the days of barbecued landladies are past.

The usual stories of highway encounters give the courage to the highwaymen and abject cowardice to their victims, but the positions were reversed in an affray that took place on this particularly bad eminence in 1773. A Colonel Craige and his servant were attacked about ten o'clock one Sunday night by two well-mounted highwaymen, who, on the Colonel declaring he would not be robbed, immediately fired and shot the servant's horse in the shoulder. On this the servant discharged a pistol, and, as a contemporary account has it, "The assailants rode off with great precipitation." That they rode off with nothing else shows how effectually the Colonel and his man, by firmly grasping the nettle, danger, plucked the flower, safety.

Don Juan was equally bold and successful. He was stopped with "Damn your eyes! Your money or your life!" by a party of footpads. He did not comprehend the language: but the meaning of their actions was plain enough:

Juan yet quickly understood their gesture;
And, being somewhat choleric and sudden,
Drew forth a pocket pistol from his vesture,
And fired it into one assailant's pudding—
Who fell, as rolls an ox o'er in his pasture,
And roar'd out, as he writhed his native mud in,
Unto his nearest follower or henchman,
"O Jack! I'm floor'd by that 'ere bloody Frenchman!"

On which Jack and his train set off at speed;
And Juan's suite, late scatter'd at a distance,
Came up, all marvelling at such a deed,
And offering, as usual, late assistance.
Juan, who saw the moon's late minion bleed
As if his veins would pour out his existence,
Stood, calling out for bandages and lint,
And wish'd he'd been less hasty with his flint.

"Perhaps," thought he, "it is the country's wont
To welcome foreigners in this way; now
I recollect some innkeepers who don't
Differ, except in robbing with a bow
In lieu of a bare blade and brazen front.
But what is to be done? I can't allow
The fellow to lie groaning on the road:
So take him up; I'll help you with the load."

But ere they could perform this pious duty,
The dying man cried, "Hold! I've got my gruel;
Oh, for a glass of max! We've miss'd our booty;
Let me die where I am!" And as the fuel
Of life shrunk in his heart, and thick and sooty
The drops fell from his death-wound, and he drew ill
His breath, he from his swelling throat untied
A kerchief, crying "Give Sal that!"—and died.

But not all travellers went armed, nor were all robbers so timorous. Robberies on Shooter's Hill continued without intermission, and at the very close of 1797—the year in which Burke, the statesman, died, who had some years earlier declared the age of the highwaymen to be past—a rather daring one was committed. It was on the Sunday evening, December 30th, and may be found reported in the *Times* of January 2nd, 1798. It was about six o'clock when highwaymen stopped a postchaise on Shooter's Hill, in which were two lawyers, named Harrison and Lockhart, and a midshipman

of H.M.S. *Venerable*. They were travelling to London from Sheerness. The highwaymen took the lawyers' purses and watches. "The man on Mr. Harrison's side treated him with much personal violence, by forcing his pistol into his mouth, on opening the chaise-door." The men did not ask the midshipman for money, but took his trunk, containing all his clothes. No one for a moment thought of so foolish a thing as resisting.

But Gad's Hill was the very worst spot on the Dover Road, and had a very bad record for robbery and murders. When Shakespeare made Gad's Hill the scene of that famous highway robbery, when Prince Hal, Falstaff, Poins, and all the rest of them robbed the merchants, the franklins, and the flea-bitten carriers who were journeying from Rochester, he only made it so because of the ill repute the locality already possessed. The place is not romantic to-day, and it is somewhat difficult to realise that here, where Charles Dickens's hideous house of Gad's Hill Place stands, the valorous Falstaff, brave amid so many confederates, bade the travellers stand, and added insult to injury by calling them "gorbellied knaves" and "caterpillars."



FALSTAFF ON GAD'S HILL.

How the rogue roared!"

There is, indeed, a beautiful view from the southern slope of the hill, looking down upon Strood and Rochester; but to see Gad's Hill as it was of old, we should have to sweep away Gad's Hill Place, and the rows of mean cottages that now form quite a hamlet here. The hedges and enclosures, too, did not exist until modern times, but, instead of them, dense woods and dark hiding-places came close up to, and overshadowed, the highway, which was always full of ruts and liquid mud. These facts will give some idea of how terrible the hill could be of nights, when the rogues who hid in

the shadows sprang forth and relieved travellers of their gold. The Danish Ambassador was set upon and plundered here in 1656, and it is quite evident that the knights of the road who despoiled him were no illiterate rogues, because they sent him a very whimsical letter of explanation, in which they said that: "The same necessity that enforc't ye Tartars to breake ye wall of China compelled them to wait upon him at Gad's Hill." Once in a way, however, travellers were more than equal for these gentry, as we may well see in these extracts from Gravesend registers: "1586, September 29th daie, was a thiefe yt. was slayen, buried"; and again, "1590, Marche the 27th daie, was a theefe yt. was at Gad's Hill wounded to deathe, called Robert Writs, buried."

It would be an easy matter to write a long chapter on Gad's Hill and its terrors. We will conclude with a mention of the Duke of Württemberg's adventure. He and his suite were travelling along the road, when a man with a drawn sword ran after them. The Duke promptly told the coachman to drive as fast as he could; not, as he naïvely added, because he was afraid of one man, but he didn't know how many others there might be. The Prince evidently had that discretion whose lack has been the death of many a bold, but ill-advised, fellow.

Shakespeare's scenes in *Henry the Fourth*, in which the travellers are robbed and Falstaff afterwards fooled, were greatly appreciated in his own day, because such happenings to wayfarers were the merest ordinary incidents of travel, not only in the time of Henry the Fourth, but in that of Elizabeth. The play touched life in one of its most familiar experiences.

II.—THE BATH ROAD

The Bath Road was not far inferior to the old highway to Dover in records of highway robbery, although they are chiefly of a later date than the Gad's Hill encounters; but the records of St. Mary Abbot's Church, Kensington, afford us an interesting peep into a time when the boundary of that now metropolitan borough, towards Knightsbridge, was very dangerous to honest folk. Thus we read, in the burial register, November 29th, 1687, of the interment of "Thomas Ridge, of Portsmouth, who was killed by thieves, almost at Knightsbridge."

This was no mere chance case. Some years earlier, John Evelyn recorded in his diary the ill-repute of the road at this point, and says robberies took place even while the road was full of coaches and travellers. The innkeepers of Knightsbridge shared the disfavour in which these first reaches of the Bath Road were held. When the Duke of Buckingham and the Earl of Rochester quarrelled, in the time of Charles the Second, and agreed to fight a duel, the Duke and his second lay at an inn at Knightsbridge, the night before the encounter, in order to avoid any suspicion of their intentions and any possible interruption. Much to their surprise, they found themselves in some danger of being arrested, not on any charge of breaking the King's peace over the approaching duel, but on the altogether unexpected suspicion of being highwaymen, who purposed skulking at an inn for the night, the better to waylay travellers. "But this," remarks the Duke, in his *Memoirs*, "I suppose, the people of the house were used to, and so took no notice of us, but liked us the better."

And so the neighbourhood remained, very little changed for the better, until the nineteenth century dawned.

It seems, looking upon the closeness of modern Knightsbridge to the very centre of things, almost the language of extravagance to say as much, but the literature of the ensuing periods fully supports the truth of it. Thus writes Lady Cowper, in her diary, October 1715: "I was at Kensington, where I intended to stay as long as the camp was in Hyde Park, the roads being so secure by it, that we might come from London at any time in the night without danger, which I did very often."

In 1736, Lord Hervey wrote from Kensington: "The road between this place and London is grown so infamously bad that we live here in the same solitude as we should do if cast on a rock in the middle of the ocean; and all the Londoners tell us there is between them and us a great impassable gulf of mud." Impassable roads—through which, nevertheless, some wayfarers certainly did manage to pass—and highwaymen may always be bracketed together. Thus in April 1740, only four years after Lord Hervey had written that doleful letter—and we may be quite sure the roads had not improved during the interval—the *Gentleman's Magazine* recorded that, "The Bristol Mail from London was robbed a little beyond Knightsbridge by a man on

foot, who took the Bath and Bristol bags, and, mounting the postboy's horse, rode off towards London."

On June 3rd, 1752, a professional thief-taker named Norton was instructed to repair to Knightsbridge, to see if he could apprehend a man who had on two or three occasions stopped and robbed the Devizes chaise. He proceeded in a chaise to a lonely inn, known as the "Halfway House"—half-way between Knightsbridge and Kensington—and as the vehicle approached, a man stopped it by threats from a pistol. Out jumped Norton and seized the man, a certain William Belchier, who was hanged, a little later.

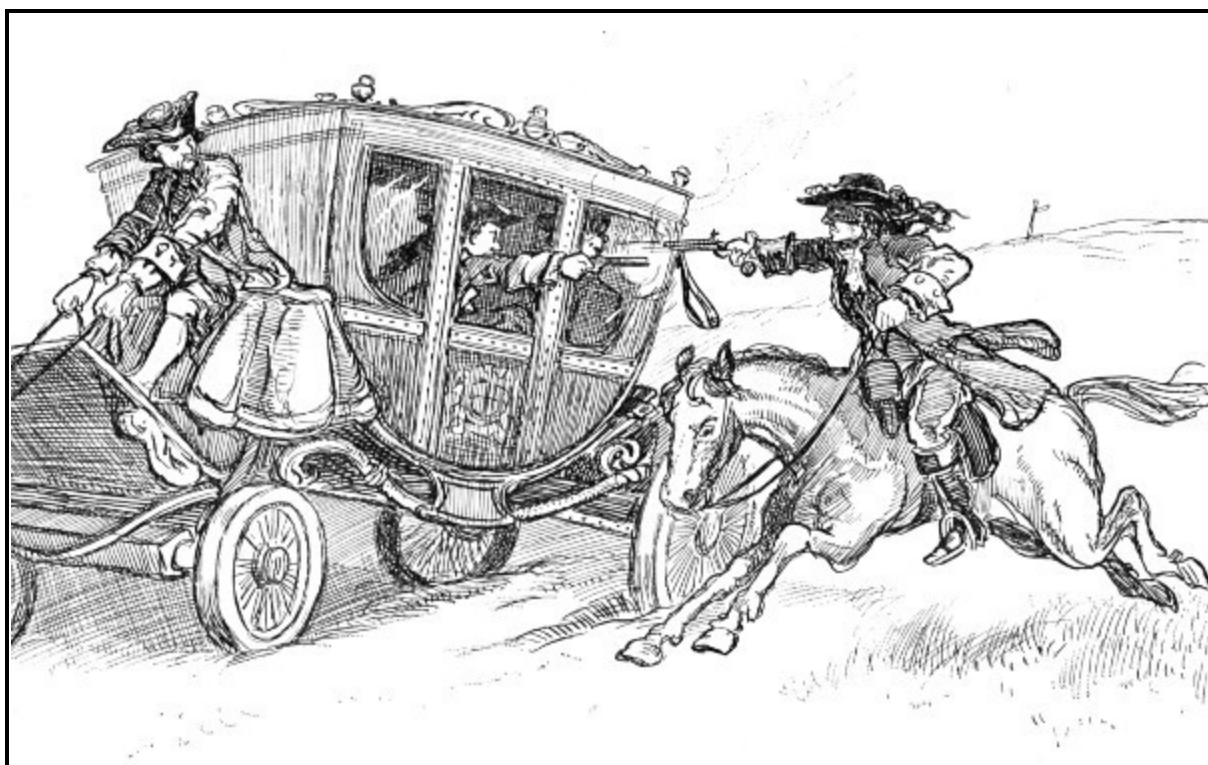
On July 1st, 1774, William Hawke was executed for a robbery here, and two others, for a like offence, on November 30th following. Three highwaymen were thus accounted for, at short intervals, but others, equally daring, were evidently left, for on the 27th of the next month, a Mr. Jackson, of the Court of Requests at Westminster, was attacked at Kensington Gore, by four men on foot. He shot one, and the others fled.

A Mr. Walker, a London police-magistrate, writing in 1835, said: "At Kensington, within the memory of man, on Sunday evenings a bell used to be rung at intervals, to muster the people returning to town. As soon as a band was assembled, sufficiently numerous to ensure mutual protection, it set off; and so on, till all had passed."

Such are the memories that belong to the very beginning of this road; but they cluster most thickly, of course, around Hounslow Heath, on which Du Vall very largely practised, in the reign of Charles the Second. Du Vall is important enough to require a full biography elsewhere in these pages, and we pass on to others, who merely, so to say, stride across the stage, and so disappear.

Hounslow Heath no longer exists as a heath. Enclosure Acts and cultivation have, during the last hundred years, wrought a remarkable change upon the scene, and smiling market-gardens now spread for miles where once existed nothing more than a waste of furze-bushes, swampy gravel-pits, in which tall grasses and bulrushes grew, and grassy hillocks. This home of snipe and frogs, and haunt of the peewit, was not without its highwaymen by day, and at night it swarmed with them.

There was excellent reason why it should be so particularly favoured. Through its whole length ran, not only the Bath Road, from Hounslow town to Colnbrook and Slough, but the Exeter Road, on to Staines. Both roads were largely travelled to and from the West of England, and the Bath Road was, in addition, the road to Windsor; and was from that circumstance travelled by some of the wealthiest and most important people, who sorely tempted the daring spirits of the age. At a time when it was possible for a band of conspirators to assemble in Sutton Lane, near Gunnersbury, for the purpose of waylaying and assassinating William the Third, on his way from Richmond Park to Kensington Palace (February 10th, 1696), it was nothing out of the way for noblemen, returning from a visit to the King at Windsor Castle, to be stopped and robbed in their carriage when crossing Hounslow Heath. Masked robbers made no difficulty about endeavouring to halt Lord Ossulston's carriage here, one day in 1698; and it was merely by good fortune that he escaped with the loss of two of his horses, shot dead. The Duke of St. Albans was also attacked; but, with the aid of the gentlemen with him, beat off his assailants. The Duke of Northumberland, as Macaulay tells us, was not so fortunate, and fell into the hands of these audacious ruffians; with what result we do not learn.



EXCHANGE OF COMPLIMENTS.

A silent reminder of those times still stands beside the Bath Road at Gunnersbury, on the right-hand side of the way as you go from London, and between the modern church of St. James, and Gunnersbury Lane. This is an isolated square brick building, now covered with a tin roof, and quite commonplace in appearance. It has windows looking up and down the road, and large doors facing it. Until a few years ago, it had an old pantile roof, whose striking red colour was the only remarkable feature the building ever possessed. The neighbourhood has long been largely built over, but it still stands in what remains of the once wide-spreading Gunnersbury orchards. Local traditions still survive which tell us that this was a building erected in the time of George the Second, or Third, for the purpose of sheltering the horse-patrol that guarded the road when the King passed this way, travelling between London and Windsor.

Hounslow Heath would seem often to have been the training-ground on which young and inexperienced highwaymen first tried their luck. Graduating here, they would with confidence take the road in distant shires. For example, we have the careers of Messrs. John and William Hawkins, Wright, Sympson, and Wilson, whose doings are set forth at great length by the last of that brotherhood in crime, Ralph Wilson, who turned King's evidence and so saved himself from the gallows, and at the same time firmly fixed the noose round the necks of his surviving confederates. The story of the transactions of this firm was told by Wilson in a pamphlet published at the modest price of sixpence, in 1722, shortly after John Hawkins and George Sympson had been turned off.

Hawkins was the son of a small farmer at Staines. At fourteen years of age he went into domestic service, then left it to become employed in the tap at the "Red Lion," Hounslow. From that situation he rose to be a butler to a knight; one Sir Dennis "Dulry," according to the rough and ill-spelled tract (perhaps really Daltry), but was dismissed on what would seem to have been the well-founded suspicion that he had taken a hand in a robbery of his master's plate, shortly after entering his service. 'Twas a way they had in the eighteenth century, which nobody will deny.

It may be shrewdly suspected that employment in the tap of the "Red Lion" at Hounslow had gone a good way towards inclining John Hawkins

toward the road; for, not only would he be brought into contact with gamesters, but talk of how the bold highwaymen on the neighbouring heath netted handsome sums formed, doubtless, the staple conversation of the place. The only wonder is that John Hawkins first went into service, and did not immediately go padding on the road. He must have been a singularly youthful butler, for even when he got his *congé*, and turned his attention to stopping the coaches, he was but twenty-four years of age. His initial enterprise was carried through single-handed, and his gains totalled the not despicable sum of £11. But he returned to the town only to gamble with his plunder, and in that way soon managed to dissipate it. Finding his solitary career on the heath a little hazardous, in consequence of meeting a rare succession of exceptionally brave travellers who did not scruple to loose off their pistols at a single adventurer, he sought the moral and physical support of companions of his own vocation.

It became a syndicate of five; himself, Eyles, Comerford, Reeves, and Lennard. For two years they dared much in their speciality of robbing stage-coaches and postboys carrying the mail-bags: those being the days before mail-coaches, when the bags (or often enough merely a small wallet, the post being then a comparatively small affair) were carried on horseback. In proportion to their daring, their takings increased, but they were always lost in the usual dissipations that give such a monotony to all accounts of highwaymen taking their ease after business hours.

Lennard at last got into trouble and was arrested, and when Hawkins and a recruit to the gang named Woldridge attempted a rescue, they too were seized. Three others were arrested, and appear, with Lennard, to have been hanged. Hawkins and Woldridge were discharged.

A new confederacy was then planned, but soon broke up, upon a member named Pocock, who had been flung into gaol, turning informer. Another, who acted as treasurer, at the same time absconding with their little earnings, the rest were reduced to poverty and to cursing the appalling lack of honesty in mankind.

Hawkins, desperately endeavouring to woo capricious fortune at the gaming-tables by staking his last coins, then met one Ralph Wilson, at that time clerk to a barrister of the Middle Temple. He, too, fell from

respectability through gambling, and agreed to turn highwayman with the new association Hawkins contemplated forming: "The New Highways Exploitation Company," it might well have been named. John Hawkins's brother William joined, and George Sympson, and one Wright, among others.

The sphere of operations was widened, and business was carried on with the greatest energy: the Cirencester stage, and those for and from Gloucester, Worcester, Oxford, and Bristol, being all plundered one morning. The next day they would be speaking to the Colchester and Ipswich stages, and on the next would be again in some totally different direction.

In midst of this busy time, Wilson succeeded to some small property in Yorkshire, and left to claim it, and shortly afterwards William Hawkins and Wright were arrested in the exercise of their adopted trade, and William Hawkins, to save himself, impeached the others and earned his liberty by that treachery. Wright might have done so; but he was one of those rare chivalrous characters who oftener live in the pages of novels than in real life, and he held his peace, for the sake of the traitor Hawkins's wife and children. He died in his chivalry, too, for he was convicted and hanged; while William Hawkins went free, and presently crossed to Holland with his brother and the brotherhood's money. They returned when this had all gone; and met Ralph Wilson in London, whither he had returned, after disposing of his inheritance in Yorkshire for £350. He had already lost all this in gambling when his old friends found him. He, the Hawkins brothers, and George Sympson then set about plans for robbing the Harwich mail, in April, 1722; but as that mail, they declared, was "as uncertain as the wind," they decided they could not afford the time to wait on the road for it; and agreed to turn their attention to the Bristol postboys, or their mail, instead.



JOHN HAWKINS AND GEORGE SYMPSON ROBBING THE BRISTOL MAIL.

They fixed upon Hounslow Heath as the most suitable spot for the job, April 16th and 18th. "The meaning of taking the mail twice," explains Wilson, in his "Full and Impartial Account," "was to get the halves of some bank bills, the first halves whereof we took out of the mail on Monday morning." In the pages of Captain Charles Johnson we see Sympson and John Hawkins, represented in a large copper-plate engraving, engaged in robbing two postboys and binding them with rope. The great size of the

highwaymen and the diminutive character of the postboys seemed to make it an easy task.

The Post Office was roused to fury by this latest of many impudent mail-robberies; and Wilson, while taking his ease at the Moorgate Coffee House in the City, and listening to the gossip, a week later, heard of a great hue-and-cry undertaken. Seriously alarmed by this, he contemplated taking a sea-passage to Newcastle, but was traced by one of the stolen notes and arrested before he could get aboard. The officers took him at once to the Post Office, where no less a personage than the Postmaster-General himself examined him; but he disclaimed all knowledge of the affair, and repeated his denials when he was re-examined the following morning.

Meanwhile the Post Office had also secured John Hawkins and Sympson, and had them detained in the Gatehouse. The Post Office officials then appear to have in the most Machiavellian way played off one against the other. They knew well enough that criminals were usually too eager to save their own necks to care about anything in the way of loyalty to their companions, and that they were always ready to turn evidence against them. In this case there seems to have been keen competition to be first with the confession; but Wilson's evidence was selected, and it convicted John Hawkins and Sympson, who were executed on May 21st, 1722, their bodies being afterwards hanged in chains at the end of Longford Lane, three miles on the London side of Colnbrook.

There is a considerable literature, in the form of old chapbooks, about these confederates: notably an account by William Hawkins, the surviving brother of John. Although himself at an earlier period an informer, having purchased his liberty at the price of his confederate, Wright's, life, he is found vehemently attacking Wilson for the same deed, in respect of his brother.

A mysterious affair, which has never been properly cleared up, was the death of Twysden, Bishop of Raphoe, in 1752. An Irish Bishop, even although a Kentish man of ancient descent, did not perhaps rank very high upon the Episcopal bench, but he was sufficiently exalted to make the innuendo that he had died from being shot on the Heath while taking purses at the pistol-muzzle a very startling one.

Grantley Berkeley says: "The Lord Bishop Twysden, of Raphoe, a member of the old Kentish family of that name, was found suspiciously out at night on Hounslow Heath, and was most unquestionably shot through the body. A correspondent of the *Gentleman's Magazine* asked, 'Was this the bishop who was taken *ill* on Hounslow Heath, and so carried back to his friend's house (? Osterley Park), where he died of an inflammation of the bowels?'"

Twysden was father of the then Lady Jersey, and great-grandfather of the present Earl.

In the midst of this wild waste of Hounslow—according to the Honble Grantley Berkeley, "Houndslot"—Heath, the pretty village of Cranford stood; and there, too, was, and still is, Cranford Park, long a seat of the Fitzhardinge Berkeleys. Cranford was a favourite with the fifth Earl of Berkeley (died 1810), and he used frequently to stay there from Saturdays to Mondays, even although the journey between it and London was not infrequently made hazardous by the enterprising gentlemen who found the Heath a veritable "Tom Tiddler's ground," where they were always pretty sure to pick up gold and silver. Twice my lord's carriage had been stopped between Cranford and the village of Hounslow, and robbed: on the second occasion by a footpad dressed as a sailor, who with trembling hand pointed a fully cocked pistol at him. While the Earl was collecting his loose change, the trigger was accidentally pulled by this nervous footpad. Fortunately it missed fire, or else there would have been another tragic episode to chronicle. "I beg your pardon, my lord," exclaimed the man, humbly deprecating his clumsiness; and, re-cocking his pistol, went off with the Earl's involuntary contribution.

There are several variants of Lord Berkeley's adventures here. According to one, which rather discredits his having been actually robbed here as well as stopped, he is said to have declared that, while it was no disgrace to be overpowered by numbers, he at any rate would never consent to be robbed by a single highwayman. The high-toby gentry (this version continues) heard of his boast, and one was deputed to try his mettle. He stopped my lord's carriage and said, "You are Lord Berkeley, I think?"

"Yes," replied his lordship.

"Then," rejoined the man, "I am a single highwayman, and I demand your money or your life!"

"You cowardly scoundrel!" exclaimed the Earl, "d'ye think I can't see your confederate standing behind you?"

Startled by this, and hurriedly glancing over his shoulder, the highwayman's attention was for the moment distracted, and Lord Berkeley shot him dead.

In the story told by the Earl's son, the Honble Grantley Berkeley, he says his father, after the adventure with the sailor footpad, swore he would never be robbed *again*; and thereafter always travelled at night with a short carriage-gun and a brace of pistols. It was a November night in 1774, and his carriage, or postchaise, was nearing Hounslow, from Cranford, when a voice called upon the postboy to halt, and a man rode up, and, as Lord Berkeley let down the glass, thrust in the muzzle of a pistol. With his left hand Lord Berkeley seized it and turned it away, while with the other he pushed the short, double-barrelled carbine he had with him against the man's body and fired once. The man was mortally wounded and his clothes on fire, but he rode away some fifty yards, and fell lifeless. Two accomplices who were hovering about then fled, leaving the body of their comrade. The *Gentleman's Magazine* of that date has an account of the affair in which it is said that the dead highwayman was traced by means of the horse he rode, which he had that morning hired in London. His lodgings were in Mercer Street, Long Acre, and the Bow Street officers had hardly entered them when a youth, booted and spurred, called and asked for "Cran Jones," which apparently was the name of the deceased. The youth, who was an accomplice, was seized, and impeached two others: one a clerk to a laceman in Bury Street, St. James's, who was traced along the Portsmouth Road, and to Farnham, where, at three o'clock in the morning, he was surprised in bed. He was then taken to London. The other was also apprehended, and all three were brought before Sir John Fielding. Their names were Peter Houltum, John Richard Lane, and William Sampson. The last-named had £50 due to him for wages. An evening newspaper later stated that there were in all seven youths in custody over this affair. They were from eighteen to twenty years of age, and the parents of some of them

were in easy, and others in affluent, circumstances; all of them overwhelmed with sorrow by the sins of their unhappy sons."

Sir John Fielding, the Bow Street magistrate, had in 1773 written to Garrick asking him to suppress the *Beggar's Opera*, which he produced. He said the exploits of Macheath, the highwayman hero, and the glorification of the criminal life on the stage, were calculated to reinforce the ranks of the real highwaymen from the scatterbrain and stage-struck apprentices of town; and it would indeed appear from the foregoing account that he was correct.

Hounslow Heath was the scene of many tragedies. It was in November 1802 that a Mr. Steele, proprietor of a lavender warehouse in Catherine Street, Strand, was murdered on that then lonely waste. He had gone on a Friday to Bedfont, where he cultivated a large acreage of lavender, and intended to return home the following day. As he did not return at the appointed time, his family concluded he had been unexpectedly detained on business matters, but when Monday came, and no news of him, they not unnaturally grew alarmed, and sent a messenger to Bedfont. He learned that Mr. Steele had only set out on his return on the Saturday evening, and, being unable to procure a conveyance, had resolved to return at least a part of the way on foot.

He was a bold man who, unarmed, should attempt such a journey across Hounslow Heath in those days; and the unfortunate lavender merchant paid the penalty of his rashness with his life. His brother-in-law and other relatives, on receiving the news of his being missing, set out in search of him, and at last found his mangled body secreted beneath some clods and turf, under a furze-bush. The first clue to a tragedy having been enacted was discovered, after many hours' searching over the heath, in the sight of a piece of blue cloth. Pulling at this, they found it to be the skirt of his greatcoat, buried in the sandy soil. At a little distance away they saw a soldier's hat, lying near a bush, and on the bush itself a great quantity of congealed blood.



MURDER OF MR. STEELE ON HOUNSLOW HEATH.

Mr. Steele had received several wounds on the back of the head, and a part of his forehead was entirely cut away; but a piece of leathern belt tightly drawn round his neck showed that he had first been strangled. This crime was traced to two men, Haggarty and Holloway, one of them a soldier, who had planned it all beforehand, at the "Turk's Head" Inn, Dyot Street, Holborn. Evidence was adduced by which it appeared that a coach passed at a little distance along the road while they were robbing Mr. Steele, who cried out for help. Holloway exclaimed, with an oath, "I'll silence him," and beat in his head with two blows of a bludgeon.

It is satisfactory to be able to say they were hanged. Both loudly declared their innocence, but no one believed them. The execution took place at the Old Bailey, when no fewer than twenty-eight persons among the immense crowds who had come to see the sight were crushed to death, and large numbers greatly injured.

The case attracted a great deal of attention at the time, and copies are still occasionally found of a terrific engraving representing the ferocious pair

polishing off the unhappy Mr. Steele, one of them wielding an immense club, fit for a Goliath.



CHAPTER XIV

THE ROADS OUT OF LONDON (*continued*)

III.—THE GREAT NORTH ROAD

COULD the gay highwaymen who, a hundred years ago, were gathered to their fathers at the end of a rope, down Tyburn way, revisit Finchley, the poor fellows would sadly need a guide. Where, alas! is Finchley Common, that wide-spreading expanse of evil omen on which those jovial spirits were so thoroughly at home? Finchley Common, has long since been divided up between the squatters who grabbed the public land when Justice winked the other eye, as Justice had a trick of doing years ago, when the process of enclosing commons was in full swing. There still exists a large oak-tree by the road at a place called Brown's Wells, opposite the "Green Man," and in the trunk of this last survival of the "good old times" there have been found, from time to time, quite a number of pistol bullets; the said bullets supposed to have been fired at the trunk to frighten the highwaymen who might chance to be hiding behind it, under cover of the night. The tree itself has long borne the name of "Turpin's Oak," no less celebrated a person than the redoubtable Dick himself having once frequented it. Turpin, of course, is the greatest of all the rascals who made the name of the Great North Road a name of dread. Before him, however, Jack Sheppard figured here; but not, it is sad to relate, in an heroic manner. In fact, that nimble-fingered youth who was no highwayman—merely a pickpocket and housebreaker—after escaping from the "Stone Jug" (by which piece of classic slang you are to understand Newgate is meant) had the humiliation to be apprehended on Finchley Common, disguised in drink and a butcher's blue smock. That was the worst of those roystering blades. The drink was the undoing of them all. If only they had been Good Templars, or sported the blue ribbon, it is quite certain that they had not been cut off untimely; and might, with reasonable luck, have even retired with a modest competence in early years.

One of the most savagely dramatic encounters on Finchley Common was that which was enacted on July 11th, 1699, with "Captain" Edmund Tooll, *alias* Tooley, prominent on one side, and an unfortunate gentleman, Mr. Robert Leader, on the other. Mr. Leader was travelling from London across this waste, in company with his servant, when he was set upon by Tooll and some companions (one of whom afterwards turned King's evidence). They stripped Mr. Leader and his man, and, knocking the unlucky gentleman down, brutally stamped on his face and stomach, until, fearing he was to be killed, he begged pitifully for his life to be spared. He then attempted to run away, and the blood-thirsty Tooll shot him in the back, and wounded him so seriously that he died on the following day. When Tooll was at length arrested, at the "Blue Ball," in Jermyn Street, he was wearing some of the murdered man's clothes. He violently resisted, fired upon the officers, and, shortening a sword he held, attempted to stab one of them. He retained this spirit even in the dock, for when his resistance of arrest was mentioned, he said he was only sorry he had not stabbed the officer to the heart. He was executed, impenitent to the last, on February 2nd, 1700, and afterwards hanged in chains on Finchley Common.

It was in 1724 that Jack Sheppard was arrested by Bow Street runners on the Common, and the fact somewhat staggers one's belief in the wild lawlessness of that place. One might just as soon expect to hear of the Chief Commissioner of Police being kidnapped from Scotland Yard. And yet it is quite certain Finchley was no safe place for a good young man with five pounds in his pocket and a mere walking-stick in his hand, whether he proposed to cross it by night or day. Even sixty-six years later this evil reputation existed; for, in 1790, the Earl of Minto, travelling to London, wrote to his wife that, instead of pushing on to town at night, he would defer his entry until morning, "for I shall not trust my throat on Finchley Common in the dark." Think of it! And Dick Turpin had been duly executed fifty years before!

Between 1700 and 1800, in fact, this was a parlous place, and not one of the better-known highwaymen but had tried his hand at "touching the mails" as they went across this waste; or patrolled the darkest side of the road, ready to spring upon the solitary traveller. Indeed, the childlike simplicity of the lonely travellers of those days is absolutely contemptible, considering the well-known dangers of the roads. For instance, on the night

of August 28th, 1720, a horseman might have been observed in the act of crossing Finchley Common. He had fifteen guineas in his pocket, and ambled along as though he had been in Pall Mall, instead of on perhaps the most dangerous road in England. At a respectable distance behind him came his servant, and, just in front of him, midway of this howling wilderness, stood three figures. "There is an eye that notes our coming," says the poet, and three pairs of eyes had perceived this wayfarer. They belonged to an enterprising individual named Spiggott and to two other ruffians whose names have not been handed down to posterity. The weirdly named Spiggott was apparently above disguising himself; his companions, however, might have taken the parts of stage brigands, for one of them had the cape of his coat buttoned over his chin, and the other wore a slouched hat over his eyes. In addition to this, he kept the ends of his long wig in his mouth—which seems rather a comic-opera touch than serious business. It was, however, a favourite and effectual way with highwaymen of disguising themselves. It is to be hoped, rather than expected, that the traveller with the guineas saw the humour of it.

In the twinkling of an eye one brigand had seized his horse and made him dismount, while the others covered him with their pistols. The servant also was secured, the guineas transferred with the dexterity of a practised conjurer, the horses turned loose, and then the three rode away, leaving the traveller and his servant to get on as best they could. Spiggott, in 1720, eventually paid the penalty of his rashness in not disguising himself in accordance with the canons of his high-toby craft, as taught on the stage, and in novels of the eighteenth century, in which crape-masks are essential. When he was caught, with some others, in an attempt on the Wendover waggon at Tyburn, he was identified by the Finchley traveller. The end of him was the end of all his kind, but it was not accomplished without considerable trouble. He, with another prisoner named Thomas Phillips, was in due form, and on several counts, indicted for highway robbery. Both refused to plead, and stood silent in the dock. There was in those times a fearful penalty for refusing to plead to an indictment: the penalty known to legal jurisprudence as *peine forte et dure*, which was, rendered into ordinary English, "pressing to death." The space at Newgate long known as the Press Yard took its name from being the place where this savage penalty was inflicted.

There was every inducement in those times for a criminal to refuse to plead to his indictment. If he pleaded, and was eventually found guilty, his property was, under the law as it then stood, forfeited to the Crown, and his relations, even his wife and children, were deprived of their very livelihood. A man might at one and the same time be an unmitigated scoundrel, and yet have the very tenderest feelings for his own, and many such an one endured the fearful martyrdom of pressing to death in order to preserve his belongings to those who had been dependent on him. For by enduring so much he could save everything, and will it as he would.

The official sentence passed upon those who thus "stood mute of malice," as the phrase ran, was "That the prisoner shall be remanded to the place from whence he came, and put in a low, dark room, and there laid on his back, without any manner of covering except a cloth round his middle; and that as many weights shall be laid upon him as he can bear, and more; and that he shall have no more sustenance but of the worst bread and water, and that he shall not eat on the same day on which he drinks, nor drink on the same day on which he eats; and he shall so continue until he die." A refinement of this torture, more worthy of a demon than a human being, was to place a sharp stone under the prisoner's body.

Spiggott and Phillips were both sentenced to this ordeal, and Phillips was taken in hand first. His courage, however, was not sufficient, and he asked pitifully to be allowed to stand again in the dock and plead. This was granted him, rather by way of a favour than as a right, and he pleaded not guilty, but was convicted and in course of events hanged.

William Spiggott was made of somewhat sterner stuff, and elected to be pressed rather than plead. He was then, as the old picture shows, stretched out upon the floor, his hands and feet secured, a board placed upon his chest, and weights up to 350 lbs. gradually added. He endured half an hour of this, but on another 50-lb. weight being added, gasped out that he would plead. Such were the Chinese-like methods of dealing with criminals in Merry England in the Good Old Days. Exactly who those old days were good for, except the privileged classes, we may long seek to discover; not with any very great hope of success.



SPIGGOTT PRESSED AT NEWGATE.

Spiggott, being then graciously permitted to plead, was in his turn tried, found guilty, and hanged at Tyburn. He is notable as having been the last criminal to suffer this penalty.

Nathaniel Hawes, who practised on Finchley Common about the same time as Spiggott and his friends, was taken in 1721 in an unsuccessful attempt to rob a gentleman on that wild spot. Not only was his attempt a failure, but he was himself taken prisoner and handed over to justice by his intended victim. He also refused to plead. He would die, he declared, as he

had lived, a gentleman. The reason for his refusing to plead was that the brave clothes in which he had been seized were taken off his back. Like most of his contemporaries, he had a mind, if he must make the journey to Tyburn, to go there respectably, and to cut a dash to the last. He would plead if they were returned, but not unless. "No one shall say I was hanged in a dirty shirt and a ragged coat."

So they pressed this most particular fellow up to 250 lbs. After a few minutes he declared himself ready, nay anxious, to plead, and he was accordingly put back, tried, and found guilty: going those three miles to Tyburn after all, it is melancholy to relate, in the grimy shirt and tattered duds of his very proper aversion.

Of the other names in the long and distinguished roll of road-agents who figure on Finchley Common at some time or another in their meteoric careers, it is not possible here to say much. There were the resourceful and courageous Captain Hind, the whimsically named "Old Mob," burly Tom Cox, Neddy Wicks, and Claude Du Vall. They have, most of them, their separate niches in these pages.

Room, however, by your leave, for those thoroughly business-like men, Messrs. Everett and Williams, who entered into a duly drawn and properly attested deed of partnership, by which it was agreed that they should work together on Finchley Common and elsewhere, and divide the profits of their labours into equal shares. Their industry prospered, and the common fund soon reached the very respectable total of £2,000. But when required to render accounts, and to pay over half this amount, Mr. Williams, treasurer of this precious firm, refused. The old proverb of "Honour among thieves" was therefore proved a fallacy. Everett thereupon brought an action at law against his defaulting partner, and a verdict for £20 was actually obtained, and appealed against by the defendant. The court then very properly found the whole matter scandalous, bad in law, and contrary to public policy. Everett was sentenced to pay costs, and the lawyers engaged on either side were fined £50 each for their part in this discreditable affair.

IV.—THE OXFORD ROAD

The way through Uxbridge and High Wycombe to Oxford is largely illustrated elsewhere in these pages, in the biographies of "Old Mob," and of Withers, in which Uxbridge and the neighbourhood of Hillingdon figure largely. Having once passed Hillingdon, travellers were comparatively unmolested until they came to Shotover Hill, near Oxford.

Shotover Hill was the scene of the barber's encounter with a knight of the road. The barber, travelling afoot with a sum of money, had been foolish enough to explain, in the parlour of an inn, how he had cunningly hidden his store among the implements of his trade he was carrying with him. Arrived on the hill-top, he was accosted by the figure of a road-agent who had, "from information received," a very accurate knowledge of how much money the barber was carrying, and where he carried it.

"Wer—what do you wer—want?" asked the trembling barber.

"Only a sher—shave," rejoined the knight of the road, mocking the man's frightened speech; "so out with your shaving-pot and razor, and fall to't!" And he sat himself down on the grassy bank.

With fumbling hands the barber undid his bag, and brought forth the shaving tackle, whereupon the highwayman, stretching his legs as though by accident, managed to upset the pot. Over it went, and smashed upon a stone, displaying that store of golden guineas.

"Ho, ho, my friend!" said the highwayman. "You're not so poor as you thought. 'Tis treasure-trove, indeed, and of right belongs to the King. God bless him! But since His Majesty has small need of a matter of twenty guineas, and I a very pressing one, I'll e'en pouch them myself!" And, so doing, and vaulting into the saddle, he was gone.

Along this same route, in the woodland road between West Wycombe and Stokenchurch, Jack Shrimpton, the highwayman, met a barrister who greatly admired the horse Shrimpton was riding, and offered him £30 for it. Needless to say, the coin promptly changed hands, but the horse did not.

Shrimpton was a native of Buckinghamshire, and was born at Penn, near Beaconsfield. He had been in his youth apprenticed to the soap-making trade, and was afterwards in the army.

One day he happened in a roadside inn upon a traveller who chanced to be the common hangman. He took a glass of wine with him, and, talking over his profession, he asked the hangman, "What is the reason, when you perform your office, that you put the knot just under the ear? In my opinion, if you were to fix it in the nape of the neck, it would be easier for the sufferer."

The hangman said, "I have hanged a great many in my time, sir; but, upon my word, I have never yet had any complaint. However, if it should be your good luck to make use of me, I will, to oblige you, hang you after your own way."

"I want none of your favours," replied Shrimpton heatedly, for the joke had struck nearer home than the hangman could have imagined.

In yet another incident, Shrimpton does not figure to advantage; and, one way and another, we shall not perhaps be ungenerous if we think him to have been something of an ass.

Meeting a miller who had failed in business, and, losing his all, had taken to the high-toby profession, he was summoned to "Stand!" Shrimpton was mounted and armed; the miller was on foot, and had only a cudgel, and when the practised highwayman produced his pistol, abjectly surrendered.

"Surely," said Shrimpton, disgusted with such an amateurish method, "you are but a young highwayman, or you would have knocked me down first and bade me to stand afterwards."

He then confided to the miller that he had recently robbed a neighbour of £150, and was now waiting for a traveller who was coming with six-score guineas. "Assist me," he said, "and you shall have half the booty."

The miller agreed, but presently, taking Shrimpton off his guard, knocked him down from behind with his cudgel. As the unfortunate highwayman lay in the road, slowly regaining consciousness, he saw the treacherous and villainous miller pouching his gold, and preparing to hastily depart with his horse.

"Good-bye," said the miller, "and, harkye, be off as soon as you can, or I'll have you hanged for robbing your neighbour, by your own confession."

"Thus," says the old historian of these things, "the Biter was bit, and Shrimpton swore he would nevermore take upon himself to learn strangers how to rob upon the highway." Excellent resolution! But he had little time wherein to put it into practice, for he was presently hanged, while his career was yet young, on St. Michael's Hill, Bristol, September 4th, 1713.

Of later travellers, by coach or by postchaise, who, fully aware of the risks they ran on all these great roads running out of London, hid their valuables carefully in their boots and other places of which they imagined the highwaymen could have no suspicion, there is not much space left here to tell. Let it, however, be said that those highwaymen were as well-informed as are modern Customs officers of likely places for secreting property; and when the coaches and chaises were stopped, and the travellers bidden hand over their money and watches, it was no use for them to declare that they had nothing. At the pistol-muzzle they were bidden take off their boots or other articles of dress. This was humorously known among the highwaymen as "shelling the peas."



"SHELLING THE PEAS."

MOLL CUTPURSE: THE "ROARING GIRL"



MOLL CUTPURSE.

MOLL CUTPURSE must needs have a place here, by right of her intimate association with the highwaymen, rather than her own exploits. She was not, in fact, a highway robber at all; nor, of course, was her name Cutpurse, but Mary Frith. The daughter of a shoemaker, whose name, as a reporter of the old school might say, does not "transpire," she was born in Barbican, City of London, in 1592. Tradition tells how she was born with clenched fists: sure sign of a wild and adventurous nature. Her muscles and her spirit alike were mannish. As a girl, she was, in the obsolete language of the seventeenth century, a "tom-rig" and "rump-scuttle"; and a "quarter-staff" was more agreeable to her than a distaff. And not only more agreeable, but more natural, and she worsted many a pretty fellow in fair fight with that weapon, with which only the strong and the active could prevail. Her father proposed to apprentice her to a saddler, but she refused, and she was put aboard a ship bound for Virginia, to be sold into the plantations. It seems a drastic way with a rebellious daughter; but it failed, for Moll escaped before even the ship had left the Port of London. Love never entered into the career of Moll, and as she had the strength of a man and a masculine voice that procured her the name of the "Roaring Girl," she early concluded to wear masculine attire. In Middleton's comedy, written about her when she was still young, he makes a character declare: "She has the spirit of four great parishes, and a voice that will drown all the city." It will thus be seen that she was at an early age well known to those who lived their life in London. And for excellent reasons. She had not only become a member of a gang of thieves and pickpockets, who frequented the Bear Garden in Southwark and other popular resorts, but had graduated with amazing ease and swiftness in the art of slitting pockets and extracting purses, and from that had by force of an organising brain elevated herself into the position of a plotter of robberies and high directress of clyfakers and bung-snatchers. So well was the destination known of most of the watches and trinkets that were continually disappearing, that the owners of them were often knocking at her door in Fleet Street, ready to ransom their property for a well-recognised percentage of its value, before the thieves had returned with it; and they had to be politely requested to call again. In those halcyon days of the receivers of stolen property, before the evil career of Jonathan Wild had caused an Act of Parliament to be passed, dealing with them on the same footing as the actual thieves, much was done in this way of ransom and ready brokerage, and, so long as it was done with discretion, with advantage

to all concerned. The owners got their own again, with the expenditure of a comparatively trifling sum, the gang carried on their operations with a large degree of security, and the wily Moll made an excellent income. She was witty and original, and—such was the spirit of the age—she became rather the fashion among the riotous young blades of town, who were then "seeing life." The highwaymen knew her well, and resorted to her house when they had taken watches and jewellery they could not themselves, without the gravest risk, endeavour to sell. They trusted her, and the public, coming to redeem the articles, did the same; and indeed, as intermediary between losers and finders, she was honesty itself: absolutely beyond suspicion.

Thus wagged the merry days until the Civil War altered the complexion of things. The times had been growing, for some few years before, curiously out of joint. The people, once taken with the mad pranks and outrageous humours of the society in which she moved, had grown more serious-minded, and the gay gallants who still continued to "see life" were no longer regarded with indulgence. The ripple of Puritanism that had arisen in the time of James the First and had then been little more than a religious expression, had increased in the time of his son to an overwhelming wave of politico-religious fury. It swept on, blotting out the theatres, frowning down all levity and finally breaking into warfare between the two different ideals cherished by Roundheads and Royalists.

The gallants naturally became Cavaliers, and went warring for their King over the country; but in the City there was a strict, stern way of regarding things that did Moll's business no good. Like all her associates, she was a Royalist. The alliance perhaps does that cause no service in the pages of history; but we must take it as we find it, and make the best or the worst of the fact, just as our own partisanship dictates.

She detailed trusty members of her organisation to persecute, in their own particular way, leading members of the detested party that had acquired political ascendancy. On one occasion, while they robbed Lady Fairfax on her way to church, the "Roaring Girl" herself set out, according to the legend, to rob the husband, Fairfax, the Parliamentary general, with her own hands, on Hounslow Heath. It seems beyond belief, but the tale is at any rate a very old one, to be traced back almost as far as her own day. The story tells how she shot Fairfax in the arm, killed two horses ridden by the

servants attending him, and secured all the money the general had with him. We may go so far as to concede that this was what the "Roaring Girl" would have rejoiced to do, had it been possible; but imagination refuses to carry us further.

Moll's fortune declined during the long years of the Commonwealth, which fact is, at any rate, something for Cromwellians to plume themselves upon. That she should live to see the Restoration and Charles the Second upon the throne, was one of her most ardent desires. She never doubted that he would be restored, and was careful to leave a sum of twenty pounds, by will, to celebrate the event, if it should happen to be deferred beyond her time. She died of dropsy, just one year before the Restoration took place.

CAPTAIN PHILIP STAFFORD

I do not think, if the highwaymen were with us again, that they would be treated by their victims with the extraordinary lenience shown them in those (in that respect) easy-going seventeenth and eighteenth centuries. It was commonly sufficient for a "knight of the road" who had been good enough to refrain from abuse or personal violence to say at parting, "God bless you," and then to shake hands with his victim, for that victim to go his way and never think of laying an information. And that is one of the reasons why the high-toby trade flourished so bravely in times when to be convicted of highway robbery meant death. The law, in fact, overreached itself, and the awful extremity of the penalty, so far from discouraging highwaymen, really encouraged their kind; for those were, after all, not the heartless periods we are taught to think them, and comparatively few were prepared to swear away the life of a fellow-creature in revenge for the loss of guineas or jewellery. Had the penalty been less tragic there would have been more informations.

But it was in the years following the Civil War, ending with the execution of Charles the First, that the roads in general, and Maidenhead Thicket in particular, attained their greatest notoriety. The whole country, indeed, swarmed with the adventurers who had attached themselves to the fortunes of the Cavalier party, and with gentlemen ruined in the cause of the King; their property sequestered by Parliament and their persons subject to arrest. When the fighting was done, many of them became brigands and preyed upon honest men. If their victims chanced to be of the opposite faction, well and good; but it really mattered little to them of whom they levied unlawful tribute upon the road, and in short, the broken Cavaliers turned highwaymen, of whom we read in the classic pages of Smith and Johnson, were no favourable advertisement of their defeated party. Captain Alexander Smith, to whose diligence we owe the accounts of these seventeenth-century highwaymen, was himself of Royalist sympathies: the

fact peeps out from almost every page of his work; but he had not the wit to see that the careers of his sorry heroes, as told by him, show them in general to be bullies, ready at a moment's notice, with a gush of cant, to justify their acts, fully as revolting as any of the cant that ever proceeded from what we are taught to believe was the canting party. They were a scoundrelly crew, whose highway work was but an incident, and that a comparatively venial one, in lives compact of almost incredible viciousness.

A prominent figure was that of Philip Stafford, a desperate fellow who, born about 1622, and originally the son of a gentleman-farmer in the neighbourhood of Newbury, had seen some fighting for the King, and, like many another highwayman of that period, was known as "captain." Maidenhead Thicket was a favourite lurk of his. Here it was he met a clergyman, shot his horse, robbed him of forty guineas, and bound him to a tree.

We read that Stafford soon grew successful in his profession and amassed a considerable sum of money; and then thought it well to retreat to a village in the north of England, and live there in a retired and frugal manner. It does not seem a characteristic resolution for a highwayman to take. The quiet life, it might be supposed, would not suit such an one. But such is the story told of him.

The more to avoid suspicion, he assumed the appearance of sanctity, and attended the village church and the parish meetings, and soon acquired great popularity as a speaker among the simple country people. After he had continued there about a year the minister died, and we are expected to believe the fantastic story that Stafford was elected in his stead, and that he "acquitted himself to the entire satisfaction" of the people; until, indeed, he went off with the plate.

He then, tired of the simple life, resumed his evil courses. Near Reading he waylaid a farmer, jogging home from market, and, worming himself into the unsuspecting man's confidence, found he had with him £33, the price of two loads of wheat just sold. He relieved the unfortunate man of that sum; but this was his last exploit. According to Johnson, he had scarcely taken leave of the farmer when two gentlemen, well mounted, came up, and, being informed of what had happened, rode after Stafford, and, in the space

of an hour, overtook and dismounted him, seized the money, and carried him before a Justice of the Peace, who committed him to prison. At the ensuing Assizes he was tried and condemned. During his imprisonment he lived in a sumptuous manner, and, after the lax customs of the time, was even visited by many of his own profession, who formed a plan for his escape. But rumours of this being noised about, the day of execution was changed, and the scheme for his rescue was foiled.

He made the customary brave show at that last scene. Dressed in "a fine light suit of clothes, with a nosegay in his breast," he at first appeared perfectly unconcerned, and seems to have been the first of a long line of bold fellows who, given a last drink at a tavern on the way, promised to pay for it when they returned: an excellent jest. But, arriving at the place of execution at Reading, looking wistfully around, and seeking to prolong the preliminaries, in hope of that promised rescue, he faltered and trembled when the looked-for friends made no appearance. Presenting the sheriff with a paper containing a short account of his adventures, he was duly hanged.

"By his particular desire," the sheriff had him buried under the tower of St. Mary's Church.

CAPTAIN JAMES HIND, THE "PRINCE OF PRIGS"

By a general consensus of the opinions current in his age, Captain James Hind was incomparable among his fellow-highwaymen for courage, for resource, and for courtesy, and succeeding ages, although prolific in highwaymen, failed to produce the like of him.

James Hind was born in 1616 at Chipping Norton, the son of a saddler, and began life as apprentice to a butcher of that town. The lives of celebrated men, as told in popular biographies, afford many contradictions, and the career of Hind, set forth in the innumerable chapbooks of his own period, of the era of the Catnach press, and in a robustious kind of juvenile gutter-literature, that has survived even to our own day, is told in a variety of ways. His course was sufficiently adventurous, but his biographers have not condescended to the critical attitude; and thus, among the tales of wonder in which he moves, there are doubtless many that have simply accrued, just as the house-flies of summer are attracted to fly-papers. Indeed, as the highwaymen have ever been something (and generally a good deal) of heroes, so legends inevitably have gathered round them. If their exploits have not found a Homer to do for them what the Greek poet performed for the heroes of the *Iliad*, that is merely their misfortune, and they have had to be content with a Smith, a Johnson, and the trivial production of scribblers fortunate in anonymity.

Among the earliest of the chapbooks dealing with the short life and merry of Captain Hind is that scarce and curious print entitled *No Jest like a True Jest*, which presents us with what is quaintly styled "the true Protracture" of him, reproduced here. Observe his gallant bearing, the bravery of his dress, his winning smile, his lady-like feet! He carries a formidable pistol, it is true, but as you note him standing so debonair beside his gallant charger, you perceive, as it were, the courtesy and consideration

that unfailingly accompanied his actions, shining out behind the rude methods of the old wood-engraver who seems to have hewed the portrait out of the wood with a billhook.



THE "TRUE PROTRACTURE" OF CAPTAIN HIND.

According to *No Jest like a True Jest*, which is but indifferently truthful in many of its details, and does not strike one as being a jest-book, Hind's father, before apprenticing him to a butcher, "put him to school, intending to make him a Scholar, but he minded his wagish Pastimes more than his Book," and so all ideas of a liberal education were cut off. Nor was the

apprenticeship to the butchering more successful, for he, "having a Running Pate, soon grew weary of that also, and in conclusion ran away from his Master." Excusing himself, by complaining of the rough and quarrelsome character of the master, he borrowed two pounds from his mother, and fled to London. He was fifteen years of age at this time, and, if we may believe the biographers—a difficult enough exercise—"he soon contracted a relish for the pleasures of the town. A bottle and a female companion became his principal delight, and occupied the greater part of his time. So precocious were the 'prentice-boys of the early seventeenth century, and so far did forty shillings go!"

Ere long this youthful adventurer found his way into the society of highwaymen. It was in the Poultry Compter, whither he had been consigned for his part in a drunken riot, that he first made the acquaintance of Robert Allen, who was expert in most thievish arts. Over a bottle they struck up a friendship, and Allen presently introduced him to the gang he himself captained. They were mounted men, and the first test of the young recruit was the choice of a horse. He chose, with the unerring judgment in horseflesh that was one of his distinguishing characteristics through life, the best animal in the stable. Taken then to Shooter's Hill, and set to bid the first traveller "Stand and deliver!" he acquitted himself in so finished a manner as to win the respect of his new comrades, who, witnessing the exploit from the leafy coverts beside the road, could not withhold their admiration.



Here now thou seest me as a Butcher's Boy,
And sporting with a Dog in Merriment;
Hereafter, thou wilt read the Tricks I play,
Which may afford Thee pleasure and content.
For there's no Robb'ry yet I ere did doe,
But doth contain at least a jest or two.

The horseman whom he thus robbed instantly handed over the ten guineas he was possessed of, and was no doubt bitterly wondering how he was to get home in a penniless state, when Hind courteously returned him one guinea. "This," said he, "is for handsel sake." The watching band of highwaymen marvelled greatly. Here was an intrepid youngster, the coolest

hand at robbery, courteously giving back a percentage of his honest earnings. They were witnessing the foundation of a new school in an old art, a school that, although its fit pupils were few and far between, did at least establish a tradition that, while it did not greatly advantage the travelling world, did at least serve to win a long line of highwaymen an amount of forbearance that seems to us moderns almost incredible. The law visited highway robbery with sentences of the utmost ferocity, but individuals, as a general rule, took their losses, not only with an astonishing philosophy, but with a remarkable display of good-nature.

Insult a man, and he may brook it,
But keep your hands out of his breeches pocket,

says a well-known couplet; but here we have the strange spectacle of courtesy disarming the resentment caused by the turning out of those pockets! Hind was not yet the holder of a commission, but he was evidently already captain of himself.

Those were successful years, in which Hind scoured the roads with Allen's band. They robbed by wholesale, but never did the gentlemanly Hind omit the courteous formula of raising his hat on requesting a delivery. Your tax-gatherer and rate-collector of modern times do not do so much, in the presentation of their "Demand Notes."

Not only did Allen's gang pervade the country upon horseback: they conducted operations in lordly style, travelling often in carriages, or setting forth, some equipped as noblemen and others as their servants, all the better to conduct their campaign of robbery. Allen, of course, like most highwaymen of that time, was of Royalist sympathies. He conceived the magnificent idea of waylaying the travelling coach of no less a personage than His Highness, the Lord Protector of the Realm, Oliver Cromwell himself, on the way from Huntingdon. Unfortunately, the coach was guarded by seven servants, unusually full of fight, and so the attack not merely failed, but several of the highwaymen were captured, among them their leader, Allen, who, a short time later, suffered at Tyburn for his error of judgment. Hind was fortunate enough to escape, by dint of a good horse and excellent horsemanship.



ALLEN AND HIND ATTACK OLIVER CROMWELL'S CARRIAGE.

We are told, however, that Hind's horse was killed by the exhausting efforts of this escape. Having no money to purchase another (how on earth did the highwaymen manage to dissipate all the money they stole?), he was under the necessity of trying his fortune on foot until he should find means to procure another. It was not long before he espied a horse tied to a hedge, with a saddle on, and a brace of pistols in the holsters.

"This is my horse," cried Hind to the owner, whom he observed on the other side of the hedge, and forthwith he vaulted into the saddle.

"The horse is mine, you rascal!" roared the owner, making a dash for it.

"Sir," rejoined Hind, "you may consider yourself well off, that I have left you with all your money in your pocket to buy another, which you had best lay out before I meet you again, lest you should be worse used." So saying, he rode off in search of new booty.

To rob the rich, to act as special providence to the poor, to succour the distressed, and to plague the existence of their political opponents seem to have been as much the attributes of the seventeenth-century highwaymen as they were of that merry outlaw, Robin Hood. It is thus that, in the vilely printed pamphlets written by illiterates, composed of blunted type, struck off upon incredibly bad paper by the aid of rickety hand-presses, and sold at the old country fairs, the highwaymen have always had a niche in the affections of the rustics, who had no purse nor gear to lose. Hind was of this type, whether actually or as the creature of legend it is now no use to inquire. We learn, for instance, how, riding through the town of Warwick, and hearing a commotion in a side street, he drew rein to discover the cause. An innkeeper, he was told, had been arrested at the suit of a rascally old usurer, for a debt of twenty pounds. It was the work of a few minutes for Hind to leap from his horse, to pay the money, and thus to release the innkeeper. "Generosity!" you will exclaim. Well, no; or, at any rate, merely a generous impulse that cost him nothing but a little physical exertion, for what was easier to Hind than recovering again those twenty sovereigns! He followed the money-lender out of the town, and, overtaking him in a lonely place, said, with his forceful politeness, "My good friend, I lent you, of late, a sum of twenty pounds. Repay at once, or I take your miserable life!"

Twenty sovereigns were with fear and trembling handed over, together with another twenty, "for interest," and when this ill-used man sought to recover his due from the innkeeper under legal plea of "duress," or what not technical terms, he was not only defeated on the innkeeper producing his signed discharge, but was soundly flogged into the bargain.

The fanciful book of Hind's exploits called *The English Gusman*, published in 1652, contains some marvellous stories, notably that in which a witch gives him a talisman protecting him for three years. He had been

staying the night at the "George" inn, Hatfield, and leaving early the next morning, encountered an ill-favoured old woman who begged alms of him.

"His horse presently staid, and would go no further. 'Sir,' said the old woman, 'I have something to say to you, and then you shall be gone.'

"Hind, not liking her Countenance, puld out five shillings and gave her, thinking she would but like a Gipse, tell his fortune, said, 'Good woman, I am in haste.'

"'Sir,' said she, 'I have staid all this morning to speak to you; and would you have me lose my labour?'

"'Speak your mind,' said Hind.

"The old woman began thus: 'Captain Hind, you ride and go in many dangers; wherefore, by my poor skill, I have thought of a way to preserve you for the space of three years; but, that time being past, you are no more than an ordinary man, and a mischance may fall on you, as well as another; but if you be in England, come to me, and I will renew the Verteu of this Charm again.'



CAPTAIN HIND, THE CAVALIER HERO.

"In saying these words, she puld out of her bosom a little box, almost like a Sun-Dyal, and gave it to Captain Hind, and said to him, 'When you are in any distress, open this, and which way you see the Star turns, ride or go that way, and you shall escape all dangers.'

"So she switched him with a white Rod that was in her hand, and strook the horse on the buttocks, and bid him farewell. The horse presently leaped forward with such courage that Hind could not turn to give her thanks; but, guessing her will it should be so, rode on his way."



Next; here am I presented to thy view,
Mounted aloft upon a gallant Nagg;
And then behinde me doth appear to you,
How I'm enchanted by an ugly Hagg.
For Three years' space: A little time I wot;
Yet many Pranks I plai'd, and Purses got.

The talisman, according to the author of these marvels, lasted him until the time when he was present at the siege of Youghal, and its expiry was marked by his being wounded there.

He was a wide traveller, our gallant "Captain." We hear of him as a "true Royalist," receiving a commission from Sir William Compton, and find him at the desperate two-months' siege of Colchester, where the beleaguered

Royalists made a last stand for Charles the First. On the surrender of that town, August 27th, 1648, to Fairfax, he managed to escape in woman's, or, according to another account, sailor's clothes.

The scene now shifts to Enfield, and we perceive Hind and the regicide, Hugh Peters, encountering in the green rides of the Chase. Politely Hind requests his purse, yet discloses a not altogether inopportune pistol. To this Peters replies with a defensive volley of texts. "Thou shalt not steal; let him that stole steal no more," and the like, together with a variety of paraphrases of the eighth commandment.

Hind, anxious to answer Peters in his own vein, finds himself a little floored at first, from want of practice, but presently he begins, "Verily," says he, imitating the sanctimonious tones of the Puritan, "if thou hadst regarded the Divine principles, as thou oughtest to have done, thou wouldst not have wrested them to such an abominable and wicked sense as thou didst the words of the Prophet, when he said, 'Bind their Kings with chains, and their nobles with fetters of iron.' Didst thou not then, detestable hypocrite, endeavour from these words to aggravate the misfortunes of thy Royal master, whom thy cursed republican party unjustly murdered before the gate of his own palace?"



Stand and Deliver! Next in order comes;
Quickly your Money. Make no stay at all,
For my aim's high, and at those greater sums,
The lesser lead to Tyburn's funeral.
Here's all the difference, as 'tis manifest,
I got their money: they received a jest.

Here Peters began to extenuate the action of the regicides, and to quote Scriptural authority; with an excursus upon the sinfulness of robbery.

"Pray, sir," replies Hind, Doctor of Divinity, *pro tem.*, "make no reflection against men of my profession, for Solomon plainly said, 'Do not despise a thief.' But it is to little purpose for us to dispute: the substance of

what I have to say is this: Deliver thy money presently, or else I shall send thee out of the world to thy master, the Devil, in an instant."

"These terrible words of the Captain," we are told, "so terrified the old Presbyterian that he gave him thirty broad pieces of gold, and then departed."

But Hind must needs still further humiliate the enemy. He accordingly rode after him at full speed, and, overtaking him, addressed him in this wise: "Sir, now I think of it, I am convinced this misfortune has happened to you because you did not obey the words of the Scripture, which says, expressly, 'Provide neither gold, nor silver, nor brass, in your purses for your journey,' whereas it is evident that you had provided a pretty decent quantity of gold. However, as it is now in my power to make you fulfil another commandment, I would by no means slip the opportunity; therefore, pray, give me your cloak. You know, sir, it is commanded that, if any man take away thy cloak, thou must not refuse thy coat also."



HIND ROBS DR. PETERS.

The old Puritan shrugged his shoulders uncomfortably before he proceeded to uncloak them, but on Hind assuring him he must needs be obeyed, he surrendered the garment, and off went the highwayman with it.

The next Sunday, ascending his pulpit, Peters held forth, with a natural warmth of feeling, upon the crime of highway robbery, taking as his text, "I have put off my coat, how shall I put it on?" when an honest plain man present, who had heard of the incident, exclaimed, "Upon my word, sir, I believe there is nobody here can tell you, unless Captain Hind were here."

The which put the congregation into such an excessive fit of laughter that the parson was made to blush, and descended from his prattling-box without further prosecuting the subject.

It was upon the road between Sherborne and Shaftesbury that Hind fell in with Serjeant Bradshaw, prominent among those who had sat in judgment upon the King. Bradshaw was in his travelling chariot, and, progressing with a considerable degree of state, declined to be robbed; mentioning his name.

"Pooh!" exclaimed Hind, "I fear neither you nor any king-killing villain alive. I have now as much power over you as you lately had over the King, and I should do God and my country good service if I made the same use of it; but live, villain, to suffer the pangs of thine own conscience, till Justice shall lay her iron hand upon thee, and require an answer for thy crimes, who are unworthy to die by any hands but those of the common hangman, or at any other place than Tyburn. Nevertheless, though I spare thy life, deliver up thy money, or die for thine obstinacy."

To save a miserable life, he put his trembling hand into his pocket, and drew out about forty shillings in silver, which he presented to the Captain, who swore he would that minute shoot him through the heart, unless he found him coin of another species. The Serjeant was then compelled to present Hind with a purse full of Jacobuses.

What a devil of talk possessed Hind. To be robbed and insulted, that was perhaps endurable; but to be lectured—oh, horrible!

"*This*, sir," says he, receiving the purse, "is the metal that wins my heart for ever! O precious gold! I admire and adore thee, as much as either Bradshaw, Prynne, or any other villain of the same stamp. This is that incomparable medicament which the republican physicians call the wonder-working plaster. It is truly Catholic in operation, and somewhat akin to the Jesuit's powder, but more effectual. The virtues of it are strange and various; it maketh justice deaf, as well as blind; and takes out spots of the deepest treasons, as easily as Castile soap does common stains. It alters a man's constitution in two or three days, more than the virtuoso's transfusion of blood can do in seven years. 'Tis a great alexiopharmick, and helps poisonous principles of rebellion, and those that use them. It miraculously

exalts and purifies the eyesight, and makes traitors behold nothing but innocence in the blackest malefactors. It is a mighty cordial for a declining cause: it stifles faction and schism, as certainly as the itch is destroyed by butter and brimstone. In a word, it makes fools wise men, and wise men fools, and both of them knaves. The very colour of this precious balm is bright and dazzling. If it be properly applied to the fist, that is, in a decent manner, and in a competent dose, it infallibly performs all the above-mentioned cures, and many others, too numerous to be here mentioned."

With this, probably having quite exhausted himself, he haughtily pistoled the six horses that drew Bradshaw's carriage, and so left the unfortunate regicide, stripped of his money, deprived of all means of locomotion, and stunned by his flow of verbiage.

This, like the most of Hind's exploits, was robbing on the grand scale. To be sure, he rarely stooped to little larcenies, for he was a practical philosopher among the "skilful surveyors of highways and hedges" that he and his kind were pleased to style themselves. "Remember what I tell you," he would say; "disgrace not yourselves for small sums, but aim high, and for great ones; the least will bring you to the gallows."

There spoke the "Prince of Prigs," who was indeed so notable in his own lifetime that he had the honour accorded him of a play written around his exploits while yet he survived to add to them. It is not a good play, but that is no fault of our "gentleman" highwayman: the thing is that it should have been written and printed at all. Thus runs the title-page, that he himself may have read:

An Excellent Comedy
called, The
PRINCE OF PRIGGS
Revels:
or
The Practises of that grand Thief Captain
JAMES HIND
Relating
Divers of his Pranks and Exploits, never
heretofore published by any.
Repleat with various Conceits, and Tarltonian Mirth,
suitable to the Subject

Written by J. S.

London, Printed for G. Horton, 1651.

Seventy pounds he took from Colonel Harrison, another of the regicides, on the Bath Road, at Maidenhead Thicket; and so at one and the same time avenged his King and full-lined his pockets. A hue-and-cry was raised immediately, and the "Captain" was in danger long before he suspected it. It was an innkeeper who warned him—for the taverners and tapsters of that, of earlier, and of succeeding ages were ower sib to the gentlemen of the high-toby trade, and stood them in good stead whenever possible.

In this situation, it seems, Hind experienced an unwonted access of nervousness, and was apprehensive of every person he met upon the road. He had reached Knowl Hill, some four miles only from the spot where he had held up Harrison in his carriage, when a gentleman's servant, George Symson by name, riding at full speed after his master, came dashing by. With his mind full of the hue-and-cry raised after him, Hind, supposing this to be one of his pursuers, turned about, and raising his pistol, shot the unfortunate man dead: the only occasion of his taking life.

In May 1649, he was at The Hague, in the councils of Charles the Second. Thence, after a three days' stay, he crossed to Ireland and was made a corporal in the Duke of Ormonde's Life Guards. Wounded in action with Cromwell's troopers before Youghal, he escaped to Dungannon, but plague raged there, and he sailed for Scilly, which had a clean bill of health, and was, moreover, the safest place in which a hunted Royalist, highwayman or not, could at that time find himself. For, when all else had failed, even in the staunch and long-enduring West, the Scilly Isles still held out for the cause. The King was dead, but his son reigned in the hearts of the Cavaliers, and a faithful band, captained by Sir John Grenville, retired to that remote archipelago, fortified the islands, and made them a privateering base. It was not until June 1651, that Blake's flotilla forced them to surrender.

Meanwhile, so famous had Hind become, that rumour posted him everywhere where highway robberies were reported. He was already in his lifetime a kind of bogey, or will-o'-wisp sort of a fellow, who could miraculously be in at least two places at one and the same time. Thus, while he was certainly in Scilly, *The Perfect Weekly Account* of September 13th,

1649, reports from Bedford: "Last night was brought into this gaol, two prisoners taken up upon pursuit by the county, for robbing some soldiers of about £300 upon the way, in the day-time: there were five in the fact, and are very handsome gentlemen: they will not confess their names, and therefore are supposed to be gentlemen of quality, and 'tis conceived they are of the knot of Captain Hind, that grand thief of England, that hath his associates upon all roads. They strewed at least £100 upon the way, to keep the pursuers doing, that they might not follow them."

No doubt this would have been an enterprise entirely after Hind's own heart; but he was not there, nor were the highwaymen of his company.

Again, September 20th: "Yesterday about 20 horse of Hind's party (the grand highway thief) in the space of two hours robbed about 40 persons between Barnet and Wellin. They let none pass, to carry news while they staid about this work, by which means they all escaped before the county could be raised, but the Lord General's horse are diligent in seeking after them."

Hind remained in the sanctuary afforded by the Scilly Isles for eight months, and then travelled to the Isle of Man, where he sojourned thirteen weeks. There had been little scope for his peculiar activities on Scilly, but he found more opportunities on the Isle of Man, the kingdom at that time of my lord the Earl of Derby, to whom he obtained an introduction. He even became what modern diplomats would describe as a *persona grata* in that island Court. Robbery had been unknown in this most fortunate of the Fortunate Isles before ever Hind set foot there; but with his advent a perfect epidemic of highway robbery prevailed. The Manxmen would have been of the densest had they not connected the coming of Hind with these disasters, and they laid their suspicions before the Governor, Sir Philip Musgrave, who, with Hind by his side, in good-fellowship thought the insinuation absurdly ungenerous. Hind declared his innocence, but protested his willingness to suffer the extremest penalty of the island laws, if he were recognised for the thief. This offer was not so impetuously ingenuous as it looked, for, naturally, if he were so recognised, he would perforce, in the usual course of affairs, be made to suffer; and secondly, he had already taken the precaution of robbing in disguise. The Manxmen had come to the Governor with tales of an aged, hairy man, with long hair and beard; and

confronted with the youthful Cavalier-like Hind, protested with apologies, that this was not the man. And then, when they were gone, what must our tricky Captain do but produce, for the Governor's amusement, the shameless wigs and costumes in which he had masqueraded. There must have been a deal of fellow-feeling in that Governor, and little humour. Your true humorist could not possibly have resisted the obvious conclusion to the screaming farce, and would have had Hind fettered and sent off at once to the deepest dungeon available.



HIND SHOWS HIS DISGUISE.

Hind then went across the Border into Scotland, where preparations were afoot for an armed invasion of England on behalf of Charles the Second. At Stirling he loyally kissed the hand of His Majesty and offered his services, not in taking purses on the road, but in fighting for the cause. The King commended him to the Duke of Buccleuch, and he came south and fought for Charles (the "King of Scots," as the Republicans were pleased to call him) at the disastrous Battle of Worcester. Escaping in the headlong flight, he hid himself in London. Near the close of that year, 1651, lodging in the name of James Brown, in the house of one Denzys, who exercised the trade of a barber over against St. Dunstan's-in-the-West, in Fleet Street, he was betrayed to the Republican party and carried before the Speaker of the House of Commons, who, after a lengthy examination "in regard to his late engagement with Charles Stewart, and whether he was the man that accompanied the Scots king for the furtherance of his escape," committed him in irons to the Gatehouse. There was a choice before his captors of the charge to be preferred. At first he was removed to Newgate, and tried at the sessions for highway robbery. A rude woodcut in a biography shows him, visited by his wife and father, at this stage of affairs, with a pitiful verse beneath.

The charges not being sustained by sufficient evidence, he was sent under a strong guard to Reading, there to be tried, March 1st, 1652, for the murder of George Symson at Knowl Hill. Convicted of this, he would forthwith have been hanged, had it not been for an Act of Oblivion that had been passed, securing an indemnity for "all past offences." This, apparently, did not include the offence of high treason; and so reduced, much against their will, to making a political martyr of Hind, the high personages of the Commonwealth, after endeavouring to dispose of him on the ignoble charges of highway robbery and murder, removed him by Order in Council to Worcester gaol, where he was condemned for high treason.



Behold! at last, the saddest sight of all;
Poor Hind! Now in the hole at Newgate lies,
His wife and father both lament his thrall
And are much troubled at his miseries.
His book and candle his companions be;
Though now in chains, he hopes for liberty.

The book published at this period, entitled *The English Gusman*, one of those purporting to give an authentic life of Hind, narrates a conversation in his cell, here or at Newgate. Hind says: "I had not been here now if there had not been a Judas abroad, for indeed I was betrayed by one who formerly served the King, but now he is for you (pointing to a Captain who was present), but God forgive him."

The keeper of the prison then called him from the fireside to the window, to see if the iron shackles upon his legs were in order.

"Well," said Hind, "all this I value not threepence. I owe a debt to God, and a debt I must pay. Blessed be His name, that He hath kept me from shedding blood unjustly, which is now a great comfort to me. Neither have I wronged any poor man of the worth of a penny, but I must confess that I have (when I have been necessitated to) made bold with a rich bumpkin, or a lying lawyer, whose full-fed fees from the rich farmer doth too much impoverish the poor cottage-keeper."

The many "witty jingles" he put forth occasioned much laughter, but a gentleman standing by said, "Captain, you are not brought hither for robbing, but for treason."

"Treason," replied Hind; "I am not guilty in the least."

"Yes, sir," replied the gentleman, "you are, for complying with Charles Stuart, and engaging against the Commonwealth of England."

"Alas! sir, it seems that is enough to hang one."

"I am afraid you will find it so," answered the gentleman.

"Well, God's will be done," replied Hind; "I value it not threepence to lose my life in so good a cause; and if it were to do again, I protest," said he, laying his hand on his breast, "I would do the like."

"Come," said the keeper, "no more of this discourse; clear the room."

Hind in due course suffered the hateful penalty for high treason at Worcester. He maintained a light and frolicsome demeanour to the last. "These are filthy, jingling spurs," he remarked with a laugh, pointing to the fetters that clanked about his legs as he walked from the bar, "but I hope to exchange them ere long."

He was drawn to the scene of execution, then hanged, and afterwards quartered: his head being placed midway on the Severn bridge, and the other portions of him over the several gates of the city, September 24th, 1652.

JOHN CLAVEL, "GENTLEMAN"

ONE of the really notable highwaymen of the early years of the seventeenth century was John Clavel, who came from an ancient, if perhaps not particularly distinguished, family, tracing their descent back to Walter de Clavile, in the reign of William the Conqueror. For more than seven hundred years the Clavel, or Clavell, family flourished in a modest way upon their manor of Smedmore, on the Dorset coast, in the neighbourhood of Kimmeridge, and finally ended with the death, *s.p.*, as genealogists would say, of George Clavel in 1774. The only Clavel who fully emerges from the obscurity in which the family were content to remain, from the days of the original Walter until those of the ultimate George, is John Clavel, whose vocation was robbery under arms upon the highway. What laid this calling upon him, the personal history of John Clavel does not inform us; but probably, when we consider that he was merely a nephew of Sir William Clavel, the head of the family, we shall be correct in placing him among those younger sons and expectant heirs who, however great were their expectations in some more or less remote future, were generally, in the present tense, not only poor, but head over ears in debt. As the history of the highwaymen has already shown us, their ranks were very largely recruited from those youthful members of reputable families, whose family name was better than their personal credit. Confound the law of primogeniture, and pity the sorrows of a younger son with an excellent ancestry and an empty purse!

Our present hero, John Clavel, who was born in 1603, was heir-presumptive to his uncle, the Dorset squire. Whether that uncle kept him shorter of money than an heir should be, or whether he was a gamester who sought to repair his losses at cards or dice by the hazard of the road, who shall say? Not I. Perhaps he even robbed on the highway for sheer joy of it: such sportsmen were not unknown. But, by all accounts and just inferences, he had been no mere amateur, out for a solitary adventure, when he was laid

by the heels and cast into the King's Bench Prison. He had made an occupation of highway robbery.

Thus we read, in one of the *News Letters* written by Joseph Mead, that purveyor of London intelligence to country gentlemen in 1626: "February 11th, Mr. Clavell, a gentleman, a knight's eldest son (?), a great highway robber, and of posts, was, together with a soldier, his companion, arraigned and condemned, on Monday last, at the King's Bench bar. He pleaded for himself that he had never struck or wounded any man, had never taken anything from their bodies, as rings, etc., never cut their girths or saddles, or done them, when he robbed, any corporeal violence. He was, with his companion, reprieved. He sent the following verses to the King, for mercy:

I that have robb'd so oft, am now bid stand;
Death and the law assault me, and demand
My life and means. I never used men so;
But having ta'en their money, let them go.
Yet must I die! And is there no reliefe?
The King of Kings had mercy on a thiefe!
So may our gracious King too, if he please,
Without his council, grant me a release.
God is his precedent, and men shall see
His mercy goe beyond severity."



JOHN CLAVEL.

That I may neither brave another's blame
Through wronge suspicions, nor yet act ye same
At any time hereafter, but prove true:—
Loe! to be knowne, you have my face at viewe.

He was reprieved, as the newsmonger tells us, but that was not sufficient. He must not merely escape the death-sentence, but be set free. To that end he wrote in October 1627, in prison, the curious pamphlet, largely in verse, styled the *Recantation of an Ill-led Life*, and published in the following year. He does not forget to style himself, on the title-page, "Gentleman," and has even a Latin tag; perhaps, you know, as evidence of his gentility.

Yet he grovels through many pages in so abject a style no man of spirit could endure. Whether he was so thorough-paced a highwayman as he tearfully declares himself to have been is, of course, not to be resolved by us, at this interval of time; but, according to his own showing, he was not only an adept, but deep in the counsels of the high-toby gloaks and a past-master in all their devices. These, with the hope of a pardon, he proceeds to betray, at much length, in his "recantation," which he describes as "A discoverie of the Highway Law. With Vehement dissuasions to all (in that kind) offenders. As also Many cautelous Admonitions and full Instructions, how to know, shun, and apprehend a Theefe. Most Necessarie for all honest Trauellers to per'use, obserue, and Practise." This travellers' handy handbook was "Approued by the King's most Excellent Maiestie, and published by his expresse Command," by one Robert Meighen.

The *Recantation* sets out with an extraordinary number of rhymed dedications addressed to the King, the Queen, the Ladies of the Court, "the Right Honourable the Lords of His Maiestie's most Honourable Priuie Counsaile and Counsaile of Warre," the Judges of the King's Bench, and others; ending with an appeal to the "Right Worshipful, his euer dear and well-approued good Uncle, Sir William Clavell, Knight Banneret," whom he requests:

..... if againe
I euer take a course what shall be vaine,
Or if of any ill I faultie be,
O then for ever disinherit me.

But Sir William did even better than that. To be on the safer side, he disinherited him at once, without waiting for his nephew to prove the sincerity of his professions, and bequeathed his estates to a distant relative.

In the meanwhile, however, John Clavel did at any rate manage to produce a popular book. Three editions of it are known; but whether the book was purchased as a curiosity, or as a practical guide to safe travelling upon the highways, there is nothing to show. The heads of his counsel are interesting:

"Acknowledgement and Confession.

"Absolute Defiance of those that follow my late course of life, living vpon the spoile.

"The highway law.

"How soon they spend what unlawfully they get.

"Instruction for the honest traueller: What he is to take heed vnto, before he take his journey.

"How to carry himself in his inn.

"The danger of trauelling on the Sabbath Day.

"How as he rides he shall know a thief from an honest man.

"An instance how dangerous it is to grow familiar with any stranger upon the way.

"When to ride.

"Where to ride.

"How to ride.

"What is best to be done if he is beset.

"If by chance he is surprised, how to behave himself.

"Being robbed, how to follow, which way to set forth the Hue and Cry, how to coast, and where to find the thieves," etc., etc.

He appears to have largely favoured the Dover Road, in his professional exploits:

. Though I oft have seen Gad's Hill and those
Red tops of mountains, where good people lose
Their ill-kept purses, I did never climb
Parnassus Hill, or could adventure time
To tread the Muse's Mazes, or their floor,
Because I knew that they are lightly poor,
And Shooter's Hill was fitter far for me,
When pass'd releases for my own poverty.

He then proceeds to tell in verse how the inns are often kept by landlords in league with highwaymen, who not infrequently spend thrice as much as honest travellers, or whose servants are either placed there by the knights of the road, or are bribed by them to investigate the contents of travellers' saddle-bags and valises.

Having done this, the hints he next gives to innkeepers, on how to distinguish between highwaymen and decent travellers, seem rather superfluous. As to the stigmata of the highwaymen themselves, besides those

vizards, hoods, disguise,
Masks, muzzles, mufflers, patches on their eyes;
Those beards, those heads of hair, and that great wen,
Which is not natural.

there are the following simpler devices:

Next of a theefe, the vsuall markes be these,
(Which as you ride you may observe with ease)
They muffle with their cloakes, or else their coate
Hides all their clothes, that so you may not note
What sutes they haue, a handkercher they were
About their neckes, or Cipresse, which they reare
Ouer their mouthes, and noses, with their hand
Iust at the time when as they bid you stand;
Perhaps since here I haue discovered this,
They will now leaue them off, that you may misse
Your obseruation, be you therefore sure
As soone as they come riding somewhat neere,
To gaze full at their faces, you shall see
Them turn their heads away, as if so bee
They had spide something on the tother side,
Which if they doe, then keepe your distance wide.

Obviously, the better course for the highway robber who loved his profession, and not only meant to rob successfully, but to live long in the enjoyment of his gains, was to carefully dress the part. To muffle themselves up in cloaks, like conspirators, would be to send even the least prudent traveller off in hurried flight. Such methods were mere danger-signals, and no security against subsequent recognition. But with an artificial nose, or a bushy beard, and little transforming touches of that sort, a careful road-agent might reckon on a long and lucrative practice; always supposing he kept his own counsel and held aloof from bad company. This,

however, judging from the careers of most of their kind, seems to have been asking too much.

But to return to the strange fortunes of John Clavel. His piteous appeal from prison (or perhaps rather the family influence brought to bear) at length procured him release. He promised in his book, if set at liberty, to fight for his King:

..... I do intend
Whilst these your wars endure, even there to spend
My time in that brave service.

But there is nothing to show how he occupied himself when once again he was restored to society; there is, however, a curious little notice added to the third edition of the *Recantation*, by the publisher, by which it would seem gossip had been doing an injustice to our sinner repentant. Thus it reads:

"The late and general false report of his relapse and untoward death, made me most willing again to publish this work of his, to let you know he not only lives, but hath also made good all these his promises and strict resolutions: insomuch that it has become very disputable amongst wise men, whether they should most admire his former ill-ways, or his now most singular reformation, whereat no man outjoys his friend and yours.—RICHARD MEIGHEN."

This brand plucked from the burning appears to have died in 1642.

WILLIAM DAVIS, THE GOLDEN FARMER

THERE stands on the summit of the steep hill as you go westward out of Bagshot, along the Exeter Road, a commonplace inn at the fork of the roads leading respectively to Camberley and to Frimley. The "Jolly Farmer"—for that is the name of the inn—looks squarely eastward, down the hill, and seems no doubt, to most who pass this way, not worth even a glance. Nor, indeed, is it beautiful or interesting. Its former sign, however,—the sign of the "Golden Farmer"—enshrined an interesting story of the road. The forerunner of the present house stood on the right-hand side of the way, and was named the "Golden Farmer," in allusion to a highwayman, once only too well known in the neighbourhood.

William Davis flourished in the seventeenth century. Born at Wrexham, he was early taken to Sudbury, in Gloucestershire, where he eventually married the daughter of a wealthy innkeeper. He had eighteen children, and it would almost seem, by the tone of his early biographers, that this unfortunate fact went some way towards excusing his career. He was, to the day of his death, a farmer, and for a good many years cultivated land in the neighbourhood of Bagshot; a district remarkable in those times rather for wild heaths than for agricultural value. And long it remained of this character, and infested with highwaymen, for we find the poet Gay in 1715, in his fine narrative poem, *A Journey to Exeter*, writing:

Prepared for war, now Bagshot heath we cross,
Where broken gamesters oft repair their loss.

Mr. William Davis was a man very greatly respected for his singular habit of always paying his debts in gold. Paper money—whether notes, bills, or cheques—never passed from him to his creditors. Good, honest guineas, of red, minted gold—tender no man refused—were his only medium. Those who did business with him thought this an eccentricity, but

an amiable one; and as the years went on, he accumulated more and more respect.

But in all those years he was in reality a busy highwayman. Many stories are told of him, and by them it appears that he did by no means confine his activities to the neighbourhood of Bagshot. Prudence now and again sent him further afield, to till—to adopt a formula that would have appealed to him as a farmer—comparatively uncropped ground. Thus we find him once ranging so far as Salisbury Plain, and there bidding the coachman, who was driving the Duchess of Albemarle, to rein in his horses, or—presenting a pistol—take the consequences. He had "a long engagement" with postilion, coachman, and two footmen, and wounded them all. He does not appear to have suffered; which does not say much for the marksmanship, the courage, or the resource of the Duchess's guard, whose guardianship was thus proved so ineffectual. But it is a hero-worshipping biographer of highwaymen, who tells the story. The "Golden Farmer" seems on this occasion to have departed from his almost invariable custom, and to have torn the Duchess's diamond rings from her fingers. Probably he would have had her watch also, only the appearance of some other travellers made him prudently fly: followed by a torrent of bad language from Her Grace, who could hold her own with the best, or worst, in that line, having been, before she married General Monk, none other than Nan Clarges, washerwoman, and the daughter of a blacksmith, and well versed in abuse.

Anon, we have the "Golden Farmer" on Finchley Common. He had waited there one day, riding back and forth between four and five hours, hoping for some likely traveller, and none had come. Imagine him, shivering in the bitter blast, and angrily wondering what had become of every one. At last a young gentleman came riding along, unconscious of danger. Up rode the highwayman to him, and gave him a flap across his shoulders with the flat of his hanger.

"How slow you are!" he exclaimed. "A plague on you, to make a man wait on you all the morning! Come, deliver what you have, and be curst, and then go to Hell for orders."

The traveller declared he had nothing about him, but that, the highwayman remarked, was nonsense.

Then, searching the unresisting young gentleman's pockets and taking a gold watch and about one hundred guineas, he gave him three parting strokes on the back, and, telling him in future "not to give his mind to telling lies when an honest gentleman required a small boon of him," cantered away.

One day, having paid his landlord £80, he carefully disguised himself, and in a solitary situation met him with the command to "stand and deliver!"

"Come, Mr. Gravity from Head to Foot, but from neither Head nor Foot to the Heart," said he, "deliver what you have, in a trice."

The "old, grave gentleman" heaved a deep sigh, to the hazard of losing several buttons off his waistcoat. "All I have is two shillings. You would not take that from a poor man."

"Pooh!" rejoined the "Golden Farmer," "I have not the faith to believe you, for you seem by your manner and habit to be a man of better circumstances than you pretend; therefore, open your budget, or else I shall fall foul about your house."

"Dear sir," wailed the old gentleman, "you can't be so barbarous as to rob an old man. What! have you no pity, religion, or compassion in you? Have you no conscience? You can have no respect for your own body and soul, which must certainly be in a miserable case, if you follow these unlawful courses."

"D——n you," rejoined Davis, "don't talk of age or barbarity to me, for I show neither pity nor compassion to any. What! talk of conscience to me! I have no more of that dull commodity than you have; nor do I allow my soul and body to be governed by religion, but by interest; therefore, deliver what you have, before this pistol makes you repent your obstinacy."

There was no help for it, and the rent found its way back from landlord to tenant.

Again the "Golden Farmer" is found in a new setting; this time upon the Oxford Road. The particularly evil character of this road was enlarged upon in 1671 by Richard Brockenden, writing to Sir Richard Paston, and

describing what he called "a new set of highwaymen," who robbed every night, unlike the old hands, who evidently rested frequently from their labours to enjoy the fruits of their shy industry, and must have resembled Sir W. S. Gilbert's lawless but light-hearted gang, who sang:

We spend our nights on damp straw and squalid hay
When trade is not particularly brisk;
But now and then we take a little holiday,
And spend our honest earnings in a frisk.

The infamous "new set," who robbed every night, cannot command our sympathy; they were too pushful. William Davis, however, belonged to no set. He was complete in himself; and if he too robbed without ceasing, he had those eighteen children of his to support. It was near the London end of the Oxford Road that the following adventure took place: at none other than the village of Hillingdon, near Uxbridge.

It seems, then, that the "Golden Farmer," dressed in appropriately rustic style, overtook near Gerrard's Cross a certain Squire Broughton, a barrister of the Middle Temple, and entered into conversation with him. When he learned the profession of this chance acquaintance, he pretended to be on his way to London to advise with a solicitor, and, expressing himself as fortunate in meeting one learned in the law, asked him if he could recommend counsel. Broughton, scenting business, bespoke for himself, and the "Golden Farmer," spinning a cock-and-a-bull story of some neighbour's cattle breaking into his fields and doing a vast amount of mischief, sought his opinion.

"It is very actionable," said the lawyer, "being Damage Fesant."

"Damage Fesant?" asked the highwayman. "What's that, pray, sir?"

The lawyer, with much show of learning, duly expounded the matter; and so, as evening drew in, they came to the "Red Lion," Hillingdon, discussing the Law of Trespass, the extent to which the farmer was probably damnified, and the pros and cons of the whole bogus affair.

Passing a very pleasant night at the "Red Lion," they set out together the next morning, still talking law.

"If I may be so bold as to ask you, sir," said the Golden Farmer, "what is that you call Trover and Conversion?"

"Why," said the lawyer, "that is easily explained. It is an action against one who has found any property, and, refusing to deliver on demand, converts it to his own use."

They were now on Hillingdon Heath, a lonely place, not yet lined with mean houses and paltry shops, and still to wait a matter of two hundred years before Mr. Whiteley's factory and stable-yards were built beside the road.

"Very well," said the Golden Farmer, "and if I should find any money about you, and converted it to my own use, that would be merely actionable?"

"That would be highway robbery," rejoined the man of law, "and would require no less satisfaction than a man's life."

"A robbery!" exclaimed the highwayman. "Why, then, I must e'en commit one for once; therefore deliver your money, or this pistol shall prevent you reading Coke upon Littleton any more!"

"You must be joking!" exclaimed the lawyer, edging away.

But the Golden Farmer, presenting the pistol to his breast, advised him to "down with the rhino, or he would get his mittimus by summary process." The man of law still hesitated.

"Do you think," said he, "there is neither heaven nor hell?"

"Why," rejoined the highwayman, "thy impudence is surely very great to talk of heaven or hell to me! D'ye think there's no other way to heaven but through Westminster Hall? Come, come, down with your rhino this minute, for I have other customers to mind than to wait on you all day!"

Thus adjured, the lawyer reluctantly handed over "thirty guineas and eleven broad pieces of gold," besides some silver and a gold watch.

The "Red Lion," Hillingdon, is standing to this day, and the crowds who frequent it in these times when the electric trams pass its door, may feel a

romantic thrill as they connect the house with this story.

Hillingdon Heath figures also in the next adventure.

"Well overtaken, brother tinker!" exclaimed the "Golden Farmer," as one day he came up with an itinerant mender of pots and kettles; "methinks you seem very devout, for your life is a continual pilgrimage, and in humility you go about barefoot, thereby making necessity a virtue."

"Ay, master," replied the tinker, "needs must when the Devil drives, and had you no more than I, you, too, might go without boots and shoes."

"That might be," quoth the "Golden Farmer"; "but as for yourself; you, I suppose, march all over England with your bag and baggage?"



THE GOLDEN FARMER AND THE TINKER.

"Yes," said the tinker, "I go a great deal of ground, but not so much as you horsemen, and I take a great deal of pains for a livelihood."

"Yes," rejoined the highwayman, "I know thou art such a strong enemy to idleness that, mending one hole, you make three."

"That's as you say," retorted the tinker; "however, sir, I wish you and I were farther asunder, for i'faith I don't like your company, and have a great suspicion of you."

"Have you so?" said the highwayman; "then it shall not be without a cause: come, open your wallet forthwith, and deliver that parcel of money that's in it."

The unhappy tinker begged he would not rob him. If he did, he said, he must needs be forced to beg his way home, over a hundred miles.

But the "Golden Farmer" had no mercy. "D——n you," said he, "I don't care if you have to beg your way two hundred miles, for, if a tinker escape Tyburn and Banbury, it is his fate to die a beggar."

So saying he made off with the tinker's money and wallet too.

At last the "Golden Farmer" met his long-deferred doom, and in his own district. The Exeter Road, in the neighbourhood of Bagshot, had long been haunted by a highwayman, who robbed impartially the early coaches of that age, or the travelling chariots of the great. This highwayman had his peculiarities. Others might risk stealing notes and jewellery, but he refused all trinkets, and took coin only. The strange thing is that no one in Bagshot or round about seems to have exercised the simple art of putting two and two together and making a total sum of four; or, in other and less metaphorical phrase, of deducing the "Golden Farmer," who paid only in gold from the unnamed, masked highwayman who took only gold. The two were, of course, one, and so much was discovered one night when, the highwayman having as usual stopped and plundered a coach, a traveller who had secreted a pistol shot him in the back as he was making off.

Bound hand and foot, the wounded man was taken to the "King's Arms," where, to the astonishment of all, he was recognised as the "Golden Farmer."

Fact and fiction are so intermingled in these stories of the "Golden Farmer's" exploits, that it would be almost as easy to unravel the real history of Robin Hood himself, as to present a biography of him that should have much pretence to truth in detail. It seems we are not even on sure ground when we set his name down as William Davis, for in a collection of old printed trials at the British Museum we find a William Davis, identified with the "Golden Farmer," executed in September, 1685, for being the principal figure in a burglary and felony committed in company with one

John Holland and Agnes Wearing at the house of a minister, one Lionel Gatford, in Lime Street, City of London. Agnes Wearing suffered with him, but Holland was reprieved.

Yet, although this Davis was turned off in 1685, we find, by the *London Gazette* of September 9th, 1689, that there were then in custody at Newgate two persons suspected of being housebreakers and robbers, several instruments for breaking into houses having been taken with them: "one calling himself William Freeman, whose right name is William Hill, commonly called the 'Golden Farmer,' an indifferent, tall, black Man, well set, with black hair, has a shaking in his Head, and is between 50 and 60 years of age." This advertisement proceeds to notify that "those robbed may have a sight of them at Newgate." [\[5\]](#)



EXECUTION OF THE GOLDEN FARMER.

From a contemporary woodcut.

Another story tells how he was pursued in Whitefriars, London, the old-time Alsatia of rogues and vagabonds behind Fleet Street. He shot dead a butcher who tried to stop him, but was tripped up and secured, at the corner of Salisbury Court and Fleet Street, where he was afterwards hanged,

December 20th, 1689, in his sixty-fourth year: or, by another account, December 20th, 1690. His body was afterwards hanged in chains on the threshold of his own house at Bagshot.

On a broadsheet ballad, published on the occasion of his execution, entitled *The Golden Farmer's Last Farewell*, a rude woodcut appears at the head of the verses, in which you see a very small figure hanging most comfortably from a gallows-tree, with a thoroughly happy expression upon his face, while a small crowd (assorted sizes) contemplates his sad end with a variety of emotions, ranging from amusement to contempt. The verses are typical of the penny literature of the age, and do not necessarily follow his career with any slavish regard to truth:

Unto you all this day,
my faults I do declare,
Alas! I have not long to stay,
I must for Death prepare;
A most notorious Wretch,
I many years have been,
For which I now at length must stretch,
a just Reward for Sin:
No Tongue nor Pen can tell
what sorrows I conceive;
Your Golden Farmer's last Farewell,
unto the World I leave.

A Gang of Robbers then
my self did entertain;
Notorious hardy Highwaymen,
Who did like Ruffians reign:
We'd rob, we'd laugh, and joke,
and revel night and day;
But now the knot of us is broke,
'tis I that leads the way:
No Tongue nor Pen can tell, etc.

We houses did beset,
and robb'd them night and day,
Making all Fish that came to Net,
for still we clear'd the way;
Five Hundred Pounds and more,
in Money, Gold, and Plate,
From the right Owner we have bore,
but now my wretched State,
No Tongue nor Pen can tell, etc.

We always gagg'd and bound
most of the Family,
That we might search until we found
their hidden Treasury;
A sword-point at their throat,
a Pistol cock'd straightway,
Presented at their Breast, to make
them show us where it lay:
No Tongue nor Pen can tell, etc.

I having run my Race,
I now at last do see,
That in much shame and sad disgrace,
my Life will ended be:
I took delight to rob,
and rifle rich and poor,

But now at last, my Friend, Old Mob,
I ne'er shall see thee more:
No Tongue nor Pen can tell, etc,

The Blood which I have spilt
now on my Conscience lies,
The heavy, dreadfull thought of Guilt,
my Senses do's surprize;
The thoughts of Death I fear,
although a just Reward,
As knowing that I must appear,
before the living Lord.
No Tongue nor Pen can tell, etc.

I solemnly declare,
who am to Justice brought,
All kind of wicked Sins that are,
I eagerly have wrought;
No Villains are more rife
than those which I have bred,
And thus a most perfidious Life
I in this World have led:
No Tongue nor Pen can tell, etc.

Long have I liv'd, you see,
by this unlawful Trade,
And at the length am brought to be,
a just Example made;
Good God, my Sins forgive,
whose Laws I did offend,
For here I may no longer live,
my Life is at an end.
No Tongue nor Pen can tell, etc.

THOMAS SIMPSON: "OLD MOB"

THE name of Thomas Simpson arouses no emotions of love or hate, of fear or of admiration. He is just "Thomas Simpson," plebeian, undistinguished amid the other hundreds of Thomas Simpsons who have worn a commonplace name throughout a commonplace career, and so ended; the world appreciably no better for their existence, and certainly not noticeably worse. There have been perhaps thousands of Thomas Simpsons, but there has been only one "Old Mob." The Thomas Simpson, who rose to fame with that picturesque nickname, was born at Romsey, in the New Forest, in the first half of the seventeenth century. We are told little of his early life, and merely learn that he continued to live at Romsey as his only home, "until he had five children and some grandchildren." His education, we further learn, without surprise—for it was the seventeenth century, you know—"appears to have been greatly neglected." It was impudence, however, more than anything, more even than courage, that ever made the successful highwayman: the 'ologies were useless on the hard high road, under stars, when a carriage worth robbing drew nigh; nor even would the elementary three R's help a man any the better to thrust a pistol through a window and cry "Stand!"

Old Mob had little education and less manners. Your Du Valls and Captain Hinds might bring the manners of society and the refinements of the ball-room into the keen air of the highway; for him there was but the rasping tongue of command and the contact of the cold muzzle of his pistol with your nose. He ranged the south and west of England very freely, and is found on one occasion in the Eastern Counties.

Accounts of his career generally open with his encountering a certain Sir Bartholomew Shower, between Honiton and Exeter. The road in the neighbourhood of Honiton Clyst is still little frequented, and at that time must have been singularly lonely. Old Mob called upon the knight to "stand and deliver," and Sir Bartholomew delivered accordingly, and with a

pleasing readiness because he had the merest trifle on him, and thought to have thus escaped easily. But Old Mob was disappointed, and proportionably wroth: "My demands, sir, are very large and pressing," he said, "and therefore you must instantly draw a bill for one hundred and fifty pounds and remain in the next field for security till I have received the money."

The knight vainly protested that there was no one in Exeter who had so large a sum by him, but Old Mob would take no denial and led him a long distance away from the road, tied him to a tree, and compelled him to draw a bill for the amount on a goldsmith in the city. Then he rode into Exeter, duly cashed it and, returning, released his prisoner. "Sir," his biographer reports him as saying, "I am come with a *habeas corpus* to remove you out of your present captivity"; which he did, leaving him to walk home the distance of three miles.

This last remark attributed to Old Mob, the uneducated, is no doubt a biographical frill, inserted to fitly round off the incident. What should he know of *habeas corpus*? This was a vice of which the biographer of the knights of the road could by no means rid themselves.

It was upon the road between Newmarket and London that Old Mob halted the carriage of no less a personage than Louise de la K rouaille, the notorious Frenchwoman, favourite of Charles the Second, whom that monarch had created Duchess of Portsmouth.



"OLD MOB" ROBS THE DUCHESS OF PORTSMOUTH.

"Do you know who I am, fellow?" demanded that haughty lady, indignant at being stopped by so mean-looking an object.

Now, for such as the Duchess of Portsmouth and her kind to ask such a question of a highwayman was singularly rash. Captain Alexander Smith and "Captain" Charles Johnson, in their folio volumes of the *Lives of the Highwaymen*, published in 1719 and 1742, respectively, describe Old Mob's reply, either in his own words, or excogitated out of their own inner consciousness, according to their own ideas of probability; but these present

pages are in octavo volumes and this is the twentieth century, and for one of these reasons, or both—as you please—it is really not possible to reprint the vigorous reply of Old Mob to the Duchess's request. He not only told her who she was, but also, in the sheerest unornamental language, *what* she was, as well. Among other things: "You are maintained at the public expense. I know that all the courtiers depend upon your smiles, and that even the King is your slave. But what of all that? A gentleman-collector upon the road is a greater man, and more absolute than His Majesty is at Court. You may now say, madam, that a single highwayman has exercised his authority where Charles the Second of England has often begged a favour."

Her grace continued to gaze upon him with a lofty air, and told him he was a very insolent fellow: that she would give him nothing, and that he should certainly suffer for his insolence. "Touch me if you dare!" she exclaimed.

"Madame," rejoined the highwayman, "that haughty French spirit will do you no good here. I am an English freebooter, and I insist upon it, as my native right, to seize all foreign commodities! Your money is indeed English, but it is forfeited, as being the fruit of English folly. All you possess is confiscated, as being bestowed upon one so worthless. *I am King here*, madame! I have use for money, as well as he. The public pay for his follies, and so they must for mine." And Old Mob thereupon gathered in two hundred pounds in gold, "a very rich necklace which her Royal paramour had lately given her," a gold watch, and two diamond rings.

You will observe an intolerable tendency in Old Mob to moral reflections: as though he were one who had missed his vocation, and would have been more legitimately employed in improving the occasion from the pulpit. And not only Old Mob held forth in this manner. His contemporaries—if we may believe Messrs. Smith and Johnson—did the like: in very unclerical fashion, it is true, for they sandwiched their preaching with the most horrible oaths and blasphemies: all duly printed at length by those authorities, without the decent veil of the blushing "——," or the discreet "*." It was a singularly mixed method; but the preachments are all of so singular a likeness that we may shrewdly suspect them to be the inventions of their biographers. The cursings and revilings we may take as being the

highwayman's very own. They were instinctively employed to strike terror into the hearts of unfortunate wayfarers, just as in olden Chinese warfare the pig-tailed warriors came on with grimaces and with shields pictured with hideous masks.

"Old Mob" then met "Old Gadbury, the Astrologer," and stopping him and demanding his money, "the Starry Prophet began to plead Poverty, but this did not move him at all to Compassion."

"You lying Rogue," quoth he, "can you that possess all the Seven Planets of Free-hold, and let them out on Lease to the Stationers' Company, plead Poverty to me. No, no, you must not sham Poverty to me; come, come, your Money presently, or this Pistol, shall be worse to you than the raging Dog Star that threatens Death and Diseases to a Country."

And "Old Gadbury" had thereupon to make a speedy delivery.

The next most outstanding enterprise of Old Mob was the halting of Judge Jeffreys in his coach, some time later than that Judge's assize of blood in the West. The highwayman, setting suddenly upon the equipage, disabled the two servants who accompanied it, and then demanded his lordship's money.

"I am Sir George Jeffreys," quietly remarked the judge, with a world of meaning, as he severely eyed the pistol presented at him. That plain statement was designed to send a pang of apprehension through the aggressor; and, indeed, the lowering presence of the judge had made many a prisoner brought before him quail; but Old Mob, by the best accounts, does not appear to have been greatly impressed. He was ready as ever with his moral remarks.

Jeffreys reminding him that a Providence existed which governed the world, and that he might therefore expect to be duly punished for his iniquities, he held forth in his best pulpit style: "When justice has overtaken us both, I hope to stand as good a chance as your lordship, you, who have written your name in indelible characters of blood and deprived many thousands of their lives, for no other reason than their appearing in defence of their just rights and liberties. It is enough for you to preach morality upon the Bench, when no person can venture to contradict you; but your words

can have no effect upon me. I know you too well not to perceive that they are only lavished upon me to save your ill-gotten wealth." Then, his eloquence in this vein being exhausted, thundering forth a volley of oaths, and presenting a pistol to his breast, he threatened the judge with instant death, unless he surrendered his money. Perceiving that his authority was of no consequence to him upon the road, Judge Jeffreys thereupon handed over the gold he had about him, amounting to fifty-six guineas.

To recount the many improbable stories told of Old Mob, singly, or in conjunction with his sometime ally, the "Golden Farmer," would be to tell many stupid tales, and to convict oneself of credulity. He was caught at last, and, being convicted on thirty-four out of thirty-six indictments, was duly hanged, with nine others, September 12th, 1691. He declared, on the scaffold, that "while he continued to Rob on the Highway, he pray'd at the same Time that God would forgive it, and that it eas'd his mind something." It was added that "though he had wounded several Persons, yet he affirm'd he never murder'd any; which, to be sure, was very forbearing and obliging of him."

CLAUDE DU VALL

CLAUDE DU VALL ranks among his brother highwaymen as high as Rembrandt or Raphael among artists. He was, indeed, no less an artist in his own profession than they. He might not, and probably did not, acquire as much of other people's property on the road as did Hind or Whitney; but artists are not necessarily money-makers. Such as were his takings, he took them with a finished grace and a considerate courtesy, that not even the Prince of Prigs, in his best moment, ever quite attained. We do not learn, for example, that Hind, the "Gentleman Thief," footed it on the heath in a graceful dance with one of his victims, as did Du Vall; but Hind had not the advantage of that foreign blood which made Claude skip for gladness in the midst of alarms.

In the *Memoires of Monsieur Du Vall*, published in 1670, only a few days after the hero's death from the effect of a hempen cravat, we have the sole authority for the merry tales told of him. It is a curious production. From it we learn that:

"Claude Du Vall was born Anno 1643 at Domfront, in Normandy, a place very famous for the excellency and beautifulness of the air, and for the production of mercurial wits. At the time of his birth there was a conjunction of Venus and Mercury, certain presages of very good fortune, but of a very short continuance. His father was Pierre Du Vall, a miller, his mother, Marguerite De la Roche, a tailor's daughter."

The author of these remarkable memoirs then proceeds to say, in surely a very cynical manner: "They lived in as much reputation and honesty as their conditions and occupations would permit." This, of course, is a sly fling at both the business of a miller and that of a tailor; for honest millers have from the earliest times been proverbially as scarce as honest lawyers; while for tailors to "cabbage" the cloth entrusted to them has always been expected.

Du Vall's biographer then ranges from sarcasm to an indignant defence of his birth and parentage.

"There are some," he says, "that confidently aver he was born in Smock Alley, without Bishopsgate, that his father was a cook, and sold boiled beef and porridge; but their report is as false as it is defamatory and malicious."

"It was easy," he continues, "to disprove this in several ways, but the chief argument against it was this: If he had been born in Smock Alley, he would not have been a Frenchman, but if he had not been a Frenchman, it was quite impossible he should have been so much beloved in life and lamented in death by the English ladies."

Early in life, a wandering priest who happened upon his parents' humble dwelling, found a mark upon his head as of two crowns: a sure sign, said the priest, that he was to be a traveller. Then, adopting something of the *rôle* of a fortune-teller, he declared the boy would never be long without money; and, wherever he went, "he would always have the exceeding favour of women of the highest condition."

The rustic miller and his wife looked upon the priest as an oracle, but wondered how such fortune would come to pass. Nothing visible on the horizon of their lives warranted any such expectations. They were miserably poor, and kept themselves but little warmed by that comparative honesty of which we have already read. So when Claude grew to the age of thirteen or fourteen, he was turned adrift from the old home, to fend for himself. His parents did what they could, but that did not amount to much. A little less unexpected honesty on their part would have enabled him, no doubt, to enter upon the world under better circumstances: but as it was, the best they could do was to buy him shoes and stockings—things he had never before known—and a second-hand suit of clothes. This outfit, and twenty sous given him at parting, was all his property. As he went they threw an old shoe after him for luck, and bid him go seek his fortune.

The boy made his way to Rouen in the first instance. There he was promised a ride to Paris on one of the post-horses he saw in the courtyard of an inn, if he would earn that lift by helping stable them for the night. He willingly agreed, and was fortunate to meet at the same inn a number of English youths, who, with their tutors, were returning by way of Paris to

England. In return for such use as he could be to them in practising their insufficient French, they employed and fed him for the few days they remained in the country.

In Paris, according to our admiring but discriminating biographer, "he lived unblameably during this time, unless you esteem it a fault to be scabby, and a little given to filching; qualities very frequent in persons of his nation and condition." So, employed about stables and inn-yards in Paris, he continued until the Restoration of the monarchy in England in 1660 brought about the return of many exiles. In the service of one of the many "persons of Quality" who then crossed the Channel, went Claude Du Vall, who by this time was seventeen years of age.

The joy that expressed itself all over England at the return of Charles the Second degenerated into riotous excess. Dissipation and every species of profligacy abounded among upper and middle classes, and the servants of the wealthy were apt pupils of their masters in these excesses. Highwaymen, whose profession had languished miserably under the Commonwealth's later rule, reappeared on every road, and were drawn from all classes. Footmen and lackeys found a singular fascination in the occupation of the high-toby crack, and early among them was Du Vall, who in a short time became so dexterous in his new employment, that he had the honour of being the first named in a long list of highwaymen proclaimed in the *London Gazette*.

It has already been acknowledged that violence had no part in the methods of this artist, and he would have scorned, you may be sure, the ruffianly, and even murderous acts of a later generation of the craft, who not only despoiled travellers of their goods, but rendered the roads dangerous to life and limb. His chief exploit, upon Hampstead Heath, is classical, and is set forth so eloquently, and with such an engaging profusion of capital letters, in the *Memoires* that one cannot do better than quote it. By this account it would appear that he was the captain of a gang:

"He, with his Squadron, overtakes a Coach, which they had set over Night, having Intelligence of a Booty of four hundred Pounds in it. In the Coach was a Knight, his Lady, and only one Serving-maid, who, perceiving five Horsemen making up to them, presently imagined that they were beset;

and they were confirmed in this Apprehension by seeing them whisper to one another, and ride backwards and forwards. The Lady, to shew that she was not afraid, takes a Flageolet out of her pocket and plays. Du Vall takes the Hint, plays also, and excellently well, upon a Flageolet of his own, and in this Posture he rides up to the Coachside. 'Sir,' says he to the Person in the Coach, 'your Lady plays excellently, and I doubt not but that she dances as well. Will you please to walk out of the Coach and let me have the Honour to dance one Currant with her upon the Heath?' 'Sir,' said the Person in the Coach, 'I dare not deny anything to one of your Quality and good Mind. You seem a Gentleman, and your Request is very reasonable.' Which said the Lacquey opens the Boot, out comes the knight, Du Vall leaps lightly off his horse and hands the Lady out of the Coach. They danced, and here it was that Du Vall performed Marvels; the best Masters in London, except those that are French, not being able to shew such footing as he did in his great French Riding Boots. The Dancing being over (there being no violins, Du Vall sung the Currant himself) he waits on the Lady to her Coach. As the knight was going in, says Du Vall to him, 'Sir, you have forgot to pay the Musick.' 'No, I have not,' replied the knight, and, putting his Hand under the Seat of the Coach, pulls out a hundred Pounds in a Bag, and delivers it to him, which Du Vall took with a very good grace, and courteously answered, 'Sir, you are liberal, and shall have no cause to repent your being so; this Liberality of yours shall excuse you the other Three Hundred Pounds,' and giving the Word, that if he met with any more of the Crew, he might pass undisturbed, he civilly takes his leave of him. He manifested his agility of body by lightly dismounting off his horse, and with Ease and Freedom getting up again when he took his Leave; his excellent Deportment by his incomparable Dancing and his graceful manner of taking the hundred pounds."



CLAUDE DU VALL DANCING THE CORANTO ON HOUNSLOW HEATH.

Our own times are more sordid, and it is to be feared that not the extremest display of grace in the robber would find any one ready to excuse the loss of a hundred sovereigns.

As the old priest had foretold, years before, Du Vall became the ladies' favourite. "Maids, widows, and wives," we learn, "the rich, the poor, the noble, the vulgar, all submitted to him," and he led the gayest of lives in London.

He knew Blackheath as well as Hounslow, and there, with his companions, met a coach full of ladies and a child with a feeding-bottle. Rudely, one of the gang rode up, violently robbed the ladies of their watches and rings, and did not scruple even to steal the child's silver bottle. The air resounded with the shrieks of the cheated infant and the cries of the ladies. Up rode our gallant hero, with threats to instantly shoot the man unless he returned the bottle. "Sirrah!" he exclaimed, "cannot you behave like a gentleman and raise a contribution without stripping people. But perhaps you yourself have some occasion for the sucking bottle, for by your actions one would imagine you were hardly weaned."

Soon after this Du Vall thought it politic to retire for a while to France. A humorous story was told of his fooling an eminent Jesuit confessor, known less for his piety than for his political meddling and his avariciousness. He was a very wealthy man, and Du Vall, hearing of his hoards, was anxious to have a share in them. He made the confessor's acquaintance in the guise of a scholar, and said he was one who had studied the sciences and only wanted a patron as eminent as himself, through whose introductions he desired to serve his country by applying the knowledge he had acquired.

"And of what special branch does your knowledge consist?" asked the Jesuit. "If you can and will communicate anything that may be beneficial to France, I assure you no proper encouragement shall be wanting on my side."

Du Vall, growing bolder, said: "Sir, I have spent most of my time in the study of alchemy, or the transmutation of base metals into gold, and have profited so greatly at Rome and Venice, from association with men learned in that science, that I can change several metals into gold by the help of a philosophical powder, which I can prepare very speedily."

The prospect of immense riches that might be his, if only he cultivated the acquaintance of this man of science, dazzled the confessor. "Friend," he said, "such a thing as this will indeed be a service to the State, and particularly grateful to His Majesty the King, who, as his affairs stand at present, is in great need of such a curious invention. But," he added, with some remains of cunning criticism, "before I credit what you say, so far as to communicate it to His Majesty, I must see some proof of your skill."

Du Vall agreed; but said, as only a poor student of these things, he had not the appliances necessary. These the confessor agreed to provide, and fitted up a laboratory for him in his own house. Everything being complete, Du Vall gave a demonstration of his alchemic science. He took several metals of the baser sort, and put them into a crucible, the confessor watching him the while. Du Vall had prepared a hollow stick, into which he had introduced several inlays of real gold; and with this stick he stirred the white-hot crucible, until the base metals were in a flux, and the stick itself was almost entirely consumed. On the crucible being cooled, and its contents examined, it was duly found that a considerable amount of gold was mixed with what had been base metals.

The Jesuit was delighted with the success of the experiment, and a series of equally satisfactory tests was entered upon. Du Vall at last fully acquired his confidence, and a complete knowledge of where his treasure was deposited, and, finding him one evening in a heavy sleep (to which he had perhaps contributed by drugging his wine), gently stole his reverence's keys, earned off as much of his hoarded wealth as he conveniently could, and hastened to England.

It was, for several reasons, high time he returned to our shores. There was, his biographer tells us, no room in France for a highwayman. "In truth, the air of France is not good for persons of his constitution, it being the custom there to travel in great companies, well armed, and with little money. The danger of being resisted, and the danger of being taken, are much greater there; and the quarry much lesser than in England. And if, by chance, a dapper fellow, with fine black eyes, and a white peruke be taken there, and found guilty of robbing, all the women in the town don't presently take the alarm, and run to the King to beg his life."

So we see that the narrator of Du Vall's life, certainly did not approve of the hero-worship accorded him.

But Du Vall's career was now fast drawing to a close. His exploits as a highway chevalier had grown too notorious for him to be allowed to range any longer at will on the roads around London. At times, perhaps fully informed of his exceeding danger, he would employ himself in another art, in which he was an expert—the art of cheating at cards, in which an

exceptional sleight-of-hand served him in good stead. Apart from these qualities, a handsome personal appearance, and a skill in dancing and playing the flageolet, he seems to have been as ignorant as any other ex-stable-boy, or page-boy of his era; for in a curious notice of him in the *London Gazette* of January 1670, he is described as a man "of singular parts and learning, though he could neither read nor write." The different clauses of this eulogy seem at first sight quite irreconcilable; but the "learning," no doubt, refers rather to social graces, than to ordinary education.

He was captured when the worse for drink, at a tavern called the "Hole in the Wall," in Chandos Street, Covent Garden. He had three pistols in his pocket at the time, one of them "which would shoot twice," and had a sword at his side. "If he'd been sober, it was impossible he could have killed less than ten," says the author of the *Memoires*; adding, "He would have been cut as small as herbs for the pot, before he would have yielded to the bailey of Westminster," only the drink he had taken did not permit him the use of his legs.

He was executed at Tyburn, on January 21st, 1670, in spite of the many efforts made to secure a reprieve. After the hanging, he was given a lying-in-state at the "Tangier" tavern, St. Giles's, the room being draped in black, relieved with escutcheons. Eight candles burnt around him, and eight tall gentlemen in long cloaks kept watch. Many ladies of fashion and beauty went, masked, with tear-stained faces, to see him; a thing which seems incredible to ourselves, and was in fact considered extraordinary at the time. The author of the *Memoires* himself realised this, for we find him declaring the truth of it; although he says he expected to be accounted by his readers "A Notorious Lye."

The Judge who had tried Du Vall regarded the exhibition as scandalous, and caused the room to be cleared; but the highwayman was given a splendid funeral in St. Paul's church, Covent Garden. He was but twenty-seven years of age at his death. A handsome stone, decorated with heraldic achievements (not his own, for he boasted none), was placed over his grave, and on it this epitaph:

Here lies Du Vall: Reader, if Male thou art,
Look to thy purse; if Female, to thy heart.
Much havoc has he made of both; for all
Men he made stand, and woman he made fall.
The second Conqueror of the Norman race,
Knights to his arms did yield, and Ladies to his face.
Old Tyburn's Glory; England's illustrious thief,
Du Vall, the Ladies' Joy; Du Vall, the Ladies' grief.

This was destroyed when the original church was burnt in 1759.



FRANCIS JACKSON, AND HIS "RECANTATION"

WE know little of this highwayman, however notorious he may have been at the time of his execution, April 14th, 1674. The exceedingly rare tract entitled *Jackson's Recantation*, gives no trace of his Christian name; nor does it, although professing to be a "Life," tell us when or where he was born, or the position his parents occupied. The tract is by way of an autobiography, but it is couched in such general terms that very few facts are to be extracted from it. It is in this, and in some other particulars, not unlike John Clavel's "Recantation" of forty-seven years earlier; only Jackson writes in ambiguous prose, while the other exercises himself in verse.

The title-page of Jackson's repudiation of his wicked ways may with advantage be given here, as a specimen of the type of chapbook then in vogue.

But although Jackson's own autobiography affords no satisfaction to the enquirer, hungry for facts, and although the Old Bailey Sessions Papers of the period are not preserved, a clue is found to

Jackson's Recantation

OR, THE

LIFE & DEATH

OF THE

NOTORIOUS HIGHWAYMAN

NOW

HANGING in CHAINS

AT

HAMPSTEAD

DELIVERED

To a Friend, a little before Execution; Wherein
is truly discovered the whole Mystery of
that Wicked and Fatal Profession
Of PADDING on the ROAD



LONDON,

Printed for I. B. in the Year 1674

the last adventure of himself and his associates in another tract entitled as under:

The
CONFESSION
Of the Four
HIGH-WAY-MEN

As it was Written by One of them, and
Allowed by the Rest the 14th of this
Instant *April* (being the Day before
their Appointed Execution).

Viz:— { John Williams, alias Tho Matchet
Francis Jackson, alias Dixie
John White, alias Fowler
Walter Parkhurst.

This being desired to be made Publick by the Persons themselves, to prevent false reports of them
when they are Dead.

With Allowance

London. Printed for D. M. 1674.

By this it appears that Jackson's Christian name was Francis, and that the robbery, in which he and his associates (so anxious that their reputations should not be fouled by false reports) were finally surprised and taken, was committed on the Exeter Road, between Hounslow and Staines, early in the morning of March 18th. The gang had already, on March 16th, impudently robbed the Windsor coach in broad daylight, between Cranford and Hounslow, and actually in sight of about a

dozen gentlemen, well armed and mounted, who pursued them for five or six miles before they were lost sight of.

The country was thoroughly aroused, and the hue-and-cry out for them; and it therefore argues great rashness, or impudence, that they should, two days later, and in the same neighbourhood, rob other coaches.

The gang engaged that day comprised James Slader, Walter Parkhurst, John Williams, John White, and Francis Jackson. After robbing two coaches in Bedford Lane, supposing themselves observed by a gentleman's servant out hunting in a green livery, they struck off across country for Acton; the liveried servant hurrying after them. They then made in the direction of Harrow-on-the-Hill, suspecting themselves pursued all the way, but seeing no one until they reached that little town, where they found forty or fifty men, ready to receive them with guns, pitchforks, and all sorts of weapons.

The inference at this point is that the gang had made much slower progress across country than the hue-and-cry had done.

Turning from this embattled front, they made their way down the hill and at the bottom found "a great number" of horse and foot ready to receive them. Although these horse and foot were so numerous, the highwaymen, in their "Confession," claim to have compelled them to fly into the houses for shelter; and so rode on to Paddington, and thence to Kilburn and Hendon, and from Hendon to Hampstead Heath, hotly engaged all the way. It was between ten and eleven o'clock in the morning when they had reached Harrow, and six o'clock by the time they were come upon Hampstead Heath, and the daylight was then fading out of the March evening. Their powder and shot had nearly all been expended about two o'clock, and some of their swords lost or broken, and most of them sorely wounded or bruised. Prominent among the combatants in this extraordinary running fight was a Lifeguardsman, "who fought with a great deal of courage most part of that day."

On Hampstead Heath there were two hundred men arrayed against these five exhausted highwaymen, who stood at bay in the grim hollow road at North End as night fell, and fought the contest out to the inevitable end. They fought an hour there, some with swords, and others with pistols. Slader, with a last shot, killed one Edward Kemp, and was then himself mortally wounded; and Jackson ran one Henry Miller through the left side with his rapier, so that he died immediately.



THE FIGHT IN THE HOLLOW ROAD.

At last, overpowered, four of the defeated highwaymen were conveyed to Newgate. Slader soon afterwards died of his many wounds, and the others were found guilty on various counts at their trial at the Old Bailey on April 10th and 11th, and hanged with remarkable despatch on the 15th; Jackson being gibbeted on the scene of that last stand, opposite the spot now occupied by the house called "Wildwoods."

His body long swung and gyrated in the wind, suspended there from a beam stretched between two elms: the "Gibbet Elms," as they were long known. One was blown down in 1850, and the other survived until so recently as March 1907, when it, too, was uprooted in a storm. The trunk, at this time of writing, still lies on the ground.

This, then, is the short story of Jackson's life. Let us now see of what his "Recantation" consists. It affords curious reading, but cannot be more than paraphrased here. It is, however, in spite of its breadth and freedom of language, extremely moral in its teaching.

How vain, he moralises, are the thoughts of those who, while they enjoy youth and strength, never consider they are mere statues of dust, kneaded with tears and moved by the hidden engines of restless passions; clods of earth, which the shortest fever can burn to ashes, or a complication of miseries dissolve into nothingness!

He had once thought himself one of Heaven's favourites, and had persuaded himself that the machinations of his brain were able to unhinge the poles. (Any reader conversant with twentieth-century slang phrases will at this point consider the youthful seventeenth-century Jackson himself at that time "up the pole.")

But Heaven, continued Jackson, thought fit to deliver him into the terrestrial hell of the condemned cell at Newgate, where, in imagination surrounded by the howls and hollow groans of damned souls, conscience started out of her dead sleep, and he was thrown into the greatest agony imaginable. At this time a charitable physician for his sin-sick soul came to visit him, and to that pious man he laid open the whole course of his life, much to his amazement and wonder. This wonder was soon changed to pity and commiseration that one so young should be thus weeded out of the world just as he had entered into the blooming springtime of his age. He then acquainted him with the benefit of true repentance, so that the obduracy of his heart was able to hold out no longer, and, melting into tears, he was willing to have its flintiness broken by the hammer of sacred Scripture.

Then, to give the holy man some real testimony of his unfeigned repentance, he produced an abstract of his life, which, he tells us, he had prepared before his apprehension, intending to have published it and then to have abandoned his evil courses. But a reformed highwayman was so very rare a thing, if even not altogether so unheard-of a curiosity, that we may take leave to doubt that detail. He probably wrote his life in prison, and there occasionally peep out such tell-tale passages of real enjoyment in the telling of his misdeeds, that the flowery moral passages wear a strong suspicion of insincerity.

The "holy man" of the foregoing remarks was apparently none other than the Ordinary of Newgate, the Reverend Samuel Smith, for the "Recantation" is followed by a postscript, signed "S. S.," which says: "Reader, let me assure thee this is no fiction, but a true relation of Mr. Jackson's life and conversation. Penned by his own hand, and delivered unto mine to be made public for his countrymen's good, in compensation of the many injuries he hath done them. The introduction he made in Newgate, after sentence of condemnation, and desired me to apologise for it, fearing he had neither wrote large enough for his true penitence, nor had laid down sufficient exhortations from the commission of the like offences; the disorder he was in, lying under the horror of a speedy and more than common execution, may plead his excuse: the plainness of his style may admit of this plea, that he aimed at (as he confessed to me) nothing but the good of his countrymen, and that as he had picked their pockets, he thought it needless to tickle their ears with the gilded straws of rhetorical expressions. God, I hope, hath forgiven him his sins, and may we all amend by his errors, for which he now hangs in chains at Hamstead, a sad and dreadful spectacle to all beholders, and hoping you will pass by the faults of his writing and the press, I subscribe myself a well-willer to all."

"S. S."

Jackson's own method of telling his story is of the parabolic moral kind, in which the facts lie hidden amid a mass of verbiage. He said little of his parents, except that they were too indulgent to him, supplying his youthful extravagances with so much money that he was often puzzled to find ways to spend it. As a result, these prodigal parents impoverished themselves, and then died, and their hopeful son had already so distinguished himself by his wild and extravagant courses, that none of his relatives would help, and refused even to see him. He at once sank from plenty into poverty and rags, his backside hung in tatters, and his coat had as many holes as a colander.

Although so miserable an object, no one would help him. He thought himself unfit for one of the plantations, and such a scarecrow that not even a kidnapper would take any notice of him.

At last, walking the streets of London in this miserable condition, he found a purse lying in the street. Trembling with excitement at his good fortune, he hastily slipped it into his pocket, forgetting that all his pockets were so full of holes, that they would contain nothing. It fell to the ground again, but he snatched it up, and hurried with beating heart into the fields, and there found the purse contained ten pounds in silver, and fifty guineas. He cautiously buried all this money but fifty shillings in the hedgeside, and then went and bought an ordinary ready-made suit of clothes, being afraid to at once purchase better, in case awkward questions might be asked, as to how so shabby a wretch became possessed of such means.

Thus decently attired, he thought he might venture to remove from the squalid lodging he occupied, and, taking rooms at a cautious distance, he gave out that he was the son of a country gentleman, come to London on law business. For a time he lived quietly, but growing discontented with the dulness of his quiet life, went and bespoke a fine suit of clothes and all necessary appurtenances befitting a person of quality, such as a silver-hilted sword, etc., saying he had received a considerable sum of money on account of the affairs that had brought him to town.

Being thus gallantly equipped, he soon made acquaintances, who were intimately versed in the ways of town, but more especially in cards and dice, at which they laboured with greater pains than a seven-years' student with the classics. With one of these he established a close friendship; and this new-found friend, undertaking to be his tutor in gambling and sharpening, he was soon on the direct way to becoming a rogue, fully equipped in all the arts and subterfuges of those who live on their wits. At playhouses, ordinaries, cockpits, and bowling-greens, he was soon on the track of dupes whose pockets were to be dipped into, and he tells us how his tackling was so good and his hooks so well barbed that, after he had struck a gudgeon, he was sure to hold him, though he suffered him to play a little in the stream.

When at any time they fell into the company of any young country gentleman, sent up by his father to learn something of the polished ways of London, they fastened themselves upon him, introduced him into the fast life of town, and in the end plundered him and used his credit to obtain goods from confiding tradespeople. These two associates shared their fortunes in this manner for a year, varying their evil practices by now and then robbing a coach. They were unlucky enough to be several times flung into gaol and Jackson came near to losing his life for robbing a coach near Barnet; but he was fortunate in being able to get in touch with the person whom he had robbed, and to appease him by restoring the greater part of what he had taken, on condition that he should bring no evidence against him. He was accordingly acquitted. So easy was it, he says, to buy acquittals that it had become a proverbial saying that no man, unless he had committed treason or murder, need be hanged while he had five hundred pounds at command.

Soon after he was so triumphantly enlarged from prison his companion died, leaving behind him little but his wench, whom he bequeathed, enjoining him to have a special care of her whom he had so highly prized. It was a pity, continues Jackson, she was a whore, for he might impartially declare her beauty to be scarcely paralleled.

To supply her extravagances was a difficult matter, and he grew so busy at rooking people in the coffee-houses that his face became too well known, and folk fought shy of him. He accordingly bethought him of a way of noting those who had won heavily, and then following them in the dark and robbing them. Although this was for some time a highly remunerative plan, it also was worn

threadbare, all too soon, and he was now such a marked man that he was obliged, like a bat, never to stir abroad until dusk; except with the greatest caution imaginable. His woman, seeing what straits he was put to, deserted him.

He then met with three or four old acquaintances, knights of the road, with whom he adjourned to a tavern. They asked him how he had spent his time since his first gaol-delivery, and when he told them, declared no bold, generous soul would stoop to such petty pilfering. They condemned him further, not for keeping his woman, but for not keeping her more under. "It is laudable," said one, "to have a Miss, even though he had a very handsome wife of his own, and it is agreeable to the custom and honour of the times, and if we were to throw any opprobrium upon it, it would reflect upon ourselves."

"Come," said another, "we trifle away time. Let us fall to business. It is a good while since we shared a booty: let us no longer lie idle, and if our brother will accompany us, instead of picking up here and there crowns and angels—a thing beneath us—let us resolve to 'Have at all.' A five hours' adventure may make us possessors of five hundred pounds."

He told them he was not provided with a horse and other things necessary, but they promised to supply him, and soon did so, and he was then as well-equipped as any.

Four of them then set out for Maidenhead, reconnoitring for plunder. At Maidenhead they dined, and then, in the summer afternoon, went on towards Reading, halting an hour or so at Maidenhead Thicket, expecting some prize; but to no purpose. They then planned to distribute themselves and to ride into Reading singly: two to lie at one inn, and two at another.

Jackson's other two comrades lay at an inn where they were well known, and their occupation winked at by host and servants; who gave them to understand that there was a gentleman in the house, who, with his man, would next morning set out for Marlborough. It was thought, they added, by the weight of his small portmanteau, that it must be filled with money.

Jackson and one other found an attorney at the inn of their choice, who said he was on his way to London, for the opening of term. He asked the landlord if he could serve him in any way in London.

"I am sorry I have not the happiness to have your company to-morrow," said Jackson; "I have to go a contrary way, to Bristol."

"You seem a civil gentleman," returned the attorney, "and I am sorry too. Have a care as you go by Marlborough Downs: a parcel of whipper-snappers have been very busy there of late."

Jackson affected to be very much concerned at this news, and the attorney, noticing his apparent alarm, told him if he carried any considerable sum he must conceal it, or he would certainly lose all.

Jackson then pretended to thank him coldly, as if suspecting him of being some subtle insinuating spy; whereupon, the lawyer, to prove his own good faith, put his hand in his pocket and drew out a bag containing a hundred and fifty guineas. "These," said he, "I will so conceal in the saddle I ride upon that I will defy all the damned highwaymen in England to find them out. I have passed them several times in this manner, with good sums about me, and, for your further belief, I will show you in what way."

He then exhibited his hiding-place in the saddle, for which Jackson thanked him more genuinely than he suspected.

At that moment there came a note from his confederates at the other inn, to meet them at a certain place, and so, pretending he had business in the town, he left, and, meeting them, arranged that he and his fellow should change places with the other couple: that he should go forward and rob the traveller bound for Marlborough, while the others should turn about and relieve the attorney journeying to London.

The cunning scheme was neatly performed; but Jackson and his associate did not come off quite so well, the Marlborough traveller and his man making a stout resistance. Jackson was shot in the arm, and had the gentleman's horse not then been shot dead, they had very likely been taken prisoners. As it was, they captured a hundred and twenty guineas.

The next adventure entailed a great deal of work, and they were shamefully robbed of all their spoils, at the end of it, to the tune of over £180.

Hearing that a ship was to be paid off at Chatham on such a day, and well aware that the sailors would then be coming, post-haste, to London, to spend their money, they went to Shooter's Hill and hovered about there until evening, with very poor results. Next day they picked up a great many stragglers, and robbed them of their all; but always avoiding groups of travellers. A parson with very shabby clothes, and riding a sorry horse, then came on the hill. He looked so poor that they judged him to be worth hardly an attorney's retaining-fee; but, with time hanging heavy on their hands, they thought to have some sport with him, and stopped him and began to search his pockets for fun. But when he roared out, like a town bull, that he was undone, they suspected he carried more than they had thought, and searched more thoroughly; with the result that his pockets yielded fifteen pounds.

They were good enough to return him twenty shillings, on his swearing he would not set the hue-and-cry upon them, or inform any person he might meet upon the road, and then let him proceed; but it so chanced that he fell in with a sailor and advised him, if he had any money about him, to turn back, for there was a parcel of rogues up yonder on the hill who had but now robbed him and would do the like to any one else.

The sailor, however, would not believe the parson, or thought himself a match for any highwaymen he was likely to meet, and so continued on his way. Presently he was bidden "Stand!"

"What do you want?" he asked.

"What do we want?" we in imagination hear those highwaymen repeating, in tones of contempt: "what do you think we want, you——, * * *, you: to ask after your health, or to know the time o' day? No, we want your money."

"Alas! gentlemen," said the sailor, "it is true I have some, which I received for my pay in His Majesty's service. It is a pity to take that from me which I am carrying home for the maintenance of my wife and children."

But if he had engaged an angel to plead for him it would have been useless, for they would have had his money, anyway; and so, seeing there was no remedy, he delivered all he had, which was sixty-five pounds.

"Now, gentlemen," said he, "let me beg one favour of you, and that is, as I dare not go home to my wife with empty pockets, and at present know not what course to steer, pray admit me into your company. You see I am strong-limbed, and I have courage enough to qualify me for your occupation."

They asked if he were in earnest, and he swore a hundred sailor oaths that he was, and ready to be put to the proof that instant: declaring himself to be greatly in love with a trade that could in six minutes get as much money as he could in three years.

Jackson was at that time treasurer, and was given charge of the day's takings; and then, finding they had done sufficient for the day, they agreed to separate, and to meet at a given rendezvous the next day. Jackson was also detailed to take charge of the new recruit, who was wretchedly mounted. As they rode along, he bound the sailor, over and over again, by many oaths, to stand to his new resolution. At length, in a solitary lane, while Jackson was innocently discoursing upon the new life that lay before him, the sailor pulled his miserable horse suddenly against the other, and, as suddenly drawing a pistol and seizing his companion's bridle, clapped the ugly brass-barrelled weapon against his breast, and swore as bloodily as if he had been one of the trade for more than twenty years that he would send a bullet into his heart if he did not instantly dismount.

Jackson saw by his companion's frightful countenance that there was no dallying possible, so he dismounted and was obliged to give up his horse in exchange for the sorry nag that was hardly able to carry him, and, in addition, to hand over all the day's takings of the fraternity.

"Should I enumerate all the rogueries and robberies I committed," continues our autobiographer, "either singly, or with others, relating in what manner they were done, I should waste too much time, and miss that design which I purposed to myself, which is the general good of my countrymen; wherefore I shall pass them all by, not so much as mentioning the last robbery I was guilty of, near Colnbrook, when pursued by the country, opposed and apprehended by them, to the loss of our own, and the blood of some of them, the manner whereof is too generally known to be again repeated."

That is exceedingly disappointing: for what was then "generally known" is now almost forgotten, and only to be recovered with much trouble.

He then, omitting all reference to the killing for which he was hanged and gibbeted, proceeds to enlarge upon the ways, manners, and customs of the highwaymen, "those devouring caterpillars of a corrupt and polluted nation," as he styles them.

"I shall insist upon what is more profitable," he declares, "and discover, first, what a highwayman is; how bound by oath; what order is prescribed; in what manner they assault; and how they behave themselves, in and after the action. In the next place my best endeavour shall be to dissuade these desperadoes to desist robbing on the highway, by showing them the certainty of their apprehension one time or other; and though they may a long time prosper in that vile course of life, spending high and faring deliciously, yet every bit is attended with fear; neither is their sleep less unquiet, starting ever and anon by some horrid dream; so that I cannot say when they go to bed they go to take their rest, but only to slumber out the tedious minutes of the gloomy night in horror and affrightment. I shall insist on other dissuasions, by showing them the misery of a prison; by putting them in mind of their wretched and cursed ends, which they vainly jest at, by presuming on some examples of grace; and the reward of their wickedness in the world to come. Lastly, instructions, not only for the honest traveller that he may pass in safety, but for the

innkeeper to distinguish highwaymen from guests that are honest; all these I shall with sincerity run over particularly."

"Highwaymen for the most part are such that were never acquainted with an honest trade, whom either want of money or employment prompted them to undertake these dangerous designs; and to make their persons appear more formidable, and to gain respect, they dub one another 'colonel,' 'major,' or at least a captain, who never arrived to a greater height than a trooper disbanded, or at the utmost a lifeguards-man cashiered for misdemeanour.

"Having made up a party, ere they proceed to act their villainies, they make a solemn vow to each other, that, if by misfortune any one should be apprehended, he shall not discover his complices: and that if he be pressed hard to particularise his companions, he must then devise names for men that never were, describing their persons, features, and discovering their habitations, but so remote one from another, that the danger of the trial may be over ere sufficient inquiry can be made.

"And further, to procure mercy from the bench, there must be a plausible account given, how you fell into this course of life: fetching a deep sigh, saying that you were well born, but by reason of your family falling to decay you were exposed to great want, and rather than shamefully beg (for you knew not how to labour), you were constrained to take this course as a subsistence; that it is your first fault, which you are heartily sorry for, and will never attempt the like again.

"Having taken a solemn oath to be true one to another, their next business is to acquaint themselves, by means of the tapsters, ostlers, chamberlains, or others, what booties are stirring, how contained, and whither bound. But before they attempt the seizure, if there be any novices in the company, then they are instructed by the more experienced, as I was at first, after this manner.

"In the first place, you must have a variety of periwigs in your lodgings, and the like you must carry with you, if occasion require the necessity of changing the colour of the hair: neither must you be without your false beards of several colours. For want of them, you may cross your locks athwart your mouth, which is a good disguise: patches also contribute much thereto. And lest your voice should be known another time by him that is robbed, put into your mouth a pebble, or any suchlike thing, which will alter your tone advantageously to your purpose.

"Being thus provided, a watchword must be framed, wrapped up in some common question, as 'What's o'clock?' or 'Jack, what shall we have for supper?' As soon as these words are used, you must instantly fall to work, seizing with your left hand the traveller's bridle, and with your right presenting a pistol. This so terrifies that he delivers instantly, for who will trust a pistol at his breast loaded with a brace of bullets, and a mouth discharging at the same time volleys of oaths, that if he deliver not instantly he is a dead man? But here you may please yourself whether you believe him, for a highwayman will be very cautious of murder, for fear of provoking the law to an implacability, unless it be when he is beset, when, rather than run the risk of being seized, he will endeavour to escape by killing one or more of his assailants.

"Having o'ermastered them you set upon, do you carry them into some covert, where you search so severely that nothing can be hidden from you. If in this strict enquiry, gold be found privily quilted in a doublet, or in the waistband of his breeches, I can hardly forbear smiling when I think in what manner the rogues will rate the poor man with 'villain,' or 'cheating rascal,' for endeavouring to preserve his own, whilst he has nothing else to say but that he is 'undone,' which they regard as little as the hangman will them at the place of execution. Having then changed your horse for theirs, if better than your own, the next thing to do is to make them swear neither to

follow you, nor to raise the country with a hue-and-cry upon you. Thus, leaving the poor traveller forlorn, you ride to some strange place, or else where you are known and winked at, and there you share that which you unlawfully have got, not without cheating one another.

"Now here, by the way, give me leave to descant on their prodigality, after a successful attempt. London, the more is the pity, is their best sanctuary, and therefore, after any robbery, they commonly repair thither; having as many names as lodgings. Their next care is to buy a variety of splendid apparel, and, having bought their wenches new gowns, and furnished their pockets with guineas, they then prosecute all manner of debaucheries. Their hosts must also participate in their gains, else all the fat's in the fire; for the vintners, innkeepers, etc., knowing very well what they are, and how easily they get their money, will be sure to enlarge their reckoning and make it swell prodigiously; neither must this be complained of, lest they refuse to keep their own counsel any longer.

"All the time they can spare from robbing and undoing poor men is spent in wine and women; so that the sunshine of their prosperity lasts but a moment, not so long as to warm their hands by the blazing fire of their prodigality, before cold death comes and seizeth them. And how can it be otherwise expected? the pitcher goes not so often to the well but it comes broken home at last.

"But before death takes them from this, to carry them before a higher tribunal, there to answer for all they have enacted here on earth, there is a punishment preceding this: it is a prison wherein are contained so many tortures, woes, and pains that I do think were enough to punish, without death, the greatest of offences.

"Having thus endeavoured to fright highwaymen, by showing them the intolerable torments of a prison, besides the certainty and shamefulness of hanging, and hazard of eternal death hereafter, I shall here take another course to scare them, if possible, and therefore in the first place I shall lay down directions how to know them as they ride on the road, with rules how to shun them, or, if robbed, how to pursue and apprehend them when they think themselves most secure.

"In the first place, when at any time you intend to travel, and cannot avoid carrying a sum of money with you, let no person know what charge you have, or when you will set forward. It is the custom, I confess (but let me assure you, it is dangerous), for men the day before they begin their journey, to take leave of their relations and friends, drinking healths round to the happy return of the traveller, who suspects not the least harm in all this; whereas, it hath been known that a father hath this way been betrayed by his own son; a brother by a brother; nay, one pretendedly dear friend by another, by discovering to highwaymen when and which way he rides; and so for the plot he goes his share.

"Another way they have. The gang shall ride in advance, out of sight, leaving one lusty fellow of their company behind, who shall ride very slowly, expecting some one or other will overtake him. If overtaken by three or four, he will single out the one he thinks hath most money; and, pretending much friendliness, will whisper, he likes not those other men, and ask if he knows them. If not, he adviseth him to slacken his pace, for certainly they are dangerous fellows. The timorous and credulous traveller will thank him for his advice; and not long afterwards, by parting company with honest men, he will be brought alone to the place where the confederates lie in ambuscade. The decoy will then draw his weapon, bidding the traveller do the like, and now begins a dangerous fight, as the traveller imagines. Fearing bloodshed, he delivers his money, and persuades his champion to do the like, who, with much ado, at length condescends thereunto. The

gang, having given him a private indication of the way they intend to ride, then set spurs to their horses, and are out of sight in an instant.

"Hereupon, this pretender to honesty will straight persuade you to assist him in making a hue-and-cry, in the carrying on of which he will seemingly be foremost, but to no other end than to lead you quite another way, till his brethren be out of all danger. I knew one notorious rogue, who by his sly and crafty deportment was looked upon to be a very honest gentleman, who suffered himself to be robbed with three more, by his own confederates. The robbery being committed between sun and sun, he, with those three honest men, sued the county, and recovered the money they had lost.

"Whensoever the traveller designs a journey, let him consider that the Sabbath day is a time not only unlawful, but more dangerous for robbing than any other. I need not expatiate on the illegality of the act, since there is a special command forbidding the breach of that holy day of rest, the violation whereof hath been frequently punished by being robbed; for, to speak the truth, that day hath been, and still is, chosen by highwaymen for the best and fittest time to commit their robberies; first because they are sensible that few travel then, except those who ride on some important concern, and who they suppose carry a considerable sum about them.

"In the next place, on that day the roads are most quiet, being undisturbed with great quantities of people, and therefore they rob with more ease and greater security. Lastly, they know the county will not be so forward to pursue them with a hue-and-cry, and are quite convinced that a judge will hardly be induced to make the county pay the reparation of a loss sustained by him who ought to have stayed at home, to perform those duties required from him, proper to the day; and not wander abroad and leave his Creator's business undone, that he may do his own. If you must needs travel, you have days enough in the week to follow your urgent and important affairs, and with more security, the roads being then full of good company, if you will but make choice of a convenient time, and be cautious whom you entertain into your society.

"The first caution is this: be shy of those who are ever prone of pressing into your company. It is more safe to entertain such as are unwilling to associate themselves with you. Now, that you may distinguish an honest man from a thief, take these informations and directions: first, if you suspect your company, halt a little, and in your halting observe whether they still hold on their course, or slack their pace, or, it may be, alight and walk with their horses in their hands. If you observe any of these, you may conclude them the justly suspected marks of a highwayman."

Travellers were also warned of men dressed like countrymen, with hay-bands round their legs, and rough, russet clothes, who might perhaps even carry a goad instead of a whip, as they rode on horseback. These were often merely highwaymen in disguise, and although they might affect a country brogue and ask silly questions, they were to be suspected. In fact, it appears that every one was to be eyed askance; and it seems likely that, with this advice duly digested, over-cautious or nervous travellers occasionally turned upon quite innocent and inoffensive people and shot them in mere squittering terror.

"It is now high time," continues Jackson, "to inform the innkeeper how he shall distinguish highwaymen from honest travellers. In the first place, observe their curiosity about their horses, in dressing and feeding them: next you will find them asking questions; such as, "Who owns that horse?" and who the other; what their masters are; whither travelling; and when they will set out. These are infallible signs of a highwayman. Nor must I omit this remark: let the ostler lift their

cloak-bags, and he will find them empty; for they carry them only for show, and not to burden their horses.

"Next, let the chamberlain take notice when he shows them to a room, that they will soon dismiss him, and after that, let him listen awhile and he shall hear the jingling of money; and if he can but get a peep-hole for his eyes, he shall see them sharing their booty.

"It will be very requisite to enquire severally each one's particular name, and let your servants do the like. By this means you will find them tripping, for they may easily forget a name they borrowed that very day.

"At supper-time let some one knock furiously and hastily at the gate; then mark them well, and you shall see them start, their countenances change, and nothing but fear and amazement appearing on each face; by which you may positively conclude them to be what you did before but imagine and suspect.

"If in the day-time they come into your inn, you may guess what they are by their trifling away their time, and staying somewhat longer than is necessary for baiting. You shall observe them sometimes looking out of the window, sometimes standing at the gate, for no other purpose but to mark what passengers ride by. If they see any person of quality ride that way, or the costume hints at the likelihood of a booty, you shall have them to horse and mount in all haste, as if some dear friend or near relation was just rid by, whom they must endeavour to overtake.

"At night they will come dropping into an inn severally, in divided companies, thereby to falsify the number given in the hue-and-cry; and will, when met, artfully take no notice of one another; nay, they will even, to allay suspicion, enquire of the host what 'country gentleman' their own companions are; whether he knows them or not, and if it be convenient to join in company with them. They will, like strangers, while they are under observation, compliment one another; but withdraw, and watch them well, and you shall find them fall into their usual familiarity.

"Much more might be written on this subject, but since it is impossible to discover the whole art and mystery of the highway trade, let this suffice; for, according to the proverb, new lords, new laws; so all new gangs have new orders, plots and designs, to rob and purloin from the honest traveller."

CAPTAIN RICHARD DUDLEY

RICHARD DUDLEY, born in 1635, was, says Alexander Smith, "a gentleman of old descent in Northamptonshire." His father, a man of considerable estate in that shire of squires, spires, pride, and poverty, was ruined in the war between King and Parliament, and his son Robert was glad to accept the help that Charles the Second gave him, in presenting him with a commission in a foot regiment that was presently ordered to Tangier. It was a poor return for the loyalty in which his father was brought so low.

Captain Dudley soon earned the reputation of a martinet with his regiment; and perhaps something over and above that, if the story of his horrible treatment of a soldier on parade be true. It seems that one of the men stood a little in advance of his comrades as they were drawn up on the parade-ground, and this annoyed our Captain, who desired a sergeant to knock him down. The sergeant was not so violent about it as Dudley wished, and, in a fury he exclaimed, "When I command you to knock a man down, knock him down thus." Suiting the action to the word, he snatched the sergeant's halberd, and, striking the man on the head with it, cleft his skull in two; "of which," adds Smith, rather unnecessarily, "he immediately died."

We are not surprised, after this, to learn that Dudley's military career was not successful, and that it shortly came to an end. Returning to England, his unbridled extravagance left him no choice but to work or take to the road; and what gentleman of the merry and inglorious reign of Charles the Second would hesitate a moment in such a pass, before choosing the road as the better and more gentlemanly way? Work! Perish the thought!



CAPTAIN DUDLEY ON HOUNSLOW HEATH.

So he resorted to Hounslow Heath, where he robbed the Duke of Monmouth, and was captured in so doing and was conveyed to the prison then called the Poultry Compter, from which mansion of sorrow and tribulation he broke out; and, resuming the road, met the Earl of Rochester coming from his seat at Woodstock, accompanied by his chaplain, two footmen, and a groom. The association of the riotous Earl of Rochester, the wittiest and most dissolute nobleman of the age, with a chaplain is a distinctly humorous touch. Dudley robbed my lord of a hundred guineas.

What the footman and the groom—to say nothing of the chaplain—were doing while he committed the robbery, we do not learn. They appear, for all we know to the contrary, to have looked on. But the chaplain, at any rate, improved the occasion by soundly rating him. "I don't think I commit any sin in robbing a person of quality," said Dudley, "because I keep generally pretty close to the text, 'Feed the hungry, and send the rich empty away.'" To which Captain Alexander Smith, Dudley's biographer, adds, "This was pretty true in the main, for whenever he had got any considerable booty from great people, he would very generously extend his charity to such whom he really knew to be poor."

After this adventure, Dudley had the impudence to rob Captain Richardson, the Governor of Newgate prison, whom he met on the road to Tonbridge. He had already been in the Governor's clutches on three or four occasions, and so felt a glow of satisfaction when he robbed him. But he did not succeed in doing so without considerable trouble, and the Governor told him pretty plainly that he would fare ill if ever he came again within the walls of Newgate, which would not be long hence, he suspected.

Dudley had his ready answer. "I expect," he said, "no favour from the hands of a gaoler, who comes of the race of those angels that fell with Lucifer from Heaven, whither *you'll* never return again. Of all your bunches of keys, not one hath wards to open that door, for a gaoler's soul stands not upon those two pillars that support Heaven: Justice and Mercy. It rather sits upon those two footstools of Hell, Wrong and Cruelty So"—changing his didactic manner for a more business-like attitude—"make no more words about your purse, for have it I will, or else your life."

There was no help for it, and "Richardson was obliged to grant his request, and between Dudley and taking the waters at Tonbridge, went home as well purged and cleansed as a man could desire."

Dudley often robbed, it appears, with Swifticks, but their joint adventures are not recorded. With some other companions, he on one occasion robbed a clergyman travelling on the Exeter Road, near Hartley Row, but his pocket was not well-lined, and Dudley made him preach a sermon in praise of thieving, swearing to shoot him if he did not. This he performed with such humour and eloquence that Dudley assured him Old

Nick would certainly soon make him Archbishop: "Meanwhile," said he, "here is your money back, and if you will take up a collection, my fine fellows here shall contribute to it."



CAPTAIN DUDLEY AND THE CLERGYMAN.

It may, however, be suspected that the congregation of "fine fellows" were not quite so satisfied with the sermon as their Captain, or perhaps did not appreciate their leader's humour; for the collection when taken up did not amount to more than four shillings. It was not a profitable day for the band.

The accounts, given severally by Smith and Johnson, of Dudley's adventures differ very widely. According to Johnson, Dudley's earliest effort was in a different line altogether, and was a burglary committed at Blackheath, where he broke into a house and carried off a large quantity of plate. The story well illustrates the peculiar ideas of honesty these seventeenth-century scoundrels pretended to hold. It seems he had sold most of the plate he had taken at Blackheath to a refiner, but was shortly afterwards apprehended and committed to Newgate. While there, he sent for the refiner who had bought of him, and angrily reproached him. "It is a hard thing," he said, "to find an honest man or a fair dealer. You cursed rogue, there was, among the plate you bought of me, a cup with a cover. You told me it was only silver-gilt, and bought it at the same price with the rest; but it plainly appears, by the advertisement in the *Gazette*, that it was a gold cup and cover. I see you are a rogue, and that there is no trusting anybody."

After robbing General Monk, under impudent circumstances, Dudley found his native land dangerous, and so crossed the Channel, and by easy stages traversed France and arrived at Rome, where he appeared in the garb of a pilgrim. He afterwards travelled to Jerusalem and returned to Rome, and endeavoured to obtain audience of the Pope.

But His Holiness would not receive him, said the Cardinal he approached, unless he came with a relic. Dudley then procured a very singular one, cut from the dead body of a criminal who had just been executed, and, returning to the Vatican, pretended he had come with no less a relic than the beard of St. Peter, which he said he had purchased at a great price from the fathers at the Holy Sepulchre. The Cardinal to whom he first showed the "relic" admired it, said that, if true, it was a jewel worth a kingdom, and admitted Dudley to audience with the Pope, who, kissing the object, said they had the skull of St. Peter already, but he had no idea his beard was preserved. What he could not understand, however, was why there should be so much hair on one side, and so little on the other.

"Oh," said our sham pilgrim, "your Holiness well knows St. Peter was a Jew by birth, and used to play much on the Jews' Harp, so that by often rubbing and twanging it with his fingers, he rubbed off the hair from the right side of his face."

This explanation being deemed satisfactory, the "beard of St. Peter"—that priceless relic—was purchased for one hundred ducats: a bargain, and if the story be true, it is probably in the Vatican still.

Soon after his return, Dudley met a Justice of the Peace on the road to Horsham, and requested his purse. But the courageous magistrate made a very stout resistance, and shot Dudley's horse under him, being, in return, wounded in the arm. Obligated at last to surrender, his pockets yielded twenty-eight guineas, a gold watch, and a silver tobacco-box. Dudley, then securing his horse, said, "Since your Worship has grievously broken the peace, in committing a most horrid and barbarous murder on my prancer, which with my assistance was able to get his living in any ground in England, I must make bold to take your horse, by way of reprisal. However, I'll not be so uncivil as to let a man of your character go home on foot. I'll make one Justice of the Peace carry another."

So, stepping into a field where an ass was grazing, he brought the animal into the road, and seated the Justice on his back, tying his legs under.

"I know I offend against the laws of heraldry," he said, "in putting metal upon metal, but as there is no general rule without an exception, I doubt not but all the heralds will excuse this solecism committed in their art, which I look upon to be as great a bite and cheat as astrology."

He then whipped up the animal, and it carried the magistrate into the streets of Petworth, where his worship attracted as much attention as though he had been a royal procession.

At last, Dick Dudley, as he is familiarly styled by Alexander Smith, attempting to rob the Duke of Lauderdale, as he was riding over Hounslow Heath, was captured instead, and committed to Newgate. No fewer than eighty indictments were preferred against him, and, being found guilty on some of these, he was executed at Tyburn, February 22nd, 1681, aged forty-six.



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FOOTNOTES:

[1] See the *Exeter Road*, pp. 215-233.

[2] Historians of Paddington and Bayswater contend that "Elms Lane," existing until about 1840, adjoining Lancaster Gate, marked the spot: so there is a choice of three "Elms."

[3] Probably John Dudley, Duke of Norfolk, who was granted the old hospital property in 1553.

[4] See the *Manchester and Glasgow Road*, Vol. I., pp. 236-238.

[5] His name at the Old Bailey trial was stated to be "John Bennet, alias Freeman."

Transcriber's Note:

- Minor typographical errors have been corrected without note.
- Ambiguous hyphens at the ends of lines were retained.
- Punctuation and spelling were made consistent when a predominant form was found in this book; otherwise they were not changed.
- Mid-paragraph illustrations have been moved between paragraphs and some illustrations have been moved closer to the text that references them. The paginations in the list of illustrations have been adjusted accordingly.
- Footnotes were moved to the end of chapters and numbered in one continuous sequence
- Other corrections:
 - p. 77: "... looking out of window..." changed to "...looking out of a window..."
 - p. 88: "...worthy the name..." changed to "...worthy of the name..."
 - p. 115: "...the usual broadstreet price..." changed to "...the usual broadsheet price..."
- Transliteration of poem on [page 45](#)

Near undernead dis laitl stean
laiz robert earl of Huntingtun
Nea arcir ver as hie sa geud
An pipl kauld im robin heud
sich outlawz az hi an iz men
vil england nivr si agen
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WITH THE HIGHWAYMEN - VOL 1 ***

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